TITLE 44 - Public Records and Recorders

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RS 44:1

General definitions

TITLE 44

PUBLIC RECORDS AND RECORDERS

CHAPTER 1. PUBLIC RECORDS

PART I. SCOPE

§1. General definitions

A.(1) As used in this Chapter, the phrase "public body" means any branch, department, office, agency, board, commission, district, governing authority, political subdivision, or any committee, subcommittee, advisory board, or task force thereof, any other instrumentality of state, parish, or municipal government, including a public or quasi-public nonprofit corporation designated as an entity to perform a governmental or proprietary function, or an affiliate of a housing authority.

(2)(a) All books, records, writings, accounts, letters and letter books, maps, drawings, photographs, cards, tapes, recordings, memoranda, and papers, and all copies, duplicates, photographs, including microfilm, or other reproductions thereof, or any other documentary materials, regardless of physical form or characteristics, including electronically stored information or information contained in databases or electronic data processing equipment, having been used, being in use, or prepared, possessed, or retained for use in the conduct, transaction, or performance of any business, transaction, work, duty, or function which was conducted, transacted, or performed by or under the authority of the constitution or laws of this state, or by or under the authority of any ordinance, regulation, mandate, or order of any public body or concerning the receipt or payment of any money received or paid by or under the authority of the constitution or the laws of this state, are "public records", except as otherwise provided in this Chapter or the Constitution of Louisiana.

(b) Notwithstanding Subparagraph (a) of this Paragraph, any documentary material of a security feature of a public body's electronic data processing system, information technology system, telecommunications network, or electronic security system, including hardware or software security, password, or security procedure, process, configuration, software, and code is not a "public record".

(c) Notwithstanding Subparagraph (a) of this Paragraph, any blueprint or floor plan of the interior of a public school building or facility is not a "public record".

(3) As used in this Chapter, the word "custodian" means the public official or head of any public body having custody or control of a public record, or a representative specifically authorized by him to respond to requests to inspect any such public records.

B.(1) Electrical well surveys produced from wells drilled in search of oil and gas located in established units and which are filed with the assistant secretary of the office of conservation shall be placed in the open files of the office of conservation. Any party or firm shall have the right to examine or reproduce, or both, at their own expense, copies of said survey, by photography or other means not injurious to said records. All other electric logs and other electronic surveys, other than seismic data, produced from wells drilled in search of oil and gas which are filed with the assistant secretary of the office of conservation shall remain confidential upon the request of the owner so filing for periods as follows:

(2) For wells shallower than fifteen thousand feet a period of one year, plus one additional year when evidence is submitted to the assistant secretary of the office of conservation that the owner of the log has a leasehold interest in the general area in which the well was drilled and the log produced; for wells fifteen thousand feet deep or deeper, a period of two years, plus two additional

years when evidence is submitted to the assistant secretary of the office of conservation that the owner of the log has such an interest in the general area in which the well was drilled and the log produced; and for wells drilled in the offshore area, subsequent to July 1, 1977, regardless of depth, a period of two years from the filing of the log with the office of conservation, plus two additional years where evidence is submitted to the assistant secretary of the office of conservation that the owner of the log has such an interest in the general area in which the well was drilled and the log produced and has immediate plans to develop the said general area, unless a shorter period of confidentiality is specifically provided in the existing lease.

(3) At the expiration of time in which any log or electronic surveys, other than seismic data, shall be held as confidential by the assistant secretary of the office of conservation as provided for above, said log or logs shall be placed in the open files of the office of conservation and any party or firm shall have the right to examine or reproduce, or both, at their own expense, copies of said log or electronic survey, other than seismic data, by photography or other means not injurious to said records.

Amended by Acts 1973, No. 135, §1; Acts 1973, Ex.Sess., No. 4, §1; Acts 1978, No. 686, §1; Acts 1979, No. 691, §1; Acts 1980, No. 248, §1; Acts 2001, No. 707, §1, eff. June 25, 2001; Acts 2001, No. 882, §1; Acts 2011, No. 79, §2; Acts 2020, No. 211, §2, eff. June 11, 2020; Acts 2022, No. 770, §1.

NOTE: See Acts 2011, No. 79, §3, re applicability of provisions concerning affiliates of housing authorities.

RS 44:1.1

Short title

§1.1. Short title

This Chapter shall be known and may be cited as the "Public Records Law".

Acts 2010, No. 861, §19.

RS 44:2

Records involved in legislative investigations

§2. Records involved in legislative investigations

A.(1) The provisions of this Chapter shall not apply to any records, writings, accounts, letters, letter books, photographs or copies thereof, in the custody or control of the legislature, or either house or any committee or officer thereof, and which concern or hold relation to any case, cause, charge or investigation being conducted by or through the legislature, or either house or any committee or officer thereof, until after the case, cause, charge or investigation has been finally disposed of.

(2) All records, files, documents, and communications, and information contained therein, obtained or developed pursuant to Paragraph (1) of this Subsection that pertain to or impart the identity of any confidential source of information shall be privileged, and no court shall order the disclosure of same except on grounds of due process or constitutional law. No member, officer, or employee of the legislature shall disclose or produce such privileged records, files, documents, communications, or information except on a court order.

(3) Except as otherwise provided in Paragraph (2) of this Subsection, after final disposition, the records, writings, accounts, letters, letter books, photographs or copies thereof, are public records and subject to the provisions of this Chapter.

B.(1) The provisions of this Chapter shall not apply to any privileged or confidential data or records in the custody of the legislature or either house thereof which are obtained or used for the purpose of considering the election, confirmation or approval of any nomination or appointment for which election, confirmation, or approval by the legislature or either house thereof is required.

(2) Nothing in this Subsection shall prohibit the disclosure of any information relevant to the education, employment history, or work experience of an appointee or nominee.

Acts 2012, No. 850, §1.

RS 44:3

Records of prosecutive, investigative, and law enforcement agencies, and communications districts

§3. Records of prosecutive, investigative, and law enforcement agencies and communications districts

A. Nothing in this Chapter shall be construed to require disclosures of records, or the information contained therein, held by the offices of the attorney general, district attorneys, sheriffs, police departments, Department of Public Safety and Corrections, Department of Wildlife and Fisheries, marshals, investigators, public health investigators, correctional agencies, communications districts, intelligence agencies, Council on Peace Officer Standards and Training, Louisiana Commission on Law Enforcement and Administration of Criminal Justice, or publicly owned water districts of the state, which records are:

(1) Records pertaining to pending criminal litigation or any criminal litigation which can be reasonably anticipated, until such litigation has been finally adjudicated or otherwise settled, except as otherwise provided in Subsection F of this Section; or

(2) Records containing the identity of a confidential source of information or records which would tend to reveal the identity of a confidential source of information; or

(3) Records containing security procedures, investigative training information or aids, investigative techniques, investigative technical equipment or instructions on the use thereof, criminal intelligence information pertaining to terrorist-related activity, or threat or vulnerability assessments collected or obtained in the prevention of terrorist-related activity, including but not limited to physical security information, proprietary information, operational plans, and the analysis of such information, or internal security information; or

(4)(a) The records of the arrest of a person, other than the report of the officer or officers investigating a complaint, until a final judgment of conviction or the acceptance of a plea of guilty by a court of competent jurisdiction. However, the initial report of the officer or officers investigating a complaint, but not to apply to any followup or subsequent report or investigation, records of the booking of a person as provided in Code of Criminal Procedure Article 228, records of the issuance of a summons or citation, and records of the filing of a bill of information shall be a public record.

(b) The initial report shall set forth:

(i) A narrative description of the alleged offense, including appropriate details thereof as determined by the law enforcement agency.

(ii) The name and identification of each and every person who is a suspect charged with or arrested for the alleged offense, unless prohibited or protected by federal law or state law not contained in this Title.

(iii) The time and date of the alleged offense.

(iv) The location of the alleged offense.

(v) The property involved.

(vi) The vehicles involved.

(vii) The names of investigating officers.

(c) Nothing herein shall be construed to require the disclosure of information which would reveal undercover or intelligence operations.

(d) Repealed by Acts 2018, No. 309, §3.

(5) Records containing the identity of an undercover police officer or records which would tend to reveal the identity of an undercover police officer; or

(6) Records concerning status offenders as defined in the Children's Code.

(7) Collected and maintained by the Louisiana Bureau of Criminal Identification and Information, provided that this exception shall not apply to the central registry of sex offenders maintained by the bureau.

(8) Video or audio recordings generated by law enforcement officer body-worn cameras that are found by the custodian to violate an individual's reasonable expectation of privacy.

(a) A body-worn camera is a camera worn on an individual law enforcement officer's person that records and stores audio and video.

(b) Body-worn camera video or audio recordings that are determined by the custodian to violate an individual's reasonable expectation of privacy shall be disclosed upon a determination and order from a court of competent jurisdiction pursuant to R.S. 44:35.

(c) All costs of production associated with a court-ordered disclosure shall be set by the court.

(d) Notwithstanding any provision of this Chapter to the contrary, body-worn camera video or audio recordings generated while the law enforcement officer is not acting in the scope of his official duties shall not be subject to disclosure when the disclosure would violate a reasonable expectation of privacy.

B. All records, files, documents, and communications, and information contained therein, pertaining to or tending to impart the identity of any confidential source of information of any of the state officers, agencies, or departments mentioned in Subsection A of this Section, shall be privileged, and no court shall order the disclosure of same except on grounds of due process or constitutional law. No officer or employee of any of the officers, agencies, or departments mentioned in Subsection A of this Section shall disclose said privileged information or produce said privileged records, files, documents, or communications, except on a court order as provided above or with the written consent of the chief officer of the agency or department where he is employed or in which he holds office, and to this end said officer or employee shall be immune from contempt of court and from any and all other criminal penalties for compliance with this Subsection.

C. Whenever the same is necessary, judicial determination pertaining to compliance with this Section or with constitutional law shall be made after a contradictory hearing as provided by law. An appeal by the state or an officer, agency, or department thereof shall be suspensive.

D. Nothing in this Section shall be construed to prevent any and all prosecutive, investigative, and law enforcement agencies and communications districts from having among themselves a free flow of information for the purpose of achieving coordinated and effective criminal justice.

E. Nothing in this Section shall be construed as forbidding the release of all or part of investigative files of fires classified as arson, incendiary, or suspicious unless, after consultation with the appropriate law enforcement agency, any sheriff, district attorney, or other law enforcement agency directs that the records not be disclosed because of pending or anticipated criminal adjudication.

F. Notwithstanding any other provision of law to the contrary, after a period of ten years has lapsed from the date of death of a person by other than natural causes, and upon approval by the district court having jurisdiction over any criminal prosecution which may result due to the death of such person, any prosecutive, investigative, and other law enforcement agency, or any other governmental agency in possession of investigative files or evidence or potential evidence, or any other record, document, or item relating to said death shall, upon request, provide copies of all such

files, records, and documents to immediate family members of the victim and shall provide unlimited access for any and all purposes to all such evidence, potential evidence, and other items to any member of the immediate family and to any person or persons whom any member of the immediate family has designated for such purposes. The access granted shall include but not be limited to the examination, inspection, photographing, copying, testing, making impressions, and the use in any court proceeding of and conducting forensic studies on such evidence, potential evidence, and other items. For the purposes of this Subsection, the term "immediate family" shall mean the surviving spouse, children, grandchildren, and siblings of the victim.

G. Nothing in this Chapter shall be construed to require disclosures of certificates of official driving records in the custody and control of the Department of Public Safety and Corrections, office of motor vehicles, except as specifically provided for in R.S. 15:521.

H. Nothing in this Section shall be construed as prohibiting the release of any report resulting from a request for an investigation of an alleged violation of the crime of identity theft as defined under the provisions of R.S. 14:67.16 to the victim of such alleged crime. However, the information which shall be released to such victim shall be limited to that information required to be released under the provisions of R.S. 14:67.16(H)(2).

I. All requests for production of video or audio recordings generated by law enforcement officer body-worn cameras shall be incident specific and shall include reasonable specificity as to the date, time, location, or persons involved. A request for multiple incidents shall include reasonable specificity as to the date, time, location, or persons involved in each incident requested. The custodian may deny a request not containing reasonable specificity.

J.(1) Nothing in this Chapter shall be construed to require the disclosure of information which would reveal the name, address, contact information, or identity of a victim of a sex offense or a human trafficking-related offense as those terms are defined in R.S. 46:1844.

(2) Nothing in this Chapter shall be construed to require the disclosure of information which would reveal the name, address, contact information, or identity of a crime victim who at the time of the commission of the offense is a minor under eighteen years of age.

(3) Nothing in this Chapter shall be construed to require the disclosure of information which would reveal the address or contact information of a victim of a crime against a family member, household member, or dating partner. "Family member" and "household member" shall have the same definitions as in R.S. 46:2132 and "dating partner" shall have the same definition as in R.S. 46:2151.

K.(1) Unless prohibited by federal law or state law not contained in this Title, if a victim of an offense or his designated family member requests an opportunity to review or copy any portion of records related to the offense against the victim, the agency shall allow the victim or his designated family member to review and copy the records unless the agency certifies in writing that the matter is subject to actual or reasonably anticipated criminal litigation.

(2) Any document that an agency provides to any defendant after prosecution of an offense has been initiated shall, upon request from the victim or a designated family member, also be made available for review and copying by the requestor unless the agency certifies in writing that the records are being withheld because information in them could materially affect the prosecution or a related investigation.

(3) Nothing in this Subsection shall be construed to prohibit an agency from in its discretion allowing a victim of an offense or his family member to review or copy any record related to the offense, provided the agency determines it would not reasonably impair any ongoing investigation or prosecution.

(4) For purposes of this Subsection, "designated family member" and "victim" have the same meanings as that provided by R.S. 46:1842.

Amended by Acts 1972, No. 448, §1; Acts 1978, No. 313, §1; Acts 1978, No. 686, §1; Acts 1979, No. 336, §1; Acts 1983, No. 247, §1; Acts 1984, No. 945, §1; S.C.R. No. 139, 1985 R.S.; Acts 1986, No. 785, §1; Acts 1988, No. 438, §1; Acts 1990, No. 59, §§2 and 3, eff. June 26, 1990; Acts 1990, No. 218, §1, eff. July 2, 1990; Acts 1991, No. 86, §1; Acts 1995, No. 519, §1, eff. June 18, 1995; Acts 1999, No. 484, §1, eff. June 18, 1999; Acts 1999, No. 1189, §1; Acts 2002, 1st Ex. Sess., No. 128, §4; Acts 2003, No. 631, §2; Acts 2003, No. 844, §3; Acts 2003, No. 1197, §1; Acts 2016, No. 525, §1; Acts 2017, No. 272, §3, eff. June 16, 2017; Acts 2018, No. 309, §§1, 3; Acts 2021, No. 158, §5; Acts 2022, No. 630, §1; Acts 2025, No. 125, §1.

RS 44:3.1

Certain records pertaining to security-related activity

§3.1. Certain records pertaining to security-related activity

A. Nothing in this Chapter shall be construed to require disclosure of records containing security procedures, criminal intelligence information pertaining to terrorist-related activity, or threat or vulnerability assessments created, collected, or obtained in the prevention of terrorist-related activity, including but not limited to physical security information, proprietary information, operational plans, and the analysis of such information, or internal security information.

B. Nothing in the Chapter shall be construed to require the disclosure of school crisis management and response plans.

C. Nothing in this Chapter shall be construed to require disclosure of a blueprint or floor plan of the interior of a public school building or facility, except as required as part of the public bid process. Any blueprint or floor plan of the interior of a school building or facility provided as part of the public bid process shall be deemed confidential and shall not be disclosed to persons other than those responsible for the bidding or construction of the project.

Acts 2003, No. 413, §1, eff. June 18, 2003; Acts 2020, No. 211, §2, eff. June 11, 2020.

RS 44:3.1.1

School surveillance and security video; limited retention and viewing policy

§3.1.1. School surveillance and security video; limited retention and viewing policy

A. Except as otherwise provided in this Section, the provisions of this Chapter shall not apply to any surveillance and security video of the inside of or covering the area immediately surrounding a building owned, operated, or maintained by a public school board or a charter school.

B. The governing authority of each public elementary and secondary school, including charter schools, shall adopt a policy governing all surveillance and security video in and around buildings owned, operated, or maintained by the governing authority. Each policy shall contain provisions for all of the following:

(1) Retaining, storing, and disposing of the recorded video and audio data, including a requirement that the recordings be retained for at least thirty days from the recording date.

(2) Protecting student privacy and for determining to whom and under what circumstances the recordings may be disclosed, including limiting viewing of the recordings to the appropriate school officials, law enforcement officials investigating an incident, and, upon request, a bona fide news gathering organization covering an incident, and the parent or legal guardian of a recorded student if there was an incident involving that student.

(3) Procedures regarding how a parent or legal guardian or a bona fide news gathering organization may request to review a recording, and any limitations to a request.

C.(1) For purposes of this Section, the phrase "parent or legal guardian" shall have the same meaning as provided in R.S. 17:3914.

(2) For purposes of this Section, the phrase "bona fide news gathering organization" shall mean:

(a) A newspaper, or news publication, printed or electronic, of current news and intelligence of varied, broad, and general public interest, that has been published for a minimum of one year and that can provide verifiable documentation of membership in a statewide or national press association, as represented by an employee thereof who can provide verifiable documentation of his employment with the newspaper, wire service, or news publication.

(b) A radio broadcast station, television broadcast station, cable television operator, or wire service as represented by an employee thereof who can provide verifiable documentation of his employment.

(3) For purposes of compliance with Subsection B of this Section, the surveillance and security video recordings shall not be considered "personally identifiable information" as defined in R.S. 17:3914.

D. Nothing in this Section shall affect a parent's or legal guardian's right to access videos pursuant to R.S. 17:1948.

Acts 2023, No. 301, §1, eff. June 13, 2023.

RS 44:3.2

Proprietary and trade secret information

§3.2. Proprietary and trade secret information

A. Nothing in this Chapter shall be construed to require the disclosure of proprietary or trade secret information pertaining to any code, pattern, formula, design, device, method, or process which is proprietary or trade secret information which has been submitted to a public body by the developer, owner, or manufacturer of a code, pattern, formula, design, device, method, or process in order to obtain or retain approval of such code, pattern, formula, design, device, method, or process for sale or use in this state.

B. Nothing in this Chapter shall be construed to require the disclosure of proprietary or trade secret information pertaining to any code, pattern, formula, design, device, method, or process which has been submitted to a public body in order to facilitate the further research, development, or commercialization of such code, pattern, formula, design, device, method, or process.

C. Nothing in this Chapter shall be construed to require the disclosure of proprietary or trade secret information which has been submitted to Louisiana Economic Development for economic development purposes.

D.(1) All records containing proprietary or trade secret information submitted by a developer, owner, or manufacturer to a public body pursuant to Subsection A, B, or C of this Section shall contain a cover sheet that provides in bold type "DOCUMENT CONTAINS CONFIDENTIAL PROPRIETARY OR TRADE SECRET INFORMATION". The developer, owner, or manufacturer shall clearly mark each instance of information which is, in his opinion, proprietary or trade secret information. However, the determination of whether such information is in fact proprietary or trade secret information shall be made by the custodian within thirty days of a submission; however, if a custodian receives a public records request during the period of thirty days, the determination shall be made within the time period provided in R.S. 44:32(D) and 33(B).

(2) A custodian who receives a request pursuant to this Chapter for any information which has been marked by the developer, owner, or manufacturer as proprietary or trade secret information shall, prior to the disclosure of the information, immediately notify such developer, owner, or manufacturer of the request and of the custodian's determination of whether or not the information so requested is subject to disclosure.

E. General information relating to the identity of the developer, owner, or manufacturer and any agreement or contract that such person or legal entity has entered into with the public body shall be subject to public review.

F. Nothing in this Section shall be construed in a manner as to prevent the public examination or reproduction of any record or part of a record which is not proprietary or trade secret information.

G. Notwithstanding any other provision of law to the contrary, the office of state fire marshal shall provide electronic access to its information management system to the State Board of Architectural Examiners and the Louisiana Professional Engineering and Land Surveying Board for the examination and reproduction of plans, drawings, and specifications submitted to the office of state fire marshal. The State Board of Architectural Examiners and the Louisiana Professional Engineering and Land Surveying Board shall not allow for examination or release of any documents obtained from the office of state fire marshal’s information system to the public or other third party, including other state agencies. The office of state fire marshal shall not be held responsible or liable for any release of confidential, proprietary, or trade secret information by the State Board of Architectural Examiners or the Louisiana Professional Engineering and Land Surveying Board.

Acts 2004, No. 832, §1, eff. July 12, 2004; Acts 2012, No. 57, §1, eff. May 11, 2012; Acts 2018, No. 357, §1.

RS 44:3.3

Public power authority; commercially sensitive information

§3.3. Public power authority; commercially sensitive information

A. Nothing in this Chapter shall require the disclosure of commercially sensitive information in the custody or control of a public power authority.

B. For purposes of this Section, the following terms shall have the following meanings:

(1) "Commercially sensitive information" means information regarding a utility matter that is directly related to the public power authority's competitive activity which would, if disclosed, give an advantage to competitors or prospective competitors and includes the following:

(a) Portfolio and generation unit specific fixed, variable, and related costs.

(b) Fuel and purchased power costs and costs of related activities.

(c) Risk management information and strategies.

(d) Power pricing information, system load characteristics, marketing analyses and strategies, and customer billing, contract, and usage information.

(2)(a) "Public power authority" means a political subdivision of the state created by the governing authority of a municipality pursuant to R.S. 33:4172 for the purpose of the construction, acquisition, improvement, operation, or management of a public power project or improvement.

(b) "Public power authority" also means a utility division for the city of Alexandria. However, the governing authority of the city of Alexandria shall have access to commercially sensitive information in the custody and control of the utility division.

C. The provisions of Subsection A of this Section shall not apply to general information relating to the identity of the parties to any agreement or contract with a public power authority, and such information shall be subject to inspection, examination, copying, and reproduction.

D. Nothing in this Section shall be construed in a manner as to prevent the inspection, examination, copying, or reproduction of any record or part of a record that does not contain commercially sensitive information.

Acts 2014, No. 269, §1, eff. May 28, 2014; Acts 2025, No. 31, §1.

RS 44:3.4

Records of the Board of Ethics

§3.4. Records of the Board of Ethics

Nothing in this Chapter shall be construed to require the disclosure of records, or the information contained therein, held by the Board of Ethics pertaining to enforcement proceedings. However, any such record shall be public record and subject to the provisions of this Chapter when introduced as evidence before the Ethics Adjudicatory Board or a court or when the enforcement proceedings are concluded, subject to the limitations in R.S. 42:1141.4.

Acts 2015, No. 316, §2, eff. August 1, 2015.

RS 44:3.5

Records of the Department of Agriculture and Forestry

§3.5. Records of the Department of Agriculture and Forestry

Nothing in this Chapter shall be construed to require the disclosure of records, or the information contained therein, held by the Department of Agriculture and Forestry, which records are:

(1) Held by the forestry officers and livestock brand inspectors pertaining to pending criminal litigation or any criminal litigation which can be reasonably anticipated, until such litigation has been finally adjudicated or otherwise settled.

(2) Pertaining to the Medical Marijuana Program containing the internal procedures, security procedures, security plans, transportation plans, and proprietary information of a licensee.

(3) Emergency preparedness information specifically pertaining to the location of emergency fuel and the identity of pets and pet owners during a declared emergency.

Acts 2018, No. 408, §1, eff. May 23, 2018.

RS 44:3.6

Airport facility and infrastructure records

§3.6. Airport facility and infrastructure records

A. Notwithstanding any other provision of law to the contrary, blueprints, floor plans, and renderings of the interior of an airport facility or of a facility on airport property and blueprints, plans, or renderings of airport infrastructure shall be confidential.

B. Nothing in this Chapter shall be construed to require the inspection, examination, copying, or reproduction of a blueprint, floor plan, or other rendering of the interior of an airport facility or of a facility on airport property or a blueprint, plan, or rendering of airport infrastructure.

C. Nothing in this Section shall prohibit the disclosure of a blueprint, floor plan, or other rendering of the interior of an airport facility or of a facility on airport property or a blueprint, plan, or rendering of airport infrastructure to appropriate persons, if such disclosure is necessary or required for any of the following:

(1) To protect the health, safety, and welfare of the public.

(2) To provide or procure security, services, or concessions in and around the airport and its facilities.

(3) To use as part of a public bid or request for proposal process or to accomplish construction maintenance, repairs, or development.

(4) To facilitate interactions with a federal, state, or local governmental entity.

Acts 2021, No. 169, §1, eff. June 11, 2021.

RS 44:4

Applicability

§4. Applicability

This Chapter shall not apply:

(1) To any tax return or the information contained in any tax return. However, the name and address of any person who obtains an occupational license, the information on the face of the license, and information as to whether an occupational license has been issued to a particular person shall be public records.

(2) To the name of any person or any other information from the records, papers or files of the state or its political subdivisions or agencies, concerning persons applying for or receiving old age assistance, aid to the blind, or aid to dependent children.

(3) To any records, writings, accounts, letters, letter books, photographs or copies thereof, in the custody or control of any officer, employee, agent or agency of the state whose duties and functions are to investigate, examine, manage in whole or in part, or liquidate the business of any private person, firm or corporation in this state, when the records, writings, accounts, letters, letter books, photographs or copies thereof, pertain to the business of the private person, firm or corporation, and are in their nature confidential.

(4)(a) To any records, writings, accounts, letters, letter books, photographs, reports of examination, work papers of examiners, including loan write-ups, line sheets, handwritten notes, loan classification documentation, and any other documentation relating to the financial statements of a financial institution's borrowers, or other entity supervised by the Office of Financial Institutions, except as otherwise provided in R.S. 6:103, R.S. 9:3518.1, R.S. 37:1806, or R.S. 51:1934 or 2389. This exception shall apply to any financial institution governed by Title 6 of the Louisiana Revised Statutes of 1950, supervised entities licensed under Title 9 of the Louisiana Revised Statutes of 1950, and those entities licensed and supervised by the Office of Financial Institutions pursuant to Title 37 or 51 of the Louisiana Revised Statutes of 1950, including those which are exercising the privileges granted by their charters or licenses, as well as those which have been determined to be insolvent or operating in an unsafe and unsound condition and have lost their deposit insurance coverage, or, for other legal reasons have been closed and placed in conservatorship or receivership by the commissioner of financial institutions, or whose licenses issued under the provisions of Title 9, 37, or 51 of the Louisiana Revised Statutes of 1950 have been terminated for any lawful reason.

(b) To copies of items exempted under Subparagraph (a) of this Paragraph in the custody or control of the Office of Financial Institutions or any agent or employee of that agency, except as otherwise provided in R.S. 6:103, R.S. 9:3518.1, R.S. 37:1806, or R.S. 51:1934 or 2389.

(c) To investigative records of the Office of Financial Institutions which pertain to the application of any person for a charter or license for a new financial institution, and the confidential portion of any application by an entity chartered, licensed, and/or supervised by the Office of Financial Institutions pursuant to Title 6, 9, 37, or 51 of the Louisiana Revised Statutes of 1950, except as otherwise provided in R.S. 6:103, R.S. 9:3518.1, R.S. 37:1806, or R.S. 51:1934 or 2389.

(d) To records of the Office of Financial Institutions which pertain to the application for a merger approval or an additional branch office for any existing financial institution governed by Titles 6 and 9 of the Louisiana Revised Statutes of 1950, except as otherwise provided in R.S. 6:103.

(5)(a) To any daily reports or endorsements filed by insurance companies doing business in this state with the commissioner of insurance in accordance with the laws of this state.

(b) All risk-based capital reports filed with the Department of Insurance pursuant to R.S. 22:611 through 620.

(6)(a) To any records, writings, accounts, letters, letter books, photographs, or copies or memoranda thereof in the custody or control of the legislative auditor, unless otherwise provided.

(b) To any records, writings, accounts, letters, letter books, photographs, or copies or memoranda thereof in the custody or control of the state child ombudsman, unless otherwise provided.

(c) To the actual working papers of the internal auditor of a municipality until the audit is complete, unless otherwise provided.

(7) To any records, writings, accounts, letters, letter books, photographs or copies or memoranda thereof, and any report or reports concerning the fitness of any person to receive, or continue to hold, a license to practice medicine or midwifery, in the custody or control of the Louisiana State Board of Medical Examiners.

(8) To any records, data, writings, accounts, reports, letters, exhibits, pictures, photographs, drawings, charts, maps or copies or memoranda thereof, whether written or oral, filed by or received from any person by the commissioner of conservation, or any official or employee in the Department of Conservation, or which in any manner is in the custody or control of the commissioner of conservation, or any official or employee in the Department of Conservation, which pertain to or in any way involve estimated or proven recoverable reserves of oil, gas or other minerals in place, and the same has been declared, presented or received as confidential at the request of the lawful owner thereof; provided, however, statistical reports which do not reveal the identity of any owner or operator, either directly or by inference, may be released to the public by the commissioner of conservation.

(9) To any records, writings, accounts, letters, letter books, photographs or copies or memoranda thereof, and any report or reports concerning the fitness of any person to receive, or continue to hold, a license to practice as a registered nurse in the custody or control of the Louisiana State Board of Nursing; however, any action taken by the board, and any legal grounds upon which such action is based, relative to the fitness of any person to receive, or continue to hold, a license to practice as a registered nurse shall be a public record.

(10) To any records, data, writings, accounts, reports, letters, exhibits, pictures, photographs, drawings, charts, maps, or copies or memoranda thereof, whether written or oral, filed by or received from the Energy Information Administration of the United States Department of Energy by the secretary of the Department of Conservation and Energy or any official or employee in the Department of Conservation and Energy if nondisclosure to any other person or public body was a requirement for obtaining same and the information could not otherwise be obtained by law from that agency; and to any records or information filed with or received by the secretary of the Department of Conservation and Energy or any official or employee in the Department of Conservation and Energy from any person who is required by federal law to supply same to the state which information is not available to the public under federal law. Statistical reports which do not reveal, directly or by inference, the identity of the individual sources of the information compiled by the Department of Energy may be released to the public by the secretary of the Department of Conservation and Energy.

(11) To any records, writings, accounts, letters, exhibits, data, pictures, drawings, charts, photographs, or copies or memoranda thereof, and any report or reports concerning the fitness of any person to receive or continue to hold a license to practice as a dentist or as a dental hygienist in the custody or control of the Louisiana State Board of Dentistry; however, any final determination made by the board, and any legal grounds upon which such action is based, relative to the fitness of any

person to receive or continue to hold a license to practice as a dentist or as a dental hygienist shall be a public record.

(12) To any report, records, writings, accounts, letters, exhibits, data, pictures, drawings, charts, photographs, or copies or memoranda thereof, concerning the fitness of any person to receive or continue to hold a license to practice as a veterinarian in the custody or control of the Louisiana Board of Veterinary Medicine; however, any final determination made by the board, and any legal grounds upon which such action is based, relative to the fitness of any person to receive or continue to hold a license to practice as a veterinarian shall be a public record.

(13) To any of the following for use in the operation of or in connection with any automated broker interface system or any automated manifest system conducted by any deep water or shallow draft port commission of the state and licensed to, leased to, commissioned by, deposited with, or otherwise acquired by such port commission for such purpose:

(a) Any computer system or program including any computer software or related menus, flow charts, source materials, prompts, dialogues, data bases, manuals, and any other computer operating or support materials.

(b) Any financial or trade secrets or other third party proprietary information of any person, firm, corporation, agency, or other entity, whether governmental or private.

(14) To any records of the Louisiana Department of Health, office of public health, which contain any technical information pertaining to any formula, method, or process which is a trade secret which has been submitted by any manufacturer of a product or mechanical sewage treatment plant in order to obtain or retain approval of such product for sale or use in this state or in order to assist the office in carrying out and enforcing the sanitary laws and regulations of the state.

(15)(a) To any pending claims or pending claim files in the custody or control of the office of risk management, division of administration, or similar records in the custody of any municipality or parish; to any information concerning pending legal claims in the files of any attorney representing the state or any municipality in connection with the office of risk management, division of administration, or any office with similar responsibilities of any municipality or parish; or to any pending claims relating to loss reserves maintained or established by the office of risk management, division of administration, or any office with similar responsibilities of any municipality or parish, for any claims or for losses incurred but not reported; however, this Chapter shall be applicable to reserves as reported in the financial statement of the office of risk management, division of administration, or any municipality or parish. Nothing in this Paragraph shall be construed or interpreted in a manner as to prevent or inhibit in any manner the chairman and vice chairman of the Joint Legislative Committee on the Budget and the litigation subcommittee of the Joint Legislative Committee on the Budget from obtaining dollar amounts billed by and paid to contract attorneys and experts in defense of claims against the state that the chairman or vice chairman or the subcommittee determines is necessary to perform functions and duties relative to the evaluation of performance or the determination of budget policy; however, no legislator or any committee of the legislature shall disclose any confidential information so obtained that would jeopardize or have a detrimental effect on the litigating position of the state.

(b) To any documentation or other information related to a closed litigated claim that is provided by a state entity to the litigation subcommittee of the Joint Legislative Committee on the Budget pursuant to R.S. 24:653(H)(3).

(16) To the following records of a board or institution of higher learning, in accordance with rules and regulations promulgated by the Board of Supervisors for the University of Louisiana System, the Board of Supervisors of Louisiana State University and Agricultural and Mechanical College, and the Board of Supervisors of Southern University and Agricultural and Mechanical

College, or their successors, in conjunction with the Board of Regents, for programs and institutions under their supervision and management, unless access to the records is specifically required by state or federal statute or is ordered by a court under rules of discovery:

(a) Trade secrets and commercial or financial information obtained from a person, firm, or corporation, pertaining to research or to the commercialization of technology, including any such information designated as confidential by such person, firm, or corporation, but not including any such information relating to the identity of principals, officers, or individuals and entities directly or indirectly owning or controlling an entity other than a publicly held entity, or the identity of principals, officers, or individuals and entities directly owning or controlling five percent or more of a publicly held entity.

(b) Data, records, or information produced or collected by or for faculty or staff of state institutions of higher learning in the conduct of or as a result of, study or research on commercial, scientific or technical subjects of a patentable or licensable nature, whether sponsored by the institution alone or in conjunction with a governmental body or private concern, until such data, records, or information have been publicly released, published, or patented.

(c) Those portions of research proposals, supporting documentation and information, submitted by an institution of higher learning to the Board of Regents' Louisiana Education Quality Support Fund Program, which have been certified by the institution as containing data, information, ideas, or plans of a potentially patentable or licensable nature, including any discussions or written comments concerning such information by reviewers of the proposals, but not including reviewer ratings, until such data, records, or information have been publicly released, published, or patented.

(d) Those portions of private document collections donated to state institutions of higher learning for historical research or preservation purposes, which are designated by the donor to have restricted access for a specific period of time.

(e) Test questions, scoring keys, and other examination data pertaining to the administration of an academic examination.

(f) Teaching materials used by faculty that are not provided to students, including unpublished lecture notes, outlines, slides, syllabi, or recordings.

(17) To any records or information required of hospitals by the Louisiana Department of Health as a condition of hospital licensure pursuant to R.S. 40:2104(B).

(18) To any records, writings, accounts, letters, letter books, photographs, or copies or memoranda thereof, and any report or reports concerning the fitness of any person to receive, or continue to hold, a license to practice chiropractic, in the custody or control of the Louisiana Board of Chiropractic Examiners. However, any final determination made by the board, and any legal grounds upon which such action is based, relative to the fitness of any person to receive or continue to hold a license to practice as a chiropractor shall be a public record.

(19) To any records or information defined as "confidential data" as provided in R.S. 40:3.1.

(20) To any records, notes, or maps within the Louisiana Department of Wildlife and Fisheries' Natural Heritage Program database on rare, threatened, or endangered species or unique natural communities.

(21) To any information received by the Department of Agriculture and Forestry as a result of questionnaires sent to private persons regarding the timber industry; however, the compiled results shall be public record. Notwithstanding the provisions of this Paragraph, the Department of Agriculture and Forestry shall provide any information which it receives as a result of such questionnaires to the Louisiana Tax Commission upon request of the commission.

(22) To any records or information defined as confidential under provisions of R.S. 40:2018(I).

(23) To the name and address of a law enforcement officer in the custody of the registrar of voters or the secretary of state, if certified by the law enforcement agency employing the officer that the officer is engaging in hazardous activities to the extent that it is necessary for his name and address to be kept confidential.

(24) To accident reports, and the information in accident reports, as provided in R.S. 32:398(K).

(25) To any information, documents, or records received by the Louisiana State Child Death Review Panel, or any local or regional panel established by the Louisiana State Child Death Review Panel defined as confidential under the provisions of R.S. 40:2019(F).

(26) To any records, writings, accounts, letters, exhibits, pictures, drawings, charts, photographs, or copies or memoranda thereof, in any reports of examinations or evaluations or any other information or data concerning the fitness of any person to receive, or continue to hold, a license or certificate to practice social work or clinical social work in the custody or control of the Louisiana State Board of Social Work Examiners. However, any final determination made by the board, and any legal grounds upon which such action is based, relative to the fitness of any person to receive or to continue to hold a license or certificate to practice social work shall be a public record.

(27)(a) To any testing instrument used or to be used by the state Department of Education or the State Board of Elementary and Secondary Education to assess the performance of individual students, nor to any answers for such tests or any individual student scores on such tests.

(b) Nothing in Subparagraph (a) of this Paragraph shall prohibit any person authorized by policies adopted by the state Department of Education or the State Board of Elementary and Secondary Education from having access to the test instrument, test answers, or any individual student scores on such tests as necessary for the performance of his duties and responsibilities, nor any parent or guardian of a child who has taken any such test from having access to or being provided the child's individual test scores.

(28) To the name of any person, contained within or referred to in the records, papers or files of the Crime Victims Reparations Board, applying for or receiving funds from the Crime Victims Reparations Fund. In lieu of the person's name, the person's file number shall be utilized.

(29) To any records, writings, accounts, recordings, letters, exhibits, data, pictures, drawings, charts, photographs, or copies or memoranda thereof, and any report or reports concerning the fitness of any person to receive or continue to hold a license to practice as a psychologist in the custody or control of the Louisiana State Board of Examiners of Psychologists or to receive or continue to hold a license to practice as a medical psychologist in the custody or control of or the Louisiana State Board of Medical Examiners; however, any action taken by the board and any legal grounds upon which such action is based, relative to the fitness of any person to receive or continue to hold a license to practice as a psychologist shall be a public record, and statistical reports which do not reveal the identity of any licensed psychologist may be released to the public.

(30) To personal information of toll patrons of the Crescent City Connection and the Greater New Orleans Expressway. For the purposes of this Paragraph "personal information" means the address, telephone number, social security number, or financial account numbers of a toll patron who pays toll charges when such information is supplied by a toll patron to the Crescent City Connection Division or the Greater New Orleans Expressway Commission, and the date or time a toll patron has traversed the Crescent City Connection or the Greater New Orleans Expressway.

(31) To proprietary information provided to a communications district by a service supplier, as defined in R.S. 33:9106. "Proprietary information" as used in this Paragraph shall mean customer telephone numbers, information relating to the quantity, technical destination, location, and amount of use of a telecommunications service subscribed to by any customer of a telecommunications carrier, and information that is made available to the carrier by the customer solely by virtue of the carrier-customer relationship.

(32) To any records, writings, accounts, recordings, letters, exhibits, data, pictures, drawings, charts, photographs, or copies of memoranda thereof, and any report concerning the fitness of any person to receive or continue to hold a license to practice as a practical nurse in the custody or control of the Louisiana State Board of Practical Nurse Examiners; however, any final determination made by the board, and any legal grounds upon which such action is based, relative to the fitness of any person to receive or continue to hold a license to practice as a practical nurse shall be a public record.

(33)(a) To the name, address, and telephone number of any student enrolled in any public elementary or secondary school in the state in a record of a public elementary or secondary school or a city or parish school board.

(b) Nothing in Subparagraph (a) of this Paragraph shall prohibit any official or employee of any public elementary or secondary school, the state Department of Education, or the State Board of Elementary and Secondary Education from having access to a student's name, address, and telephone number but only as necessary for the performance of his duties and responsibilities.

(34)(a) To the social security number of any teacher or school employee employed by a city, parish, or other local public school board or any nonpublic school.

(b) Nothing in Subparagraph (a) of this Paragraph shall prohibit any official or employee of any elementary or secondary school at which the teacher or school employee works, of the school board employing the teacher, of the state Department of Education, or of the State Board of Elementary and Secondary Education from having access to the social security number of a teacher or school employee but only as necessary for the performance of the duties and responsibilities of such official or employee.

(c) For the purposes of this Paragraph, "school board" shall include any city, parish, or other local public school board and the governing authority of any nonpublic school.

(35) To any records, writings, accounts, letters, exhibits, pictures, drawings, charts, or photographs, or copies or memoranda thereof, in any reports of examinations or evaluations or in any other information or data in the custody of the Louisiana Board of Pharmacy concerning the fitness of any person to receive, or continue to hold, a license, permit, certificate, or registration to practice or assist in the practice of pharmacy. However, any final determination made by the board and any legal grounds upon which such action is based, relative to the fitness of any person to receive or continue to hold a license, permit, certificate, or registration to practice or assist in the practice of pharmacy shall be a public record.

(36) To terms and conditions of the rebate agreement, rebate amounts, percent of rebate, manufacturer's pricing, and supplemental rebates which are contained in records of the Louisiana Department of Health and its agents with respect to supplemental rebate negotiations for prescription drug coverage by the Medicaid Program and which are prepared pursuant to a supplemental rebate agreement, provided that the total amount of supplemental rebates recouped by the department shall be a public record. Such information shall be considered proprietary and confidential, provided that such information shall be subject to review by the legislative auditor and the legislative fiscal officer.

(37) To any protected health information as defined in R.S. 29:762 pursuant to the Louisiana Health Emergency Powers Act.

(38) To any records, data, writings, accounts, reports, letters, exhibits, pictures, photographs, drawings, charts, maps, e-mail, or copies or memoranda thereof, whether written or oral, in the custody of the office of conservation contained in pipeline security procedures developed to prevent potential terrorist-related threats or activities, including physical security information, proprietary information, vulnerability assessments, operational plans and analysis of such information, and internal security information. Nothing in this Paragraph shall prevent the office of conservation from transmitting information to the United States Department of Transportation as necessary for the performance of their duties and functions.

(39) To any records, writings, accounts, letters, letter books, photographs, or copies or memoranda thereof, and any report or reports concerning the fitness of any person to receive, or continue to hold, a license to practice optometry, in the custody or control of the Louisiana State Board of Optometry Examiners. However, any final determination made by the board after an adjudication hearing, other than by consent order, agreement, or other informal disposition shall be a public record.

(40) To any records, writings, plans, blueprints, or any information pertaining to security systems or features submitted to obtain a building permit on file in the office of a regulatory agency or official; any records, writings, plans, blueprints, or information submitted to obtain a building permit which details the interior layout of a residence or public school building or facility to such an extent that access thereto would make such residence or public school building or facility particularly vulnerable to burglary or other criminal activity; or any records, writings, plans, blueprints, or information containing any proprietary work product, design, or plan of any architect or engineer submitted to obtain a building permit; however, this Chapter shall be applicable to any survey or plot plan submitted solely for the purposes of displaying the outline of a building on a lot or lots of record in order to show compliance with setback requirements of a zoning ordinance or other such regulatory law.

(41) To the following information related to a credit card issued to a public body: the entire credit card number, the credit card expiration date, the passcode or access code, the credit card personal identification number or "PIN", or any other information which could be used to make a charge to the credit card account or otherwise access the credit card account information; however, this Chapter shall apply to all other information regarding the credit card and credit card account.

(42) To any portion of a notarial examination administered or to be administered by the secretary of state, nor to any answers for such a notarial examination.

(43) To the information contained in an application of an applicant under the age of eighteen who is applying for membership on the Louisiana Legislative Youth Advisory Council, except as otherwise provided in R.S. 24:973.1(G).

(44) To any records, writings, accounts, letters, letter books, photographs, actual working papers, or copies thereof, any of which is in the custody or control of any officer, employee, or agent of the Louisiana Cemetery Board and which pertains to an investigation of the business of a cemetery authority that is under investigation; however any such record shall be public record and subject to the provisions of this Chapter when introduced as evidence before an administrative or other judicial tribunal or when the investigation is complete.

(45) To records, data, writings, accounts, reports, letters, exhibits, pictures, photographs, drawings, charts, maps, or copies thereof, whether written or oral, received from any person by the Department of Wildlife and Fisheries, which pertain to or in any way involve information relative to activities associated with the egg collection, stocking, captive breeding, or farming inventory of alligators, or shipment of alligators or alligator skins domestically, nationally, or internationally; however, aggregate, statistical reports that do not reveal, directly or by inference, the identity of the

individual source of the information compiled by the Department of Wildlife and Fisheries may be released to the public by the secretary of the department.

(46) To any records, writings, accounts, recordings, letters, exhibits, pictures, drawings, charts, photographs, or copies thereof, and any report or examinations or evaluations or any other information or data concerning the fitness of any person to receive or continue to hold a license or certificate to practice counseling and therapy in the custody or control of the Louisiana Licensed Professional Counselors Board of Examiners; however, any final action taken by the board, and any legal grounds upon which such action is based, relative to the fitness of any person to receive or to continue to hold a license or certificate to practice counseling and therapy may be released to the public.

(47)(a) To the physical medium or contents of any electronic storage device including any compact disc, digital video disc, jump drive, audio or video cassette tape, or any other type of electronic storage device, or to any shorthand or longhand notes or writings or stenotype paper tapes in the custody or under the control of a judge, clerk of court, official court reporter, deputy official court reporter, or certified electronic reporter and which are produced, made, or used by an official court reporter, deputy official court reporter, free lance reporter, or certified electronic reporter in any court of record of the state during any proceedings before that court to report the proceedings or for the purpose of transcribing into typewriting those portions of the proceedings required by law or by the court to be transcribed.

(b) The provisions of Subparagraph (a) of this Paragraph shall not apply to the physical medium or contents of any electronic storage device if used or referred to in any hearing, administrative proceedings, or disciplinary proceeding, the record of which is public according to law, before the Judiciary Commission of Louisiana, the Office of Disciplinary Counsel, the Louisiana Attorney Disciplinary Board, the Board of Examiners of Certified Shorthand Reporters, or any board, hearing officer, or panel of such entities.

(c) As used in this Paragraph, the terms "official court reporter", "deputy official court reporter", "free-lance reporter", and "certified electronic reporter" shall have the same meanings as provided in R.S. 13:961 and R.S. 37:2555.

(48) To any tax information in the possession of the Board of Tax Appeals that is required by law to be held confidential or privileged or to any internal correspondence among the members and staff of the Board of Tax Appeals pertaining to discussion of a case being adjudicated by the board.

(49) To questionnaires completed by members of a petit jury venire whether completed pursuant to the Code of Criminal Procedure Article 416.1 or upon response to a subpoena to jury service. This shall not prohibit the dissemination of such questionnaires to attorneys licensed in this state. This shall not prohibit the dissemination of venire lists as required by the Code of Criminal Procedure Article 417(B).

(50)(a) To security surveillance video of the capitol area and grounds or to any images on security surveillance video of the capitol area and grounds regardless of format.

(b) For purposes of this Paragraph, the phrase "capitol area and grounds" shall mean the state capitol and the parking areas and grounds immediately surrounding the state capitol, the capitol annex and the parking areas and grounds immediately surrounding the capitol annex, and the pentagon barracks buildings and the parking areas and grounds immediately surrounding the pentagon barracks buildings.

(51) To any records, writings, accounts, recordings, letters, exhibits, pictures, drawings, charts, photographs, memoranda, reports, examinations, or evaluations, or copies thereof, in the custody of the State Licensing Board for Contractors concerning the fitness of any person to receive or continue

to hold a license issued by the board. However, any such record may be released to the public in an administrative proceeding before the board, and any final determination made by the board relative to the fitness of any person to receive or to continue to hold a license issued by the board and any legal grounds upon which such determination is based shall be a public record.

(52) To any portion of an examination administered or to be administered by the State Licensing Board for Contractors, or to any answers for such an examination administered or to be administered by the board. However, any person who has taken an examination administered by the board may inspect his examination.

(53) To any records, writings, accounts, recordings, letters, exhibits, pictures, drawings, charts, photographs, memoranda, reports, examinations, or evaluations, or copies thereof, concerning the fitness of any person to receive or continue to hold a certificate issued pursuant to Chapter 32 of Title 37 of the Louisiana Revised Statutes of 1950 in the custody or control of the Board of Examiners of Certified Shorthand Reporters. However, any such record may be released to the public in an administrative proceeding before the board, and any final determination made by the board relative to the fitness of any person to receive or to continue to hold a certificate issued pursuant to Chapter 32 of Title 37 of the Louisiana Revised Statutes of 1950 and any legal grounds upon which such determination is based shall be a public record.

(54) To the personal information of a peace officer as provided in R.S. 15:1212.1(E) in the custody of the Council on Peace Officer Standards and Training or the Louisiana Commission on Law Enforcement and Administration of Criminal Justice.

(55) To any records, writings, accounts, recordings, letters, exhibits, pictures, drawings, charts, photographs, memoranda, reports, examinations, or evaluations, or copies thereof, in the custody or control of the State Board of Architectural Examiners concerning the fitness of any person to receive or continue to hold a license or certificate of registration to practice architecture. However, any such record may be released to the public in an administrative proceeding before the board, and any final determination made by the board relative to the fitness of any person to receive or continue to hold a license or certificate of registration to practice architecture and any legal grounds upon which such determination is based shall be a public record.

(56) To personally identifiable information of any person who reports a violation of a student code of conduct or other policy intended for the safety of students or employees of a postsecondary education institution, personally identifiable information of any reported witness to the reported violation, and, if the reported violation involves violence or abuse, personally identifiable information of any person who may be a victim of violence or abuse directly related to the reported violation if such information is in the custody or control of the postsecondary education institution or management board and was received in accordance with adopted, written policies applicable to the postsecondary education institution and the students and employees of the postsecondary education institution, unless access to the information is specifically required by other provisions of law of this state or by federal law or is ordered by a court under rules of discovery.

(57)(a) To the social security number, driver's license number, financial institution account number, credit or debit card number, or armed forces identification number of a private person who has submitted the information to a public body or official.

(b) The provisions of Subparagraph (a) of this Paragraph shall not apply to such information in records recorded in the mortgage or conveyance records, in records of a court, or in marriage records.

(c) The provisions of Subparagraph (a) of this Paragraph shall not prohibit the disclosure of the driver's license number of a person to an insurer or insurance support organization, or a self-insured entity, or its agents, employees, or contractors, in connection with claims investigation activities, antifraud activities, rating, or underwriting.

(d) The provisions of Subparagraph (a) of this Paragraph shall not prohibit the disclosure of the driver's license number of a person to a person or entity eligible to receive driver's license or vehicle information contained in the records of the office of motor vehicles when such person or entity is eligible to receive the information pursuant to the federal Driver's Privacy Protection Act.

(58) To any patient healthcare data required by operation of law or regulation to be reported by a healthcare provider to the state without the express written consent of the patient or the patient's parent or legal guardian.

(59) To any records, data, writings, accounts, reports, recordings, letters, exhibits, pictures, drawings, charts, photographs, memoranda, evaluations, or copies thereof, in the custody or control of any state agency, department, board, or commission required to deposit monies in the state treasury in accordance with Article VII, Section 9(A) of the Constitution of Louisiana, concerning cybersecurity plans, financial security procedures, or the assessment or implementation of any such plans or procedures.

(60) To the specific monetary value and name of the company that remitted assets held in the state treasury pursuant to the Uniform Unclaimed Property Act of 1997, except as provided by R.S. 9:161.

(61) To the name, address, telephone number, email address, social security number, driver's license number, or copy of a license or other form of identification provided by a claimant of property held in the state treasury pursuant to the Uniform Unclaimed Property Act of 1997, except as provided by R.S. 9:161. However, the provisions of this Paragraph shall not prevent a judgment creditor or a person who can demonstrate entitlement to the property from obtaining the name and address of a claimant of property through a public records request.

(62)(a) To any records, files, documents, and communications, and information contained therein, that are made, generated, received, or maintained by or in connection with a peace officer and public safety personnel peer support program or session conducted by a trained peer support member, as defined in R.S. 40:2411(C) or any other provision of law.

(b) To any records, files, documents, and communications, and information contained therein, that are made, generated, received, or maintained by the Louisiana Commission on Law Enforcement and Administration of Criminal Justice relating to the personal information of approved peer support members as defined in R.S. 40:2411(C) or any other provision of law.

NOTE: Paragraph (63) not eff. unless and until sufficient funds are available through nongovernmental sources or are specifically appropriated by the legislature. See Acts 2021, No. 320.

(63) To any information, documents, or records received by the Louisiana Domestic Abuse Fatality Panel, or any local or regional panel of the Louisiana Domestic Abuse Fatality Review Panel defined as confidential under the provisions of R.S. 40:2024.5.

(64) To any information, documents, or records received by an overdose fatality review panel defined as confidential under the provisions of R.S. 40:2025.5.

Amended by Acts 1950, No. 155, §1; Acts 1976, No. 133, §1, eff. July 16, 1976; Acts 1979, No. 639, §1; Acts 1981, No. 898, §1, eff. Aug. 2, 1981; Acts 1982, No. 387, §1; Acts 1982, No. 867, §1, eff. Aug. 4, 1982; Acts 1983, No. 590, §2, eff. July 14, 1983; Acts 1984, No. 664, §1, eff. July 13, 1984; Acts 1985, No. 62, §1; Acts 1986, No. 215, §1; Acts 1986, No. 784, §1; Acts 1987, No. 732, §1; Acts 1988, No. 296, §1; Acts 1988, No. 102, §1, eff. June 29, 1988; Acts 1989, No. 229, §2; Acts 1989, No. 533, §1; Acts 1990, No. 59, §2, eff. June 26, 1990; Acts 1990, No. 67, §1; Acts 1990, No. 769, §1; Acts 1990, No. 831, §1, eff. July 24, 1990; Acts 1991, No. 167, §1; Acts 1991, No. 477, §1, eff. July 15, 1991; Acts 1991, No. 515, §2; Acts 1991, No. 810, §2; Acts 1992, No. 878, §2; Acts 1993, No. 837, §2, eff. July 1, 1993; Acts 1995, No. 1203, §2, eff. June 29, 1995; Acts 1997, No. 366,

§4; Acts 1999, No. 736, §2; Acts 1999, No. 793, §2; Acts 2000, 1st Ex. Sess., No. 48, §1, eff. April 17, 2000; Acts 2000, 1st Ex. Sess., No. 58, §1; Acts 2001, No. 451, §4, eff. Jan. 12, 2004; Acts 2001, No. 481, §1; Acts 2001, No. 534, §1, eff. June 21, 2001; Acts 2001, No. 581, §1; Acts 2001, No. 748, §1; Acts 2001, No. 789, §1, eff. June 26, 2001; Acts 2001, No. 798, §2; Acts 2001, No. 1102, §9; Acts 2001, No. 1107, §1; Acts 2002, 1st Ex. Sess., No. 124, §1, eff. April 23, 2002; Acts 2003, No. 658, §1, eff. June 27, 2003; Acts 2003, No. 987, §2; Acts 2003, No. 1055, §1, eff. July 2, 2003; Acts 2003, No. 1206, §2; Acts 2004, No. 149, §1, eff. June 10, 2004; Acts 2006, No. 424, §1, eff. June 15, 2006; Acts 2007, No. 155, §1, eff. June 25, 2007; Acts 2007, No. 459, §2, eff. Jan. 1, 2008; Acts 2008, No. 415, §2, eff. Jan. 1, 2009; Acts 2008, No. 765, §2, eff. July 6, 2008; Acts 2009, No. 251, §10, eff. Jan. 1, 2010; Acts 2010, No. 769, §1; Acts 2012, No. 267, §1; Acts 2012, No. 460, §1; Acts 2012, No. 593, §1; Acts 2012, No. 801, §1, eff. June 13, 2012; Acts 2013, No. 220, §19, eff. June 11, 2013; Acts 2014, No. 161, §1; Acts 2014, No. 705, §1; Acts 2014, No. 710, §1, eff. June 18, 2014; Acts 2014, No. 791, §16; Acts 2016, No. 382, §1; Acts 2016, No. 436, §1; Acts 2017, No. 272, §3, eff. June 16, 2017; Acts 2018, No. 76, §1, eff. May 10, 2018; Acts 2018, No. 512, §1; Acts 2019, No. 7, §1; Acts 2019, No. 256, §1; Acts 2020, No. 211, §2, eff. June 11, 2020; Acts 2021, No. 66, §3, eff. June 4, 2021; Acts 2021, No. 222, §1; Acts 2021, No. 238, §2; Acts 2021, No. 283, §2; Acts 2021, No. 320, §3, see Act; Acts 2023, No. 150, §17, eff. Jan. 10, 2024; Acts 2023, No. 291, §2; Acts 2024, No. 498, §2; Acts 2024, No. 507, §3.

RS 44:4.1

Exceptions

§4.1. Exceptions

A. The legislature recognizes that it is essential to the operation of a democratic government that the people be made aware of all exceptions, exemptions, and limitations to the laws pertaining to public records. In order to foster the people's awareness, the legislature declares that all exceptions, exemptions, and limitations to the laws pertaining to public records shall be provided for in this Chapter or the Constitution of Louisiana. Any exception, exemption, and limitation to the laws pertaining to public records not provided for in this Chapter or in the Constitution of Louisiana shall have no effect.

B. The legislature further recognizes that there exist exceptions, exemptions, and limitations to the laws pertaining to public records throughout the revised statutes and codes of this state. Therefore, the following exceptions, exemptions, and limitations are hereby continued in effect by incorporation into this Chapter by citation:

(1) R.S. 3:556.10, 559.9, 750, 1401, 1413, 1430.7, 1435, 3204, 3221, 3370, 3421, 3524, 3706, 4021, 4110, 4162

(2) R.S. 6:103, 122, 135, 1308

(3) R.S. 9:172, 224, 313, 331.1, 395, 461, 1033, 3518.1, 3556, 3574.6, 3576.21

(4) R.S. 11:174

(5) R.S. 12:1702, 1858, 1864

(6) R.S. 13:1905, 2593, 3715.3, 3715.4, 3734, 4687, 5108.1, 5304, 5366(L)

(7) R.S. 14:403, 403.1, 403.5

(8) R.S. 15:242, 440.6, 440.8, 477.2, 549, 570, 574.12, 574.12.1, 578.1, 587, 587.1.2, 616, 660, 840.1, 1176, 1204.1, 1212.1(E), 1507

NOTE: Paragraph (9) eff. until an Act of the Louisiana Legislature containing a specific appropriation of monies for the implementation of Act 425 of the 2025 Regular Session becomes effective. See Acts 2025, No. 425.

(9) R.S. 17:7.2, 46, 47, 81.9, 391.4, 407.28, 407.47, 407.65, 500.2, 1175, 1202, 1237, 1252, 1948, 1989.7, 2047, 2048.31, 3099, 3100.8, 3136, 3137, 3138.12, 3390, 3703, 3773, 3884

NOTE: Paragraph (9) eff. upon an Act of the Louisiana Legislature containing a specific appropriation of monies for the implementation of Act 425 of the 2025 Regular Session becomes effective. See Acts 2025, No. 425.

(9) R.S. 17:7.2, 46, 47, 81.9, 391.4, 407.28, 407.47, 407.65, 416.16.1, 500.2, 1175, 1202, 1237, 1252, 1948, 1989.7, 2047, 2048.31, 3099, 3100.8, 3136, 3137, 3138.12, 3390, 3703, 3773, 3884

(10) R.S. 18:43, 44, 114, 116, 154, 1300.3, 1300.5, 1308, 1491.5, 1495.3, 1511.8

(11) R.S. 22:2, 14, 31, 42.1, 88, 244, 263, 265, 461, 550.7, 550.22, 550.29, 550.30, 571, 572, 572.1, 572.2, 574, 601.3, 618, 639, 691.4, 691.5, 691.6, 691.7, 691.8, 691.9, 691.9.1, 691.10, 691.38, 691.56, 732, 752, 753, 771, 834, 972(D), 976, 1008, 1019.2, 1203, 1276, 1460, 1464, 1466, 1483.1, 1488, 1546, 1559, 1566(D), 1644, 1656, 1657.1, 1660.7, 1723, 1796, 1801, 1808.3, 1869, 1927, 1929, 1983, 1984, 2036, 2045, 2056, 2085, 2091, 2293, 2303, 2508

(12) R.S. 23:1177, 1197, 1200.7, 1291, 1292, 1293, 1306, 1660, 1671

(13) R.S. 24:513, 513.1, 513.3, 518

(14) R.S. 25:1014.

(15) R.S. 26:921

(16) R.S. 27:13, 21, 22, 25, 45, 61, 237

(17) R.S. 28:56, 215.4

(18) R.S. 29:765

(19) R.S. 30:10.1, 124.1, 209.1, 213, 215, 907, 908, 916, 2030, 2074, 2351, 2351.54, 2564

(20) R.S. 32:398, 403.3, 707.2, 1254

(21) R.S. 33:130.409, 1334, 2182, 2428, 4720.151, 4720.161, 4720.171, 4891, 9109, 9128, 9614

(22) R.S. 34:340.21, 1005, 3499.2

(23) R.S. 36:108

(24) R.S. 37:74, 86, 90, 147, 691, 711.10, 763, 763.1, 781, 799, 920.1, 969.1, 1123(E), 1249.1, 1277, 1278, 1285, 1326, 1338.1, 1360.53.1, 1360.104.1, 1518, 1745.15, 1747, 1806, 2156.1, 2406, 2505.1, 2863.1, 3276.2, 3481, 3507.1

(25) R.S. 38:2212.1, 2220.3, 3053, 3104

(26) R.S. 39:372, 1435, 2370.16

(27) R.S. 40:3.1, 31.14, 31.27, 39.1, 41, 73, 95, 96, 526, 528, 973.1, 978.2.1, 1007, 1061.21, 1079.18, 1081.10, 1105.6, 1105.8, 1125.14, 1133.8, 1168.3, 1171.4, 1203.4, 1231.4, 1379.1.1(D), 1379.3, 2009.8, 2009.14, 2010.5, 2017.9, 2018, 2018.5, 2019, 2020, 2106, 2109.1, 2138, 2175.7(B)(1), 2193.6, 2532, 2845.1

(28) R.S. 41:1609

(29) R.S. 42:17, 57, 355, 1111, 1141.4, 1158, 1161, 1193, 1194

(30) R.S. 44:19, 408, 425

(31) R.S. 45:1313(C)

(32) R.S. 46:56, 123(K), 236.1.1 through 238, 284, 286.1, 439.1, 446.1, 1073, 1355, 1806, 1831.5, 1844, 1862, 1923, 2124.1, 2134, 2187, 2356, 2416, 2597, 2603, 2625

(33) R.S. 47:15, 349, 633.6, 1508, 1515.3, 1516, 1524(G), 1837, 2130, 2327, 2605, 6026, 9006

(34) R.S. 48:255.1

(35) R.S. 49:220.25, 975.1, 980.1, 997, 1055

(36) R.S. 51:710.2(B), 705, 706, 936, 1363.1, 1404, 1926, 1934, 2113, 2182, 2262, 2318, 2370.3, 2370.16, 2370.25, 2370.27, 2389

(37) R.S. 56:301.4, 306.5, 433.1(A)(4), 637

(38) Code of Civil Procedure Articles 891, 1426

(39) Code of Criminal Procedure Articles 103, 234, 877, 894, Title XXXIV of the Code of Criminal Procedure comprised of Articles 971 through 995, Title XXXV of the Code of Criminal Procedure comprised of Articles 1001 through 1004

(40) Children's Code Articles 328, 328.2, 404, 412, 424.6, 424.9, 441, 543, 545, 615, 616, 616.1, 663, 737, 793, 888, 891, 893, 920, 921, 922, 1007, 1106, 1107, 1185, 1186, 1187, 1207, 1213, 1229, 1235, 1252, 1273, 1283.5, 1283.10, 1416, 1453, 1568

C. The provisions of this Chapter shall not apply to any writings, records, or other accounts that reflect the mental impressions, conclusions, opinions, or theories of an attorney or an expert, obtained or prepared in anticipation of litigation or in preparation for trial.

D. The provisions of this Chapter shall not apply to any writings, records, or reports of cyber incidents or payment of cyber ransoms submitted to the Louisiana Fusion Center pursuant to R.S. 51:2114 for sixty days from the date of submission of the reports to the commission, nor shall this Chapter apply to information that constitutes critical infrastructure information as defined in 6 U.S.C. 671 regardless of whether the information has been shared with any federal governmental agency.

Acts 2001, No. 882, §1; Acts 2003, No. 221, §3, eff. June 5, 2003; Acts 2003, No. 283, §2; Acts 2003, No. 540, §2, eff. June 27, 2003; Acts 2003, No. 667, §2; Acts 2003, No. 1206, §2; Acts 2003, No. 1245, §2; Acts 2004, No. 699, §1; Acts 2004, No. 865, §3, eff. July 12, 2004; Acts 2005, No. 63, §2; Acts 2005, No. 119, §2, eff. Jan. 1, 2006; Acts 2005, No. 250, §2; Acts 2006, No. 227, §2; Acts 2006, No. 464, §2, eff. June 15, 2006; Acts 2006, No. 676, §2, eff. July 1, 2006; Acts 2006, No. 723, §2, eff. June 29, 2006; Acts 2007, No. 55, §2, eff. June 18, 2007; Acts 2007, No. 274, §2; Acts 2008, 1st Ex. Sess., No. 12, §2, eff. April 26, 2008; Acts 2008, No. 211, §2; Acts 2008, No. 415, §2, eff. Jan. 1, 2009; Acts 2008, No. 506, §1, eff. Jan. 1, 2009; Acts 2008, No. 532, §3; Acts 2008, No. 881, §2; Acts 2008, No. 891, §2, eff. July 9, 2008; Acts 2008, No. 901, §2, eff. July 1, 2008; Acts 2008, No. 912, §2, eff. July 14, 2008; Acts 2009, No. 45, §2; Acts 2009, No. 263, §3; Acts 2009, No. 345, §1, eff. July 6, 2009; Acts 2009, No. 367, §2, eff. July 6, 2009; Acts 2009, No. 434, §2, eff. July 7, 2009; Acts 2009, No. 474, §2; Acts 2009, No. 485, §2, eff. Jan. 1, 2010; Acts 2009, No. 535, §2, eff. Jan. 1, 2010; Acts 2010, No. 211, §2; Acts 2010, No. 579, §2; Acts 2010, No. 600, §1; Acts 2010, No. 610, §2, eff. June 25, 2010; Acts 2010, No. 688, §2, eff. Jan. 1, 2011; Acts 2010, No. 789, §1, eff. June 30, 2010; Acts 2010, No. 794, §3; Acts 2010, No. 861, §19; Acts 2010, No. 907, §2; Acts 2010, No. 934, §2; Acts 2010, No. 968, §2; Acts 2010, No. 974, §2, eff. Jan. 1, 2011; Acts 2011, No. 266, §1; Acts 2012, No. 586, §1, eff. June 7, 2012; Acts 2012, No. 835, §3, eff. Jan. 1, 2013; Acts 2013, No. 173, §2, eff. Jan. 1, 2014; Acts 2013, No. 205, §2, eff. June 10, 2013; Acts 2013, No. 209, §2; Acts 2013, No. 220, §19, eff. June 11, 2013; Acts 2013, No. 349, §2, eff. Jan. 1, 2014; Acts 2013, No. 402, §2; Acts 2013, No. 418, §2, eff. June 21, 2013; Acts 2014, No. 145, §2; Acts 2014, No. 328, §2, eff. Jan. 1, 2015; Acts 2014, No. 427, §2; Acts 2014, No. 635, §2, eff. June 12, 2014; Acts 2014, No. 695, §2, eff. June 18, 2014; Acts 2014, No. 716, §2; Acts 2014, No. 846, §1; Acts 2015, No. 196, §2, eff. Jan. 1, 2016; Acts 2015, No. 242, §4; Acts 2015, No. 304, §2, eff. Jan. 1, 2016; Acts 2015, No. 316, §2; Acts 2015, No. 327, §2; Acts 2016, No. 312, §2; Acts 2016, No. 345, §2; Acts 2016, No. 494, §5; Acts 2017, No. 242, §2, eff. Jan. 1, 2018; Acts 2017, No. 272, §3, eff. June 16, 2017; Acts 2017, No. 362, §4; Acts 2018, No. 362, §2, eff. May 20, 2018; Acts 2018, No. 371, §2, eff. Jan. 1, 2020; Acts 2018, No. 497, §3, eff. May 23, 2018; Acts 2018, No. 579, §2; Acts 2018, No. 687, §4, eff. May 30, 2018; Acts 2019, No. 207, §2; Acts 2019, No. 219, §2; Acts 2019, No. 243, §3, eff. June 11, 2019; Acts 2019, No. 244, §2; Acts 2019, No. 262, §2; Acts 2019, No. 262, §3, eff. Jan. 1, 2020; Acts 2019, No. 265, §2; Acts 2019, No. 280, §4; Acts 2019, No. 413, §3, eff. June 20, 2019; Acts 2019, No. 423, §2, eff. June 20, 2019; Acts 2019, No. 427, §2; Acts 2019, No. 434, §2(B), eff. June 30, 2019; Acts 2020, No. 117, §1, eff. Feb. 1, 2021; Acts 2020, No. 283, §2; Acts 2020, No. 321, §2; Acts 2021, No. 21, §1, eff. June 1, 2021; Acts 2021, No. 66, §3, eff. June 4, 2021; Acts 2021, No. 165, §2, eff. Jan. 1, 2022; Acts 2021, No. 192, §2; Acts 2021, No. 231, §1, eff. June 11, 2021; Acts 2021, No. 425, §2; Acts 2021, No. 456, §2, eff. June 23, 2021; Acts 2021, No. 477, §2, eff. July 1, 2021; Acts 2022, No. 103, §1, eff. May 25, 2022; Acts 2022, No. 288, §1; Acts 2022, No. 307, §2, eff. June 10, 2022; Acts 2022, No. 413, §1, eff. June 15, 2022; Acts 2022, No. 494, §1, eff. June 16, 2022; Acts 2022, No. 619, §2, eff. Jan. 1, 2023; Acts 2022, No. 647, §3; Acts 2022, No. 729, §2, eff. June 20, 2022; Acts 2022,

No. 760, §2, eff. June 18, 2022; Acts 2023, No. 13, §3, eff. Oct. 1, 2023; Acts 2023, No. 124, §2, eff. June 6, 2023; Acts 2023, No. 172, §2; Acts 2023, No. 259, §§2, 3, eff. June 12, 2023; Acts 2023, No. 383, §2; Acts 2023, No. 394, §2, eff. July 1, 2023; Acts 2023, No. 451, §1; Acts 2024, 2nd Ex. Sess., No. 5, §2, eff. July 1, 2024; Acts 2024, No. 237, §4, eff. May 23, 2024; Acts 2024, No. 533, §2, eff. June 10, 2024; Acts 2024, No. 550, §2, eff. Jan. 1, 2025; Acts 2024, No. 654, §3; Acts 2025, No. 128, §4; Acts 2025, No. 229, §3; Acts 2025, No. 312, §2; Acts 2025, No. 313, §3; Acts 2025, No. 425, §2, eff. See Act; Acts 2025, No. 429, §2, eff. Jan, 1, 2026; Acts 2025, No. 458, §7, eff. Oct. 1, 2025; Acts 2025, No. 474, §3, eff. June 20, 2025.

RS 44:5

Records of the governor

§5. Records of the office of the governor

A. The legislature recognizes that it is essential to the maintenance of a democratic society that public business be performed in an open and public manner, and that the citizens be advised of and be aware of the performance of public officials and the deliberations and decisions that go into making public policy. Toward this end, the provisions of this Section, as well as the rest of this Chapter, shall be construed liberally so as to facilitate, rather than hinder, access to public records.

B.(1) Records of the office of the governor shall be public records and shall be subject to the provisions of this Chapter.

(2) Records of the office of the governor relative to fiscal or budgetary matters, including but not limited to records of communications between the legislative auditor's office and the office of the governor relative to fiscal or budgetary matters, shall be public records.

(3) Notwithstanding Paragraphs (1) and (2) of this Subsection, a record of the office of the governor relating to intraoffice communications of the governor and his internal staff may be privileged from disclosure.

(4) Notwithstanding Paragraphs (1) and (2) of this Subsection, any record of the office of the governor pertaining to the schedule of the governor, his spouse, or his child that contains security details that, if made public, may impair the safety of the governor, his spouse, or his child may be held confidential. However, nothing in this Paragraph shall be interpreted or construed in a manner to make confidential all records concerning a meeting or event that the governor attends and transportation related thereto. The governor may keep a record concerning a meeting or event that the governor attends and transportation thereto privileged for a period not to exceed seven days after the occurrence of the meeting or event.

(5) For purposes of this Section, "office of the governor" means the governor, his chief of staff, deputy chief of staff, and his executive counsel.

C. The provisions of Subsection B of this Section shall not prevent any person from inspecting, examining, copying, or obtaining an electronic or physical reproduction of any record pertaining to any money or monies, any assets or items of economic value to the state, or any financial transactions in the control of or handled by or through the governor or the office of the governor.

D. The governor and his internal staff shall preserve all records to which this Section is applicable and at the conclusion of his term of office, the governor shall transfer all such records to the custody of the archives division of the secretary of state. Any exemption granted by this Section for such records shall continue in accordance with Subsection E of this Section. For purposes of this Section, "internal staff" of the governor includes the governor's chief of staff, deputy chief of staff, executive counsel, and director of policy, but shall not include any employee of any other agency, department, or office.

E. Any exemption granted by this Section shall lapse eight years after the creation of the record to which the exemption is applicable. After the lapse of eight years, the records of the office of the governor, as maintained by the state archivist and deposited with the state archives program pursuant to R.S. 44:417, shall be public record.

Acts 2001, No. 8, §13, eff. July 1, 2001; Acts 2001, No. 9, §6, eff. July 1, 2001; Acts 2003, No. 850, §2; Acts 2008, No. 765, §3, eff. Jan. 1, 2009; Acts 2009, No. 495, §1; Acts 2015, No. 145, §1, eff. noon on Jan. 11, 2016; Acts 2024, No. 495, §1, eff. June 4, 2024.

NOTE: See Acts 2015, No. 145, §2, regarding prospective application of provisions.

RS 44:5.1

Records of the office of a statewide elected official

§5.1. Records of the office of a statewide elected official

A. Any record of the office of a statewide elected official that pertains to the schedule of the official or of an employee of the office and that contains security details that, if made public, may impair the safety of the official may be held confidential for a period of seven days following a scheduled event. However, nothing in this Section shall be interpreted or construed in a manner to make confidential all records concerning the schedule of the official or of an employee of the office nor alter any legal deadlines contained in this Chapter.

B. For purposes of this Section, "statewide elected official" means the lieutenant governor, secretary of state, attorney general, treasurer, commissioner of agriculture, and commissioner of insurance.

Acts 2024, No. 638, §1.

RS 44:6

Completed reports of the Legislative Auditor

§6. Completed reports of the Legislative Auditor

The completed reports of audits of the Legislative Auditor shall be public records and shall be available at the office of the Legislative Auditor three days after the completion of the reports.

Amended by Acts 1982, No. 117, §1.

RS 44:7

Hospital records

§7. Hospital records

A. Except as provided in Subsections B, C, and E of this Section and R.S. 44:17, the charts, records, reports, documents, and other memoranda prepared by physicians, surgeons, psychiatrists, nurses, and employees in the public hospitals of Louisiana, adult or juvenile correctional institutions, public mental health centers, and public schools for the mentally deficient to record or indicate the past or present condition, sickness or disease, physical or mental, of the patients treated in the hospitals are exempt from the provisions of this Chapter, except the provisions of R.S. 44:36 and 39. Nothing herein shall prevent hospitals from providing necessary reports pursuant to R.S. 22:976, R.S. 29:765, R.S. 40:2019, and R.S. 44:17, nor shall any liability arise from the good faith compliance therewith.

B. The governing authority of each public hospital, adult or juvenile correctional institution, public mental health center or public state school for the mentally deficient, may make and enforce rules under which these charts, records, reports, documents or other memoranda may be exhibited, or copied by or for persons legitimately and properly interested in the disease, physical or mental, or in the condition of patients.

C. Whenever the past or present condition, sickness or disease, physical or mental, of any patient treated in any hospital, adult or juvenile correctional institution, center or school, set forth in Subsection A of this Section shall be at issue or relevant in any judicial proceeding, the charts, records, reports, documents and other memoranda referred to in said Subsection A shall be subject to discovery, subpoena and introduction into evidence in accordance with the general law of the state relating to discovery, subpoena and introduction into evidence of records and documents.

D. The records and proceedings (1) of any public hospital committee, medical organization committee, or extended care facility committee established under state or federal law or regulations or under the bylaws, rules, or regulations of such organization or institution or (2) of any hospital committee, medical organizational committee, or extended care facility committee established by a private hospital licensed under the provisions of R.S. 40:2100 et seq. shall be confidential and shall be used by such committee and the members thereof only in the exercise of the proper functions of the committee and shall not be public records and shall not be available for court subpoena. No physician; hospital, whether public or private; organization; or institution furnishing information, data, reports, or records to any such committee with respect to any patient examined or treated by such physician or confined in such hospital or institution shall, by reason of furnishing such information, be liable in damages to any person. No member of such a committee shall be liable in damages to any person for any action taken or recommendation made within the scope of the functions of such committee if such committee member acts without malice and in the reasonable belief that such action or recommendation is warranted by the facts known to him. However, medicaid or medicare benefits or insurance benefits provided by a private insurer shall not be denied to any person due to inability to secure records or proceedings referred to in this Section. Nothing contained herein shall be construed to prevent disclosure of such data to appropriate state or federal regulatory agencies which by statute or regulation are otherwise entitled to access to such data.

E. The governing authority of each public hospital, adult or juvenile correctional institution, public mental health center, or public state school for the mentally deficient, shall make available for inspection and copying and shall release upon request an abstract of the patient's record in which all identifying data has been properly encoded to assure confidentiality relating to patients treated in such institutions to the Louisiana cancer registry program established pursuant to R.S. 40:1229.70 et seq.

F. All records of interviews, health surveys, questionnaires, laboratory and clinical data, reports, statements, notes, and memoranda, which contain identifying characteristics of research subjects,

hereinafter referred to as "confidential data", and which are procured and prepared by employees of public universities, medical schools, and colleges for the purpose of research, and acting in accordance with institutional Internal Review Board policy and procedures for research involving human subjects, shall be exempt from the provisions of this Chapter and shall be subject to the following provisions:

(1) No part of the confidential data shall be available for subpoena nor shall it be disclosed, discoverable, or be compelled to be produced in any civil, criminal, administrative, or other proceeding, nor shall such records be deemed admissible as evidence in any civil, criminal, or administrative proceeding, or other tribunal or court for any reason.

(2) Nothing in this Section shall prohibit the publishing of data that does not identify individuals or groups which have been assured confidentiality of identification.

(3) Nothing in this Section shall prohibit the publication of results of the research that maintains the confidentiality of the identification of the individual or group that is the subject of research pursuant to this Section.

(4) Nothing in this Section shall prohibit the voluntary disclosure of identifying characteristics of research subjects provided the researcher obtains the consent of the individuals so identified prior to the release of the information.

Amended by Acts 1962, No. 112, §1; Acts 1974, No. 315, §1; Acts 1975, No. 679, §1; Acts 1978, No. 660, §3; Acts 1979, No. 496, §1; Acts 1981, No. 417, §1; Acts 1991, No. 427, §2; Acts 1991, No. 659, §2; Acts 1995, No. 521, §2, eff. Jan. 1, 1996; Acts 1997, No. 890, §1, eff. July 10, 1997; Acts 1999, No. 736, §2; Acts 2003, No. 1206, §2; Acts 2008, No. 415, §2, eff. Jan. 1, 2009.

NOTE: See Acts 1997, No. 890, §2, relative to retroactivity.

RS 44:8

Louisiana office building corporation, special provisions

§8. Louisiana office building corporation, special provisions

A. The private, nonprofit corporation known as the Louisiana Office Building Corporation, incorporated in the parish of East Baton Rouge on June 30, 1965, is hereby declared to be a quasi-public corporation. All papers, documents, contracts, legal agreements, correspondence, minutes of meetings and any other record whatsoever of said corporation are hereby declared to be matters of public record, and shall be open to inspection by state officials and employees, members of the Legislature and legislative staff personnel and the general public. The officers, members of the board of directors, agents and employees of said corporation are hereby authorized and directed to grant access to any record of said corporation upon request. The procedure for access to records under the authority of this Section shall be in keeping with the general provisions for access to public records contained in Chapter I of this Title.

B. All officers, directors and employees of the Louisiana Office Building Corporation who are also elected officials of the State of Louisiana shall be subject to the provisions of the code of ethics for state elected officials contained in R.S. 42:1141 through 1148 with reference to actions taken in their capacities as such officers, directors or employees of the said corporation. All other officers, directors and employees of the corporation shall be subject to the provisions of the code of ethics for state employees contained in R.S. 42:1111 through 1123 to the same extent as any state employees.

C. All books and records of the Louisiana Office Building Corporation shall be subject to audit and review by the Legislative Auditor to the same extent as all other state departments or agencies.

Added by Acts 1966, No. 429, §§1 to 3.

RS 44:9

Repealed by Acts 2014, No. 145, §3.

§9. Repealed by Acts 2014, No. 145, §3.

RS 44:10

Confidential nature of documents and proceedings of judiciary commission

§10. Confidential nature of documents and proceedings of judiciary commission

All documents filed with, and evidence and proceedings before the judiciary commission are confidential. The record filed by the commission with the supreme court and proceedings before the supreme court are not confidential.

Added by Acts 1975, No. 55, §1.

RS 44:11

Confidential nature of certain personnel records; exceptions

§11. Confidential nature of certain personnel records; exceptions

A. Notwithstanding anything contained in this Chapter or any other law to the contrary, the following items in the personnel records of a public employee of any public body shall be confidential:

(1) The home and personal wireless telephone number of the public employee.

(2) The home address of the public employee.

(3) The personal email address or addresses of the public employee.

(4) The name and account number of any financial institution to which the public employee's wages or salary are directly deposited by an electronic direct deposit payroll system or other direct deposit payroll system.

B. Notwithstanding any other provision of this Chapter, the social security number and financial institution direct deposit information as contained in the personnel records of a public employee of any public body shall be confidential. However, when the employee's social security number or financial institution direct deposit information is required to be disclosed pursuant to any other provision of law, including such purposes as child support enforcement, health insurance, and retirement reporting, the social security number or financial institution direct deposit information of the employee shall be disclosed pursuant to such provision of law.

C. Notwithstanding anything contained in this Chapter or any other law to the contrary, all medical records, claim forms, insurance applications, requests for the payment of benefits, and all other health records of public employees, public officials, and their dependents in the personnel records of any public body shall be confidential. However, nothing in this Chapter shall be intended to limit access to employee records under the Code of Civil Procedure or Code of Evidence.

Added by Acts 1982, No. 24, §1, eff. July 9, 1982; Acts 1987, No. 371, §1; Acts 1988, No. 591, §1; Acts 1999, No. 371, §1; Acts 2003, No. 326, §1, eff. June 13, 2003; Acts 2003, No. 342, §1; Acts 2013, No. 182, §1, eff. June 10, 2013; Acts 2024, No. 295, §1; Acts 2024, No. 495, §1, eff. June 4, 2024.

RS 44:11.1

Limited access to domiciliary address information for judges

§11.1. Limited access to domiciliary address information for judges

A. Any judge of a court of record may request to have his name removed from information concerning his domiciliary address on a publicly accessible website containing the property assessment rolls of a parish property tax assessor or collector. The request shall be a written request submitted each year to the parish property tax assessor or collector, and the judge shall provide proof of the current holding of judicial office with the written request.

B. A person wishing to access personal ownership information of property which has been removed pursuant to Subsection A of this Section may request the records at the office of or by submitting a written request by mail or electronic mail to the parish property tax assessor or collector.

C. The provisions of this Section shall not be construed to restrict public access to records concerning immovable property in the parish.

Acts 2022, No. 394, §1.

RS 44:11.2

Limited access to personal information for protected individuals

§11.2. Limited access to personal information for protected individuals

A. As used in this Section, the term "protected individual" shall mean:

(1) A current or retired justice of the Louisiana Supreme Court or a current or retired judge of an appellate, district, family, juvenile, parish, city, or municipal court established under the Constitution of Louisiana.

(2) A current or retired justice or judge of a federal court, including a United States Bankruptcy Court, domiciled in the state.

(3) A current or retired magistrate appointed by a court of the state.

(4) A current or retired United States magistrate judge domiciled in the state.

(5) A current or retired commissioner or hearing officer of any district court in the state.

(6) A current or retired district attorney, assistant district attorney, or district attorney investigator.

(7) A current member of the legislature.

(8) A current statewide elected official.

(9) A current member of the public service commission.

B. As used in this Section, the term "personal information" shall mean:

(1) Home address.

(2) Home telephone number.

(3) Mobile telephone number.

(4) Personal email address.

(5) Social security number.

(6) Driver's license number.

(7) Federal tax identification number.

(8) Bank account number, including checking and savings accounts.

(9) Credit or debit card number.

(10) License plate number or unique identifier of a vehicle.

(11) Marital record.

(12) Date of birth.

(13) School or daycare of a child.

(14) Place of worship.

(15) Employment location of a spouse, child, or dependent.

C. As used in this Section, the term "publish" shall mean to publicly post or publicly display on the internet personal information of a protected individual who submits a request pursuant to Subsection E of this Section.

D. Repealed by Acts 2025, No. 303, §2, eff. Feb. 1, 2026.

E.(1) A protected individual, or the judicial administrator's office on behalf of a protected individual identified in Paragraphs (A)(1) through (5) of this Section or the Louisiana District Attorneys Association on behalf of a protected individual identified in Paragraph (A)(6) of this Section, may request that a public body or third party:

(a) Not publish the protected individual's personal information.

(b) Remove the protected individual's personal information from any existing publication.

(2) A request made under this Section shall:

(a) Be in writing and contain the document type, description of the location on the public body's website, date of filing, registry or docket number, and an electronic mail address for correspondence.

(b) Be sent by certified mail or by electronic mail address.

(c) Provide sufficient information to confirm that the requester is a protected individual, and that a request made by the judicial administrator's office or Louisiana District Attorneys Association certifies that a requester is a protected individual, and no further information may be required to confirm that the requester is a protected individual.

(d) Identify the document, posting, or other publication containing the personal information.

(3) A request made under this Section may include the personal information of a person who resides in the same household of the protected individual who is the spouse, child, or dependent of the protected individual.

(4) The protected individual shall be responsible for confirming receipt of the request.

F.(1) Not later than ten days after receiving a request as provided by Subsection E of this Section, a public body shall acknowledge receipt of the request in writing by certified mail or by email and take steps reasonably necessary to ensure that the personal information is not published.

(2) If the personal information is already published, provide for the removal of the personal information within fifteen days after acknowledgment of receipt of the request or provide a reason in writing why the request has not been fulfilled.

G. On receipt of a request under Subsection E of this Section, a third party to whom a request is made shall:

(1) Provide for the removal of the personal information within seventy-two hours after receipt of the request.

(2) Notify the protected individual or the judicial administrator's office by certified mail or by email of the removal.

H. A protected individual, the judicial administrator's office, or the Louisiana District Attorneys Association may bring an action for mandamus due to a violation of this Section against a public body or third party for:

(1) Declaratory relief.

(2) Injunctive relief.

(3)(a) Reasonable attorney fees.

(b) For a third party, an action for a violation of this Section may also be brought for damages incurred as a result of a violation of this Section.

I. A person who violates this Section is guilty of a misdemeanor and on conviction is subject to imprisonment not exceeding ninety days or a fine not exceeding one thousand dollars, or both.

Neither this provision nor any other penalty provision shall apply to a public body.

J. Notwithstanding the provisions of this Section, an individual who is recognized as a protected individual shall not be exempt from publication or removal of his personal information from records publicly posted by the office of the secretary of state.

Acts 2024, No. 628, §1, eff. Feb. 1, 2025; Acts 2025, No. 303, §§1, 2, eff. Feb. 1, 2026.

RS 44:12

Medical records of persons covered by the Office of Group Benefits programs

§12. Medical records of persons covered by the Office of Group Benefits programs

A. All medical records, claim forms, life insurance applications, requests for the payment of benefits, and all other health records of employees and dependents enrolled in the Office of Group Benefits programs pursuant to the provisions of R.S. 42:821 or R.S. 42:851, or an employee benefit plan or program of a political subdivision, which are in the custody or control of the Office of Group Benefits, the board of trustees of a program of a political subdivision, a plan administrator, or any duly appointed representative are exempt from the provisions of this Chapter.

B. All other records pertaining to such programs in the custody or control of the Office of Group Benefits, the board of trustees of a program of a political subdivision, a plan administrator, or a duly appointed representative of the Office of Group Benefits or a program of a political subdivision are subject to the provisions of this Chapter.

C. All books and records of the Office of Group Benefits shall be subject to audit and review by the legislative auditor to the same extent as all other state departments or agencies.

Added by Acts 1982, No. 102, §1. Acts 1986, No. 866, §1; Acts 2001, No. 1178, §6, eff. June 29, 2001.

RS 44:12.1

Records of applicants for public positions; prohibitions

§12.1. Records of applicants for public positions; prohibitions

A. The name of each applicant for a public position of authority or a public position with policymaking duties, the qualifications of such an applicant related to such position, and any relevant employment history or experience of such an applicant shall be available for public inspection, examination, copying, or reproduction as provided in Part II of this Chapter.

B.(1) No public body or agent acting on behalf of such a public body shall utilize only oral contacts and interviews of applicants considered when filling vacancies in public positions of authority or public positions with policymaking duties or use any other means to circumvent the provisions of this Section.

(2)(a) Nothing in this Section shall prohibit oral contact prior to a person becoming an applicant or shall prohibit oral contact which may result in written documents.

(b) Nothing in this Paragraph shall require a particular method or procedure for filling vacancies as long as not exclusively by use of oral contact.

(3) Any person who violates the provisions of this Section shall be subject to all applicable penalties for violations of this Chapter.

Acts 2006, No. 746, §1.

RS 44:13

Registration records and other records of use maintained by libraries

§13. Registration records and other records of use maintained by libraries

A. Notwithstanding any provisions of this Chapter or any other law to the contrary, records of any library which is in whole or in part supported by public funds, including the records of public, academic, school, and special libraries, and the State Library of Louisiana, indicating which of its documents or other materials, regardless of format, have been loaned to or used by an identifiable individual or group of individuals may not be disclosed except to a parent or custodian of a minor child seeking access to that child's records, to persons acting within the scope of their duties in the administration of the library, to persons authorized in writing by the individual or group of individuals to inspect such records, or by order of a court of law.

B. Notwithstanding any provisions of this Chapter or any other law to the contrary, records of any such library which are maintained for purposes of registration or for determining eligibility for the use of library services may not be disclosed except as provided in Subsection A of this Section.

C. No provision of this Section shall be so construed as to prohibit or hinder any library or any business office operating jointly with a library from collecting overdue books, documents, films, or other items and/or materials owned or otherwise belonging to such library, nor shall any provision of this Section be so construed as to prohibit or hinder any such library or business office from collecting fines on such overdue books, documents, films, or other items and/or materials.

D. No provision of this Section shall be so construed as to prohibit or hinder any library or librarian from providing information to appropriate law enforcement officers investigating criminal activity in the library witnessed by an employee or patron of the library and reported by the administrative librarian to the appropriate law enforcement officials.

(1) The term "criminal activity in the library", as used in this Subsection, shall mean an activity which constitutes a crime, or otherwise constitutes an offense or violation of any law or ordinance, occurring:

(a) Within any library building,

(b) Upon any library property, or

(c) Near a library and the proximity of such activity to a library or library property constitutes an element of the offense.

(2) The term "information", as used in this Subsection shall include but not be limited to electronic data files, security surveillance video tapes, or other records or materials which may constitute evidence which would assist law enforcement officers in identifying the individual or group of individuals who may have committed criminal activity in the library.

Added by Acts 1983, No. 523, §1; Acts 1991, No. 938, §4; Acts 2001, No. 528, §1.

RS 44:14

Insurance, health and accident; list of insured to be provided to department

§14. Insurance, health and accident; list of insured to be provided to department

A. Every person authorized to issue a hospital or medical expense policy, a hospital or medical service contract, an employee welfare benefit plan, a health and accident insurance policy, or any other insurance contract of this type in this state, including a group insurance plan, a self insurance plan, and the Louisiana State Employees Uniform Group Benefits Program, shall provide to the Louisiana Department of Health information on their insureds, either in the form of a printed list, a computer printout, or electronic or data processing tapes, pursuant to rules and regulations established by the secretary, so that the department can determine if any of the insureds are persons who have received services from the department and on whose behalf the department may be entitled to receive insurance benefits. This information shall be provided monthly and once received by the department shall be confidential information in the same manner as other confidential information of the department.

B. The provisions of this Section shall not apply to any insured whose indemnity policy benefits pay less than twenty-five dollars a day in hospital or medical benefits.

Acts 1986, No. 866, §2; HCR No. 211, 1988 R.S., eff. July 8, 1988.

RS 44:15

Medical records of persons applying for disability retirement through any state or statewide public retirement system or pension plan or fund

§15. Medical records of persons applying for disability retirement through any state or statewide public retirement system or pension plan or fund

A. All medical records, application forms, doctor's reports and evaluations, agency certifications, and all other health records of persons applying for disability retirement from any state or statewide public retirement system or pension plan or fund pursuant to the provisions of the applicable laws governing disability retirement for these systems, plans, or funds, and all regulations promulgated pursuant thereto, which are in the custody or control of the board of trustees of any state or statewide public retirement system or pension plan or fund or any duly appointed representative thereof, are exempt from the provisions of this Chapter.

B. All other records pertaining to membership in or retirement under any state or statewide public retirement system or pension plan or fund which are in the custody or control of the board of trustees of any state or statewide public retirement system or pension plan or fund or any duly appointed representative thereof, are subject to the provisions of this Chapter.

Added by Acts 1988, No. 295, §1, eff. July 7, 1988.

RS 44:16

Personal data records for certain members of public retirement systems, plans, or funds

§16. Personal data records for certain members of public retirement systems, plans, or funds

A. All records of retired members of public retirement systems, plans, or funds or of members who are participating in or who have participated in the Deferred Retirement Option Plan are exempt from the provisions of this Chapter except for the amount of the retired member's retirement allowance, final average compensation, and years of creditable service, and the names of the agencies with which he was employed and the dates of such employment.

B. The exemption for records of retired members of the public retirement systems, plans, or funds or members who are participating in or who have participated in the Deferred Retirement Option Plan provided in Subsection A of this Section shall not apply to requests for such records by members of the Louisiana Legislature, by any state agency or employer reporting information to the public retirement systems, plans, or funds, or by any association of individuals receiving a retirement allowance or benefit from the public retirement systems, plans, or funds.

Acts 1991, No. 365, §1; Acts 1992, No. 945, §1; Acts 1995, No. 271, §1, eff. July 1, 1995.

RS 44:17

Immunization records; definitions; disclosure; liability; procedures

§17. Immunization records; definitions; disclosure; liability; procedures

A. Definitions

As used in this Section:

(1) "Minor" means a person who is seventeen years old or younger or who is not legally emancipated.

(2) "Patient" means a natural person who receives health care from a licensed health care provider under a contract, expressed or implied.

(3) "Private health care provider" means:

(a) A physician, surgeon, licensed registered or licensed practical nurse, and any employee of a physician or surgeon acting within the course and scope of employment and who is not providing health care services by or on behalf of the state.

(b) A resident, intern, or student of, or any person who is otherwise qualified in a discipline listed in Subparagraph (a) of this Paragraph when the person is acting within the course and scope of the training or staff appointment in and under the supervision of the health care providers listed in Subparagraph (a) of this Paragraph.

(4) "Representative of a patient" means a person who is a parent, tutor, curator, spouse, trustee, attorney, or other legal agent of the patient and who is authorized, by and on behalf of the patient, to exercise any of the patient's rights or privileges.

(5) "State health care provider" means a state health care provider as defined in R.S. 40:1299.39.

B. Information and records pertaining to the immunization status of persons against childhood diseases as required by R.S. 17:170 and R.S. 40:4(A)(2), may be disclosed and exchanged with verbal consent of the patient or his representative and without a patient's, or his representative's, written release authorizing such disclosure, to any of the following:

(1) State health care provider.

(2) Private health care provider.

(3) Representative of a patient.

(4) A patient who is not a minor.

C. If any person authorized in Subsection B discloses such information for any purpose other than for administering or receiving vaccinations, such disclosure shall be considered as an unauthorized release of confidential information, and such person shall be liable for civil damages.

D. The Louisiana Department of Health shall promulgate rules and regulations, in accordance with the Administrative Procedure Act, to establish procedures whereby immunization information may be released from one health care provider to another.

Acts 1995, No. 521, §2, eff. Jan. 1, 1996.

RS 44:18

Geophysical survey information

§18. Geophysical survey information

All information and records of geophysical or geological surveys furnished to the State Mineral and Energy Board or the office of mineral resources pursuant to R.S. 30:213 shall be confidential and exempt from the provisions of this Chapter.

Acts 2000, 2d Ex. Sess., No. 8, §2; Acts 2009, No. 196, §8, eff. July 1, 2009.

RS 44:19

Records of a coroner; autopsy photographs, video, and other visual images

§19. Records of a coroner; autopsy photographs, video, and other visual images

A.(1) Notwithstanding any provision of this Chapter to the contrary, any medical record or personal medical history of a deceased person in the custody of a coroner shall be confidential and shall not be subject to examination, inspection, or copying pursuant to R.S. 44:31, 32, or 33.

(2) For purposes of this Subsection, the phrase "medical record or personal medical history of a deceased person" shall mean information regarding the physical, mental, or behavioral health or condition of a deceased person prior to death.

(3) The provisions of Paragraph (1) of this Subsection shall not apply to a death certificate, fact of death letter, or coroner's report.

B. Notwithstanding any other provision of law to the contrary, photographs, video, or other visual images, in whatever form, of or relating to an autopsy conducted under the authority of the office of the coroner shall be confidential, are deemed not to be public records, and shall not be released by the office of the coroner or any officer, employee, or agent thereof except as otherwise provided in this Section.

C. Nothing in this Section shall prevent the release of information in the custody of a coroner, including autopsy photographs, video, or other visual images, in whatever form, of or relating to an autopsy conducted under the authority of the office of the coroner as follows:

(1) To a family member of the deceased or his designee.

(2) To the succession representative of the deceased's estate or his designee.

(3) To a law enforcement agency, for official use only.

(4) To a qualified dentist, forensic anthropologist, or forensic pathologist as necessary to establish the identity of the deceased.

(5) As directed by a court order or subpoena.

D. Nothing in this Section shall prevent the inspection of photographs, video, or other visual images, in whatever form, of or relating to an autopsy.

E. Coroner death investigation documents shall include the following:

(1) A fact of death letter is a written statement attesting to the fact of death, which shall constitute proof of death for all purposes, including but not limited to any claim under any policy of insurance issued on the life of the deceased individual. The fact of death letter shall be a public record. The fact of death letter shall be provided, upon request, to the spouse, parent, sibling, child, grandchild, niece, nephew, aunt, or uncle of the decedent. If there is no spouse, parent, sibling, child, grandchild, niece, nephew, aunt, or uncle of the decedent, then the coroner shall provide one copy of the autopsy report, upon request, to the next of kin.

(2) A death investigation report is the work product of the coroner and is an internal document that comprehensively records the findings and all known information about the case created by both the investigative and administrative staff of the coroner's office. The death investigation report is not a public document. However, it shall be made available at no charge to the appropriate law enforcement agencies as requested and is subject to subpoena. The death investigation report shall also be made available, upon request, to the spouse, parent, sibling, child, grandchild, niece, nephew, aunt, or uncle of the decedent. If there is no spouse, parent, sibling, child, grandchild, niece, nephew, aunt, or uncle

of the decedent, then the coroner shall provide one copy of the autopsy report, upon request, to the next of kin.

(3) A coroner's report is a document that includes the name of the decedent, address, sex, date of birth, age, and race of the decedent, date and time of death, place of death, date and time of autopsy, when applicable, and the cause and manner of death, including any scientifically contributing factors. The coroner's report is a public record, and the coroner or his designee shall release this report to the news media, any other person, the Department of Children and Family Services, when appropriate, the spouse, parent, sibling, child, grandchild, niece, nephew, aunt, or uncle of the decedent, or to the person with the right to control and authorize the interment of the decedent as provided in R.S. 8:655(A). However, nothing in this Paragraph shall authorize the release of the information set forth in this Paragraph prior to notification of the next of kin of the deceased unless no next of kin can be determined or, despite reasonable efforts by the coroner's office, no next of kin can be located. The provisions of this Paragraph shall not require the release of information in non-coroner cases, nor shall it prohibit the coroner from releasing information pursuant to R.S. 13:5713 or Children's Code Article 609 to the Department of Children and Family Services.

(4) A post-mortem forensic medical examination report, referred to as the "autopsy report", may include an external examination only, an external examination with toxicology, toxicology only, or an autopsy with supporting laboratory evaluation. The post-mortem forensic medical examination report is a document that is the work product of the coroner that contains the name of the decedent, address, date of birth, age, sex, and race of the decedent, date and time of death, place of death, date and time of autopsy, when applicable, name of the doctor performing the autopsy and names of all persons present at the autopsy, and information regarding the autopsy, including whether the autopsy was requested or performed by operation of law, a listing of the physical findings of the autopsy, a summary in narrative form of the medical findings and conclusions, toxicology, histology, and radiology findings, when applicable, and the cause and manner of death. The post-mortem forensic medical examination report is not a public document except as provided in Paragraph (6) of this Subsection, or if ordered opened to the public by a court of competent jurisdiction. However, it shall be made available at no charge to the appropriate law enforcement agencies as requested and is subject to subpoena. The coroner shall provide one copy of this document upon request by the spouse, parent, sibling, child, grandchild, niece, nephew, aunt, or uncle of the decedent, or the next of kin pursuant to R.S. 8:655(A) and one copy of this document upon request by the decedent's physician. The provisions of this Paragraph shall not apply to the medical records of the decedent or any records generated by any public entity other than the coroner and those records shall be obtained from the entity generating them in accordance with other applicable provisions of law.

(5) Nothing in this Subsection shall prohibit a coroner from providing the documents described in this Subsection to the Louisiana Department of Health, office of public health, for mortality surveillance and other purposes related to public health. The office of public health shall treat any such documents as confidential, and such documents shall not be subject to release pursuant to a public records request or subpoena to the Louisiana Department of Health or the office of public health.

(6) Notwithstanding any other provision of this Section, any post-mortem forensic medical examination report used in the investigation of any criminal activity or death of any person in the custody or control of any law enforcement or corrections entity authorized by the constitution and laws of the United States or the state of Louisiana is a public record subject to the provisions of R.S. 44:3(A)(1).

Acts 2001, No. 117, §1; Acts 2010, No. 849, §1, eff. June 30, 2010; Acts 2018, No. 621, §3.

RS 44:20

Records of discharge from armed forces

§20. Records of discharge from armed forces

A. Upon the presentation of the discharge certificate or other evidence, the clerks of court of the several parishes and the register of conveyances of the parish of Orleans shall record in their records without charge, each discharge certificate or other evidence of honorable separation from the armed forces of the United States of men and women who have served in the forces. It shall not be necessary to retain original discharge papers in the archives of the office.

B. Any discharge certificate or other evidence of honorable separation from the armed forces of the United States filed on or after July 1, 2000, shall be confidential, shall not be considered as public record under R.S. 44:1 et seq., and shall not be released or shown to any person except:

(1) To the veteran or his designee.

(2) If the veteran is deceased, to the executor of his estate or to the surviving spouse or any family member of the veteran, upon furnishing a death certificate, affidavit of death, or other satisfactory evidence of the death of the veteran.

C. Notwithstanding the provisions of R.S. 44:31 and R.S. 44:32, the clerks of court of the several parishes and the register of conveyances of the parish of Orleans shall make available to the public any discharge certificate or other evidence of honorable separation from the armed forces of the United States filed prior to July 1, 2000. The clerks of court and the register shall not make copies of such record for a person who requests such record, unless the person who requests such record appears in person in the office of the appropriate clerk of court or the register and provides his full name and address to the clerk or register. The clerks of court and the register shall not make such record available to the public on any website.

Acts 2003, No. 316, §1, eff. June 13, 2003; Acts 2004, No. 758, §1, eff. July 1, 2004.

NOTE: See Acts 2003, No. 316, §3, relative to remedial nature and applicability.

RS 44:21

Municipal fire and police civil service; test materials confidential

§21. Municipal fire and police civil service; test materials confidential

Notwithstanding any other provision of law to the contrary, all tests and all records, the content of which includes or indicates actual content or answers for tests which are prepared, administered, or scored by the office of state examiner, municipal fire and police civil service, shall be confidential and shall not be released by any person except for:

(1) The production and exhibition by the state examiner of test questions, answers, and papers to a local civil service board as required by R.S. 33:2492 or 2552, provided that such production and exhibition and any discussion of such materials shall occur in executive session as authorized by R.S. 42:17.

(2) As necessary for the actual administration of the test.

Acts 2003, No. 336, §2, eff. June 13, 2003.

RS 44:21.1

Jefferson Parish civil service; test materials confidential

§21.1. Jefferson Parish civil service; test materials confidential

Notwithstanding any other provision of law to the contrary, all tests and records, the content of which includes or indicates actual content or answers for tests that are prepared, administered, or scored by the Jefferson Parish Personnel Department shall be confidential and shall not be released by any person except for:

(1) The production and exhibition of test questions, answers, and papers to the Jefferson Parish Personnel Board, provided that such production and exhibition and any discussion of such materials shall occur in executive session as authorized by R.S. 42:17.

(2) As necessary for the actual administration of the test.

Acts 2011, No. 36, §1, eff. June 14, 2011.

RS 44:22

Economic development negotiations

§22. Economic development negotiations

A. Notwithstanding any other provision of this Chapter to the contrary, records in the custody of Louisiana Economic Development pertaining to an active negotiation with a person for the purpose of retaining, expanding, or attracting economic or business development in the state shall be confidential and shall not be subject to the provisions of R.S. 44:31, 32, or 33, if the person requests such confidentiality in writing detailing the reasons such person requests confidentiality and asserting that the negotiation is conditioned in whole or in part on the maintenance of such confidentiality, and the secretary of Louisiana Economic Development determines that the disclosure of such records would have a detrimental effect on the negotiation. Each determination by the secretary shall include his reasons for such determination. The secretary shall publish in the official journal of the state a notice containing general information regarding each negotiation to which records are confidential pursuant to this Section, no later than ten days after the determination of confidentiality. Such notice shall include the date of the secretary's determination. Records of expenses of the department pertaining to the negotiation shall be public and subject to review, except that the secretary may redact information that the secretary determines would identify or lead to the identification of the person with whom the department is negotiating and such information shall be confidential until the negotiations are concluded. However, immediately upon the conclusion of the negotiation, all such records shall be subject to the provisions of this Chapter.

B. No information made confidential pursuant to Subsection A of this Section shall remain confidential for more than twelve months from the date of the secretary's determination of confidentiality; however, if the negotiation remains active and the secretary makes a new determination that the disclosure of the information would be detrimental to the negotiations and gives notice as provided in Subsection A of this Section, such information shall remain confidential while the negotiation remains active, not to exceed an additional twelve months. Under no circumstances shall information made confidential pursuant to this Section remain confidential for more than twenty-four months from the date of the initial determination of the secretary.

C. For the purposes of this Section, "active negotiation" or "negotiation remains active" shall mean a negotiation which has commenced when Louisiana Economic Development provides a response to a request for information or other similar document from a person who is requesting assistance in the retention, expansion, or location of a business in this state and which is not concluded. For the purposes of this Section, a negotiation is no longer active or is concluded when Louisiana Economic Development decides to no longer actively pursue the retention, expansion, or location of such business in this state; when the person with whom the department was negotiating decides not to pursue the retention, expansion, or location of such business in this state; or when a proposal affecting the negotiation is submitted to a public body for consideration by the public body in a public meeting, whichever occurs earlier.

D. The provisions of Subsection A of this Section shall not apply to any application for a license or permit or to any record of negotiations concerning any hazardous waste or waste site, as "hazardous waste" and "waste" are defined in R.S. 30:2173.

E. The provisions of this Section shall have no effect unless the party whose information is being maintained confidential maintains as confidential any information provided to the party by Louisiana Economic Development in response to a request for assistance in the retention, expansion, or location of a business in the state and which is a negotiation and which remains an active negotiation.

F. Repealed by Acts 2012, No. 180, §1, eff. May 22, 2012.

Acts 2004, No. 669, §1, eff. July 5, 2004; Acts 2008, No. 450, §1, eff. June 25, 2008; Acts 2012, No. 180, §1, eff. May 22, 2012.

RS 44:22.1

Port economic development negotiations

§22.1. Port economic development negotiations

A. Notwithstanding any other provision of this Chapter to the contrary, records that are in the custody of a port commission or a port, harbor, and terminal district that pertain to an active negotiation with a person for the purpose of a proposed project involving the retention, expansion, or attraction of further economic development of the port under its supervision and that relate to or facilitate the transportation of goods in domestic or international commerce shall be confidential and shall not be subject to the provisions of R.S. 44:31, 32, or 33 if the person requests such confidentiality in writing detailing the reasons such person requests confidentiality and asserting that the negotiation is conditioned in whole or in part on the maintenance of such confidentiality, and the chief executive officer of the commission or district determines that the disclosure of such records would have a detrimental effect on the negotiation. Each determination by the chief executive officer shall include reasons for the determination. The commission or district shall publish in its official journal a notice containing general information regarding each negotiation to which records are confidential pursuant to this Section no later than ten days after the determination of confidentiality. Such notice shall include the date of the chief executive officer's determination. Records of expenses of the commission or district pertaining to the negotiation shall be public and subject to review, except that the chief executive officer may redact information that he determines would identify or lead to the identification of the person with whom the commission or district is negotiating and such information shall be confidential until the negotiations are concluded. However, immediately on the conclusion of the negotiation, all such records shall be subject to the provisions of this Chapter.

B. No information made confidential pursuant to Subsection A of this Section shall remain confidential for more than twelve months from the date of the chief executive officer's determination of confidentiality; however, if the negotiation remains active and the chief executive officer makes a new determination that the disclosure of the information would be detrimental to the negotiations and gives notice as provided in Subsection A of this Section, such information shall remain confidential while the negotiation remains active, not to exceed an additional twelve months. Under no circumstances shall information made confidential pursuant to this Section remain confidential for more than twenty-four months from the date of the initial determination of the chief executive officer.

C. For the purposes of this Section, "active negotiation" or "negotiation remains active" shall mean a negotiation which has commenced concerning a project for the retention, expansion, or location of public port facilities and operations which relate to or facilitate the transportation of goods in domestic or international commerce and which is not concluded when the commission or district receives a request for information or other similar document concerning the project. For the purposes of this Section, a negotiation is no longer active or is concluded when the commission or district decides no longer to actively pursue the proposed project with the person; when the person with whom the commission or district was negotiating decides not to pursue the proposed project; or when a proposal affecting the negotiation is submitted to a public body for consideration by the public body in a public meeting, whichever occurs earlier.

D. The provisions of Subsection A of this Section shall not apply to any application for a license or permit or to any record of negotiations concerning any hazardous waste or waste site as "hazardous waste" and "waste" are defined in R.S. 30:2173.

E. The provisions of this Section shall have no effect unless the party whose information is being maintained as confidential also maintains as confidential any information provided to the party by the commission or district concerning the project which remains in active negotiation.

Acts 2018, No. 175, §1, eff. May 15, 2018.

RS 44:22.2

Local government economic development negotiations

§22.2. Local government economic development negotiations

A. Notwithstanding any other provision of this Chapter to the contrary, records that are in the custody of a local government that pertain to an active negotiation with a person for the purpose of a proposed project involving the retention, expansion, or attraction of further economic development within the local government's jurisdictional boundaries shall be confidential and shall not be subject to the provisions of R.S. 44:31, 32, or 33 if the person requests such confidentiality in writing at the outset of negotiations detailing the reasons such person requests confidentiality and asserting that the negotiation is conditioned in whole or in part on the maintenance of such confidentiality and if the chief executive officer of the local government determines that the disclosure of such records would have a detrimental effect on the negotiation. Each determination by the chief executive officer shall include reasons for the determination. The chief executive officer shall not enter into any agreement without an affirmative vote of the local governing authority consistent with the Open Meetings Law. The local government shall publish on its website and in its official journal a notice containing general information regarding each negotiation to which records are confidential pursuant to this Section no later than five days after the determination of confidentiality. Such notice shall include the date of the chief executive officer's determination. Records of expenses of the local government pertaining to the negotiation shall be public and subject to review, except that the chief executive officer may redact information that the chief executive officer determines would identify or lead to the identification of the person with whom the local government is negotiating, and such information shall be confidential until negotiations are concluded. However, immediately upon the conclusion of the negotiation, all such records shall be subject to the provisions of this Chapter.

B. No information made confidential pursuant to Subsection A of this Section shall remain confidential for more than twelve months from the date of the chief executive officer's determination of confidentiality; however, if the negotiation remains active and the chief executive officer makes a new determination that the disclosure of the information would be detrimental to the negotiations and gives notice as provided in Subsection A of this Section, such information shall remain confidential while the negotiation remains active, not to exceed an additional twelve months. Under no circumstances shall information made confidential pursuant to this Section remain confidential for more than twenty-four months from the date of the initial determination of the chief executive officer.

C. For the purposes of this Section:

(1) "Active negotiation" or "negotiation remains active" means a negotiation that has commenced concerning a project for the retention, expansion, or location of a business within the jurisdictional boundaries of the local government and which is not concluded when the local government receives a request for information or other similar document concerning the project. For the purposes of this Section, a negotiation is no longer active or is concluded when the local government decides to no longer actively pursue the proposed project with the person, when the person with whom the local government was negotiating decides not to pursue the proposed project, or when a proposal affecting the negotiation is submitted to a public body for consideration by the public body in a public meeting, whichever occurs earlier.

(2) "Chief executive officer" for a municipality means the mayor and, for a parish, means the parish president or the official designated as the chief executive officer of the parish by law or homerule charter.

(3) "Economic development" means a project for which a company seeking incentives commits to either:

(a) Creating or retaining at least fifteen permanent jobs for manufacturing or distribution centers or at least twenty-five permanent jobs for digital media, headquarters, research and development, or inbound call center operations.

(b) Having at least five million dollars in capital improvements.

(4) "Local government" means a parish or municipality.

D. The provisions of Subsection A of this Section shall not apply to any application for a license or permit or to any record of negotiations concerning any hazardous waste or waste site as "hazardous waste" and "waste" are defined in R.S. 30:2173.

E. The provisions of this Section shall have no effect unless the party whose information is being maintained as confidential also maintains as confidential any information provided to the party by the local government concerning the project which remains in active negotiation.

F. The provisions of this Section shall terminate on January 1, 2028.

Acts 2024, No. 618, §1.

RS 44:23

Department of Transportation and Development; preconstruction estimates

§23. Department of Transportation and Development; preconstruction estimates

Notwithstanding the provisions of R.S. 44:31, 32, or 33, a preconstruction estimate for a project advertised and let or for a project to be advertised and let by the Department of Transportation and Development shall not be available for examination, inspection, copying, or reproduction until the date that the bids for such project are opened. If the custodian of such a record receives a request for a preconstruction estimate prior to the date the bids for such project are opened, the custodian shall notify the requestor that the record is not available and shall specify the date that the record will be available. Notwithstanding the provisions of this Section, the estimated cost range for a department project shall be available, upon request.

Acts 2006, No. 321, §1, eff. June 13, 2006.

RS 44:23.1

Department of Transportation and Development; Sabine River Authority; exception for certain sensitive security information or critical infrastructure information

§23.1. Department of Transportation and Development; Sabine River Authority; exception for certain sensitive security information or critical infrastructure information

A. Except as otherwise provided in Subsection B of this Section, nothing in this Chapter shall be construed to require disclosure of records of the Department of Transportation and Development or the Sabine River Authority, state of Louisiana, containing sensitive security information or critical infrastructure information.

B. The provisions of Subsection A of this Section shall not be construed, interpreted, or enforced in any manner to prohibit a member of the legislature in the performance of his official duties from inspecting or examining any record in the custody of the Department of Transportation and Development.

C. For purposes of this Section, the following terms shall have the following meanings:

(1) "Critical infrastructure" shall mean a transportation facility or asset that is so vital to the state of Louisiana that the incapacity or destruction of the facility or asset would have a debilitating impact on the security, economy, public health, or public safety of the state.

(2) "Sensitive security information" shall mean security procedures, criminal intelligence information pertaining to terrorist-related activity, or threat or vulnerability assessments created, collected, or obtained in the prevention of terrorist-related activity, including but not limited to physical security information or critical infrastructure information, proprietary information, operational plans, and the analysis of such information, or internal security information.

Acts 2008, No. 693, §1, eff. July 1, 2008; Acts 2010, No. 762, §2, eff. June 30, 2010.

RS 44:31

Right to examine records

PART II. GENERAL PROVISIONS

§31. Right to examine records

A. Providing access to public records is a responsibility and duty of the appointive or elective office of a custodian and his employees.

B.(1) Except as otherwise provided in this Chapter or as otherwise specifically provided by law, and in accordance with the provisions of this Chapter, any person of the age of majority may inspect, copy, or reproduce any public record.

(2) Except as otherwise provided in this Chapter or as otherwise specifically provided by law, and in accordance with the provisions of this Chapter, any person may obtain a copy or reproduction of any public record.

(3) The burden of proving that a public record is not subject to inspection, copying, or reproduction shall rest with the custodian.

Amended by Acts 1978, No. 686, §1; Acts 1999, No. 1154, §1; Acts 2004, No. 759, §1.

RS 44:31.1

Exceptions; authority of the custodian

§31.1. Exceptions; authority of the custodian

A.(1) For the purposes of this Chapter, "person" does not include an individual in custody after sentence following a felony conviction who has exhausted his appellate remedies when the request for public records is not limited to grounds upon which the individual could file for post-conviction relief under Code of Criminal Procedure Article 930.3.

(2) Notwithstanding the provisions contained in R.S. 44:32, the custodian may make an inquiry of any individual who applies for a public record to determine if the individual is in custody after sentence following a felony conviction who has exhausted his appellate remedies, and the custodian may determine if the request of any individual in custody for a felony conviction is limited to grounds upon which the individual may file for post-conviction relief under Code of Criminal Procedure Article 930.3.

B.(1) For the purposes of this Chapter, as it relates to requests for records of the office of the governor, only a person who resides in the state of Louisiana and who otherwise meets the qualifications required by this Chapter may inspect, copy, reproduce, or obtain a copy or reproduction of a public record or seek to enforce the provisions of this Chapter pursuant to R.S. 44:35. For purposes of this Subsection, "office of the governor" shall have the same meaning as provided in R.S. 44:5.

(2) Notwithstanding the provisions of R.S. 44:32, a custodian of a record of the office of the governor may require a person to provide sufficient information to establish the person's identity, age, and residency within the state of Louisiana. For purposes of this Subsection, "sufficient information" may include any government-issued document showing the person's name, age, or residential address. A custodian may deny the request of a person who does not meet the requirements of this Subsection.

(3) Any document submitted to a custodian to establish a person's identity, age, or residency pursuant to this Subsection shall not be a public record pursuant to this Chapter and shall be destroyed within one year of the final disposition of the public record request.

Acts 1995, No. 653, §1; Acts 2024, No. 638, §1.

RS 44:31.2

Public records awareness program

§31.2. Public records awareness program

The attorney general shall establish a program for educating the general public, public bodies, and custodians regarding the provisions of this Chapter. Such program may include brochures, pamphlets, videos, seminars, and internet access to information which provides training on the provisions of this Chapter, including the custodian's responsibilities in connection with a request for records, the possibility that information submitted to a public body may become public record pursuant to the provisions of this Chapter, and the right of a person to institute court proceedings if access to a record is denied by the custodian.

Acts 1999, No. 1154, §1; Acts 2019, No. 256, §1.

RS 44:32

Duty to permit examination; prevention of alteration; payment for overtime; copies provided; fees

§32. Duty to permit examination; prevention of alteration; payment for overtime; copies provided; fees

A.(1) The custodian shall present any public record to any person of the age of majority who so requests. The custodian shall make no inquiry of any person who applies for a public record, except an inquiry as to the age and identification of the person and may require the person to sign a register and shall not review, examine, or scrutinize any copy, photograph, or memoranda in the possession of any such person; and shall extend to the person all reasonable comfort and facility for the full exercise of the right granted by this Chapter; provided that nothing herein contained shall prevent the custodian from maintaining such vigilance as is required to prevent alteration of any record while it is being examined; and provided further, that examinations of records under the authority of this Section must be conducted during regular office or working hours, unless the custodian shall authorize examination of records in other than regular office or working hours. In this event the persons designated to represent the custodian during such examination shall be entitled to reasonable compensation to be paid to them by the public body having custody of such record, out of funds provided in advance by the person examining such record in other than regular office or working hours. The custodian shall be permitted to make an inquiry regarding the specificity of the records sought by the applicant if, after review of the initial request, the custodian is unable to ascertain what records are being requested.

(2) If the custodian reasonably determines that the request would substantially disrupt required government operations, the custodian may deny access only after reasonable attempts to narrow or specify the request with the requestor.

B. If any record contains material which is not a public record, the custodian may separate the nonpublic record and make the public record available for examination.

C.(1)(a) For all public records, except public records of state agencies, it shall be the duty of the custodian of the public records to provide copies to persons so requesting, unless the requestor fails to pay the applicable copying fees after being notified of the amount in advance of production or the requestor has an outstanding balance from a prior request. The custodian may establish and collect reasonable fees for making copies of public records, which may include the transmission of electronic copies of public records. Any custodian who elects to establish and collect such fees shall establish a reasonable fee schedule and post the schedule where it can be readily accessed by the public. The custodian may request payment of fees in advance of production. Copies of records may be furnished without charge or at a reduced charge to indigent citizens of this state.

(b) For all public records in the custody of a clerk of court, the clerk may also establish reasonable uniform written procedures for the reproduction of any such public record. Additionally, in the parish of Orleans, the recorder of mortgages, the register of conveyances, and the custodian of notarial records may each establish reasonable uniform procedures for the reproduction of public records.

(c) The use or placement of mechanical reproduction, microphotographic reproduction, or any other such imaging, reproduction, or photocopying equipment within the offices of the clerk of court by any person described in R.S. 44:31 is prohibited unless ordered by a court of competent jurisdiction.

(d) Any person, as provided for in R.S. 44:31, may request a copy or reproduction of any public record and it shall be the duty of the custodian to provide such copy or reproduction to the person so requesting.

(2)(a) For all public records of state agencies, it shall be the duty of the custodian of such records to provide copies to persons so requesting, unless the requestor fails to pay the applicable copying fees after being notified of the amount in advance of production or the requestor has an outstanding balance from a prior request. Fees for such copies shall be charged according to the uniform fee schedule adopted by the commissioner of administration as provided by R.S. 39:241 or as otherwise fixed or provided by law. Copies of records may be furnished without charge or at a reduced charge to indigent citizens of this state or the persons whose use of such copies, as determined by the custodian, will be limited to a public purpose, including but not limited to use in a hearing before any governmental regulatory commission.

(b) Copies of records held by a public postsecondary education institution shall be furnished without charge to any student-produced media outlet that is affiliated with the institution and that is funded in whole or in part by fees levied by the institution or by students enrolled at the institution.

(3) No fee shall be charged to any person to examine or review any public records, except as provided in this Section, and no fee shall be charged for examination or review to determine if a record is subject to disclosure, except as may be determined by a court of competent jurisdiction.

D. In any case in which a record is requested and a question is raised by the custodian of the record as to whether it is a public record, such custodian shall within five days, exclusive of Saturdays, Sundays, and legal public holidays, of the receipt of the request, in writing for such record, notify in writing the person making such request of his determination and the reasons therefor. Such written notification shall contain a reference to the basis under law which the custodian has determined exempts a record, or any part thereof, from inspection, copying, or reproduction.

Amended by Acts 1968, No. 473, §1; Acts 1978, No. 686, §1; Acts 1981, No. 933, §2; Acts 1989, No. 404, §1, eff. June 30, 1989; Acts 1995, No. 372, §2, eff. July 1, 1995; Acts 1999, No. 1154, §1; Acts 2004, No. 759, §1; Acts 2005, No. 193, §2; Acts 2016, No. 525, §1; Acts 2022, No. 337, §1, eff. June 10, 2022; Acts 2022, No. 770, §1; Acts 2023, No. 247, §1; Acts 2024, No. 411, §1.

RS 44:33

Availability of records

§33. Availability of records

A.(1) When a request is made for a public record to which the public is entitled, the official, clerks of court and the custodian of notarial records in and for the parish of Orleans excepted, who has responsibility for the record shall have the record segregated from other records under his custody so that the public can reasonably view the record.

(2) If, however, segregating the record would be unreasonably burdensome or expensive, or if the record requested is maintained in a fashion that makes it readily identifiable and renders further segregation unnecessary, the official shall so state in writing and shall state the location of the requested record.

B.(1) If the public record applied for is immediately available, because of its not being in active use at the time of the application, the public record shall be immediately presented to the authorized person applying for it. If the public record applied for is not immediately available, because of its being in active use at the time of the application, the custodian shall promptly certify this in writing to the applicant, and in his certificate shall fix a day and hour within three days, exclusive of Saturdays, Sundays, and legal public holidays, for the exercise of the right granted by this Chapter.

(2) The fact that the public records are being audited shall in no case be construed as a reason or justification for a refusal to allow inspection of the records except when the public records are in active use by the auditor.

Amended by Acts 1978, No. 686, §1; Acts 1982, No. 567, §1.

RS 44:33.1

Custodian; contact information; notice to public

§33.1. Custodian; contact information; notice to public

A. Each public body that has a custodian of public records shall make the contact information of the custodian available to the public in a manner that will allow a member of the public to quickly determine the appropriate person to whom a public records request should be submitted, including by placing such information on the internet.

B. Each custodian shall use reasonable means to notify the public that information submitted to the public body may become public record pursuant to the provisions of this Chapter.

Acts 2016, No. 654, §1; Acts 2019, No. 256, §1.

RS 44:34

Absence of records

§34. Absence of records

If any public record applied for by any authorized person is not in the custody or control of the person to whom the application is made, such person shall promptly certify this in writing to the applicant, and shall in the certificate state in detail to the best of his knowledge and belief, the reason for the absence of the record from his custody or control, its location, what person then has custody of the record and the manner and method in which, and the exact time at which it was taken from his custody or control. He shall include in the certificate ample and detailed answers to inquiries of the applicant which may facilitate the exercise of the right granted by this Chapter.

Amended by Acts 1978, No. 686, §1.

RS 44:35

Enforcement

§35. Enforcement

A. Any person who has been denied the right to inspect, copy, reproduce, or obtain a copy or reproduction of a record under the provisions of this Chapter, either by a determination of the custodian or by the passage of five days, exclusive of Saturdays, Sundays, and legal public holidays, from the date of his in-person, written, or electronic request without receiving a determination in writing by the custodian or an estimate of the time reasonably necessary for collection, segregation, redaction, examination, or review of a records request, may institute proceedings for the issuance of a writ of mandamus, injunctive or declaratory relief, together with attorney fees, costs and damages as provided for by this Section, in the district court for the parish in which the office of the custodian is located.

B. In any suit filed under Subsection A above, the court has jurisdiction to enjoin the custodian from withholding records or to issue a writ of mandamus ordering the production of any records improperly withheld from the person seeking disclosure. The court shall determine the matter de novo and the burden is on the custodian to sustain his action. The court may view the documents in controversy in camera before reaching a decision. Any noncompliance with the order of the court may be punished as contempt of court.

C. Any suit brought in any court of original jurisdiction to enforce the provisions of this Chapter shall be tried by preference and in a summary manner. Any appellate courts to which the suit is brought shall place it on its preferential docket and shall hear it without delay, rendering a decision as soon as practicable.

D.(1) If a person seeking the right to inspect, copy, or reproduce a record or to receive or obtain a copy or reproduction of a public record prevails in such suit, he shall be awarded reasonable attorney fees and other costs of litigation. If such person prevails in part, the court may in its discretion award him reasonable attorney fees or an appropriate portion thereof.

(2) If a public body or official brings a suit against a person based on the person's request to inspect, copy, or reproduce a record or to receive or obtain a copy or reproduction of a public record and the person prevails in the suit, the person shall be awarded reasonable attorney fees and other costs of litigation. If the person prevails in part, the court may in its discretion award the person reasonable attorney fees or an appropriate portion thereof.

E.(1) If the court finds that the custodian arbitrarily or capriciously withheld the requested record or unreasonably or arbitrarily failed to respond to the request as required by R.S. 44:32, it may award the requestor any actual damages proven by him to have resulted from the actions of the custodian except as hereinafter provided. In addition, if the court finds that the custodian unreasonably or arbitrarily failed to respond to the request as required by R.S. 44:32, it may award the requestor civil penalties not to exceed one hundred dollars per day, exclusive of Saturdays, Sundays, and legal public holidays, for each such day of such failure to give notification.

(2) No person shall be personally liable for any penalty provided in this Chapter, including damages, civil penalties, attorney fees, and other costs of litigation assessed for failure to comply with this Section. In all instances in which a penalty is assessed, the public body shall be responsible for such penalties.

F. An award for attorney fees in any suit brought under the provisions of this Chapter shall not exceed the amounts approved by the attorney general for the employment of outside counsel.

Amended by Acts 1978, No. 686, §1; Acts 1988, No. 336, §1; Acts 1999, No. 1154, §1; Acts 2014, No. 629, §1; Acts 2018, No. 394, §1; Acts 2022, No. 770, §1; Acts 2024, No. 493, §1, eff. June 5, 2024.

RS 44:36

Preservation of records

§36. Preservation of records

A. All persons and public bodies having custody or control of any public record, other than conveyance, probate, mortgage, or other permanent records required by existing law to be kept for all time, shall exercise diligence and care in preserving the public record for the period or periods of time specified by law for public records. In all instances where the law does not specify a particular period, public records shall be preserved and maintained for a period of at least three years from the date on which the public record was made, except when an agency, as defined in R.S. 44:402, has an approved retention schedule pursuant to Subsection B of this Section. Where copies of an original record exist, the original alone shall be kept; when only duplicate copies of a record exist, only one copy of the duplicate copies shall be required to be kept. Where an appropriate form of the microphotographic process has been utilized to record, file, and otherwise preserve such public records with microforms, the microforms shall be considered originals in themselves, as provided by R.S. 44:39(C).

B. All agencies, as defined in R.S. 44:402, shall keep all records for the time specified in records retention schedules developed and approved by the state archivist and director of the division of archives, records management, and history of the Department of State, pursuant to the provisions of R.S. 44:411.

C. All existing records or records hereafter accumulated by the Department of Revenue may be destroyed after five years from the thirty-first day of December of the year in which the tax to which the records pertain became due; provided that these records shall not be destroyed in any case where there is a contest relative to the payment of taxes or where a claim has been made for a refund or where litigation with reference thereto is pending.

D. All existing records or records hereafter accumulated by the various services of the state or its subdivisions which participate in federal programs or receive federal grants may be destroyed after three years from the date on which the records were made in those cases where this provision is not superseded by guidelines for the operative federal program or grant requiring longer retention periods for the records in question; provided that these records shall not be destroyed in any case where litigation with reference thereto is pending, or until the appropriate state or federal audits have been conducted.

E. All existing records or records hereafter accumulated by the Department of Public Safety and Corrections, corrections services, pertaining to any adult offender shall be retained and may not be destroyed until after six years from the date the full term sentence imposed upon such offender expires, or six years from the date of death of the offender, whichever occurs first.

F.(1) The public records of a prosecuting agency, pertaining to a criminal prosecution that results in a conviction, in a manner other than a plea, shall be retained for a period of three years from the date on which a court of appeal affirms the conviction, the Louisiana Supreme Court denies writs, or the Louisiana Supreme Court makes its final ruling on the appeal, whichever occurs last.

(2) The provisions of this Subsection shall not apply to any records expunged as provided by law.

(3) Nothing in this Subsection shall be construed in any manner to affect or alter the provisions of R.S. 44:3 regarding the records of prosecuting agencies.

G. All existing records or records hereafter accumulated pursuant to R.S. 42:23 shall be preserved and maintained for a period of at least two years from the date on which the public record

was made.

Amended by Acts 1950, No. 134, §1; Acts 1954, No. 473, §1; Acts 1978, No. 43, §1; Acts 1983, 1st Ex. Sess., No. 11, §1, eff. Jan. 19, 1983; Acts 1986, No. 1075, §1; Acts 1991, No. 310, §1; Acts 1997, No. 1269, §1, eff. July 15, 1997; Acts 2003, No. 322, §1; Acts 2010, No. 785, §1; Acts 2013, No. 363, §2, eff. June 17, 2013; Acts 2021, No. 213, §1, eff. June 11, 2021.

RS 44:37

Penalties for violation by custodians of records

§37. Penalties for violation by custodians of records

Any person having custody or control of a public record who arbitrarily or capriciously violates any of the provisions of this Chapter, or any person not having such custody or control who by any conspiracy, understanding, or cooperation with any other person arbitrarily or capriciously hinders or attempts to hinder the inspection of any public records declared by this Chapter to be subject to inspection, shall upon first conviction be fined not less than one hundred dollars, and not more than one thousand dollars, or shall be imprisoned for not less than one month, nor more than six months. Upon any subsequent conviction he shall be fined not less than two hundred fifty dollars, and not more than two thousand dollars, or imprisoned for not less than two months, nor more than six months, or both.

Amended by Acts 2022, No. 770, §1.

RS 44:38

Access to records involved in legislative studies

NOTE: §38 eff. until Oct. 1, 2027. See Acts 2025, No. 477.

§38. Access to records involved in legislative studies

Notwithstanding any other law to the contrary, the custodian of records of the Department of Children and Family Services, office of children and family services, and the custodian of records of each juvenile court or any court which hears and decides juvenile matters shall grant access to a percentage, as specified by the legislative committee, of the total records of defined classes of children in state custody or in foster care to any committee of the legislature acting pursuant to an appropriate legislative instrument directing the committee to study procedures or outcomes of cases involving children in state custody or in foster care. The size of the specific group to be studied shall be large enough to preserve the anonymity of individual children. Such access shall be limited to that purpose, and all information regarding names or other identifiers shall be removed. Information pertaining to children who have been adopted shall be strictly confidential and shall be released only in accordance with existing laws.

NOTE: §38 as amended by Acts 2025, No. 477, eff. Oct. 1, 2027.

§38. Access to records involved in legislative studies

Notwithstanding any other law to the contrary, the custodian of records of the Department of Children and Family Services and the custodian of records of each juvenile court or any court which hears and decides juvenile matters shall grant access to a percentage, as specified by the legislative committee, of the total records of defined classes of children in state custody or in foster care to any committee of the legislature acting pursuant to an appropriate legislative instrument directing the committee to study procedures or outcomes of cases involving children in state custody or in foster care. The size of the specific group to be studied shall be large enough to preserve the anonymity of individual children. Such access shall be limited to that purpose, and all information regarding names or other identifiers shall be removed. Information pertaining to children who have been adopted shall be strictly confidential and shall be released only in accordance with existing laws.

Acts 1999, No. 1267, §1; Acts 2025, No. 477, §14, eff. Oct. 1, 2027.

RS 44:39

Microfilm and electronic digitized records; use as evidence

§39. Microfilm and electronic digitized records; use as evidence

A. All persons and public bodies having custody or control of any public records of the state of Louisiana or any of its subdivisions may utilize any appropriate form of the microphotographic process, or an electronic digitizing process capable of reproducing an unalterable and accessible image of the original source document, for the recordation, filing, and preservation of all existing public records, provided that the use of such microphotographic or electronic digitizing processes is not otherwise prohibited by law.

B.(1) All agencies, as defined in R.S. 44:402, shall comply with all document conversion standards established by the division of archives, records management, and history of the Department of State in accordance with the provisions of R.S. 44:415.

(2) All agencies shall be required to maintain the original source document or microfilm thereof when such document has been preserved utilizing electronic digitizing except:

(a) Public safety services within the Department of Public Safety and Corrections.

(b) All public retirement systems, plans, and funds.

(c) Any other agency with approval in writing by the state archivist.

C. Any microfilm or electronically digitized copy, when satisfactorily identified, shall be considered to be an original itself, and shall be admissible in evidence in all courts or administrative proceedings in any agency, whether the original document is in existence or not, and an enlargement or facsimile of a reproduction is likewise admissible in evidence, if the original reproduction is in existence and available for inspection under direction of the court or the administrative agency. Original records shall remain subject to subpoena.

Amended by Acts 1950, No. 134, §1; Acts 1978, No. 364, §1; Acts 1986, No. 1075, §1; Acts 1987, No. 621, §1; Acts 1997, No. 373, §1; Acts 1998, 1st Ex. Sess., No. 73, §1, eff. May 1, 1998; Acts 1999, No. 301, §1, eff. July 1, 1999; Acts 2021, No. 213, §1, eff. June 11, 2021.

RS 44:40

Additional copies of records; purchase of equipment; funds available for payment; copies of suit records

§40. Additional copies of records; purchase of equipment; funds available for payment; copies of suit records

A. The several clerks of court and ex officio recorders and registers of conveyances and recorders of mortgages, throughout the state, are hereby authorized at their option to make additional copies*, by any means authorized by R.S. 44:116, of every nature and kind in their custody by virtue of their various official capacities as such clerks of court and ex officio recorders and registers of conveyances and recorders of mortgages, filed or recorded in their offices prior to July 29, 1964, and subsequent thereto.

B. Such clerks of court and ex officio recorders and registers are hereby authorized to purchase the necessary equipment for photorecording, photocopying, microfilming, or electronic imaging, to lease such equipment or to contract with competent independent contractors, or both, according to the discretion of the clerks of court and ex officio recorders and registers, to cause the records described in this Section to be copied and reproduced.

C. Each such clerk of court and ex officio recorder and register is hereby authorized to defray the cost of copying, reproducing, and retrieving the records described in this Section out of any funds available in the clerk's salary fund.

D. In the parish of Orleans the judges of the civil district court and the criminal district court, and in the remainder of the state the respective police juries or other governing authorities of the several parishes, are authorized to provide the necessary funds, when such funds are not already available, to enable said clerk of courts and ex officio recorders and registers to carry out the provisions of this section.

E. Notwithstanding the provisions of Subsection A of this Section or any other provision of law to the contrary, prior to destroying the original criminal records and any other records of every nature and kind that are deemed permanent under a record retention and disposal schedule adopted by the secretary of state and the clerks of court in accordance with R.S. 44:410 and 411, the destruction of which is authorized by R.S. 13:917, the several clerks of court, including the clerks of the Criminal or Civil District Courts for the parish of Orleans, shall make and retain in their custody a copy of such records electronically on nonrewritable magnetic, optical, or laser-type storage media, including but not limited to CD-ROM. No cause of action for any claim shall exist against a clerk of court for any damage or loss resulting from the destruction of an original record after proper preservation of the record in accordance herewith. However, all records in suits affecting records relating to immovable property, or adoption, interdiction, successions, trusts, or emancipation created prior to 1922 shall be retained in their original form.

F. Repealed by Acts 2012, No. 101, §3, eff. May 11, 2012.

Acts 1958, No. 350, §§1 to 4. Amended by Acts 1964, No. 415, §1; Acts 1972, No. 498, §§1, 2; Acts 1978, No. 365, §1; Acts 1978, No. 396, §1; Acts 2012, No. 101, §§2, 3, eff. May 11, 2012; Acts 2017, No. 173, §3.

*As appears in enrolled bill.

RS 44:41

Receiving and filing map, plat, etc. for record

§41. Receiving and filing map, plat, etc. for record

A. After September 1, 1970, no clerk of court, recorder of mortgages or register of conveyances, or any other public authority shall receive and file for record any map, plat, or survey attached to and pertaining to the sale or mortgage of property, when such map, plat, or survey is required by either party, which does not have impressed thereon, and affixed thereto, the signature and seal or stamp of a professional land surveyor duly licensed in accordance with the provisions of Chapter 8 of Title 37 of the Louisiana Revised Statutes of 1950 by whom or under whose responsible charge said map, plat, survey, or other document was prepared.

B. Failure to comply with the provisions of this Section shall not invalidate any title to real property otherwise legally valid.

Acts 1970, No. 532, §1; Acts 2003, No. 279, §7.

RS 44:42

Immunity from suit for invasion of privacy

§42. Immunity from suit for invasion of privacy

A. Any custodian who releases records in response to a public records request made pursuant to this Chapter shall be immune from any lawsuit for invasion of privacy alleged to be caused by the release of public records, provided the custodian acts on advice of counsel.

B. This Section shall not apply if the release of the records is proven to be arbitrary and capricious.

C. A custodian who claims the immunity provided by this Section shall be entitled to a presumption that his conduct was not arbitrary and capricious upon presenting a prima facie case of his reliance on advice of counsel.

D. For purposes of this Section, "advice of counsel" means a determination by the custodian's selected attorney, or if the custodian is an attorney, upon the custodian's own diligent determination in his capacity as attorney.

Acts 2022, No. 684, §1.

RS 44:51

Definitions

PART III. ADDRESS CONFIDENTIALITY ACT

§51. Definitions

As used in this Part, the following terms shall have the meanings hereinafter ascribed to each, unless the context clearly indicates another meaning:

(1) "Abuse" means causing or attempting to cause physical harm, placing another person in fear of physical harm, or causing another person to engage involuntarily in sexual activity by force, threat of force, or duress, when committed by any of the following:

(a) A person against such person's spouse.

(b) A person against such person's former spouse.

(c) A person residing with the victim if such person and the victim are or were in a dating relationship.

(d) A person who formerly resided with the victim if such person and the victim are or were in a dating relationship.

(e) A person against a parent of such person's child, whether or not such person and the victim have been married or resided together at any time.

(f) A person against a person with whom such person is in a dating relationship.

(g) A person against a person with whom such person formerly was in a dating relationship.

(h) A person related to the victim by consanguinity or affinity.

(2) "Dating relationship" means an intimate or sexual relationship.

(3) "Physical address" means a residential street address, school address, or work address of a program participant.

(4) "Program participant" means a person currently certified as a program participant under R.S. 44:52.

(5) "Sexual assault" means any of the acts defined as crimes in R.S. 14:41, 42, 42.1, 43, 43.1, 43.2, 43.3, and 43.5.

(6) "Stalking" means the acts defined as crimes in R.S. 14:40.2.

(7) "Substitute address" means an address designated to a program participant by the secretary of state.

Acts 2006, No. 613, §1.

RS 44:52

Address confidentiality program; application; certification; substitute address; renewal; prohibited acts; penalties

§52. Address confidentiality program; application; certification; substitute address; renewal; prohibited acts; penalties

A.(1) The Louisiana Department of State Address Confidentiality Program is hereby established to provide for the confidentiality of the physical addresses of program participants who are victims of abuse, sexual assault, or stalking.

(2) The secretary of state shall promulgate and adopt rules as necessary to effectuate the provisions and purposes of this Part. Any act or omission of the secretary of state in the implementation of the provisions of this Part shall be reviewable upon filing a petition for judicial review in the Nineteenth Judicial District Court. However, the secretary of state, his employees, application assistance agencies or organizations designated under R.S. 44:56, and the employees or volunteers of such agencies or organizations shall not be liable for any injury, loss, or damage resulting from any act or omission under this Part, except when such injury, loss, or damage is caused by an act or omission described in Paragraph (3) or (4) of Subsection B of this Section that is criminal, grossly negligent, intentional, or willful.

(3) The following persons may make application to the secretary of state to participate in the address confidentiality program:

(a) Any person who is a victim of abuse, sexual assault, or stalking and fears for his or her safety.

(b) A parent on behalf of his minor child, which child is the victim of abuse, sexual assault, or stalking, and for whom the parent fears for the safety.

(c) A guardian on behalf of a minor or incapacitated person in his care, which minor or incapacitated person is a victim of abuse, sexual assault, or stalking, and for whom the guardian fears for the safety.

(4) An application to the secretary of state for certification to participate in the address confidentiality program shall include the following:

(a) A sworn statement by the applicant attesting that the applicant has good reason to believe:

(i) That the applicant or the minor or incapacitated person on whose behalf the application is made is a victim of abuse, sexual assault, or stalking; and

(ii) That the applicant fears for his or her safety, or the safety of the minor or incapacitated person on whose behalf the application is made.

(b) A designation of the secretary of state as agent for purposes of service of process and receipt of mail.

(c) The mailing address and the telephone number or numbers where the applicant can be contacted by the secretary of state.

(d) The physical address or addresses that the applicant requests not be disclosed for the reason that disclosure will increase the risk of abuse, sexual assault, or stalking.

(e) A statement attesting that the applicant understands that as program participant, if he is a registered voter, he voluntarily waives his right to vote in person during early voting or at the polls on election day, but is eligible to vote absentee by mail.

(f) The signature of the applicant and the signature of any person who assisted the applicant in completing the application, as authorized in R.S. 44:56.

B.(1) Applications shall be filed in the office of the secretary of state.

(2) Upon the filing of a properly completed application, the secretary of state shall certify the applicant as a program participant. Such certification shall be valid for four years following the date of filing unless the certification is canceled. The secretary of state may establish a renewal procedure for program participants by administrative rule in accordance with the Administrative Procedure Act. The secretary of state shall designate a substitute address to each program participant. The secretary of state shall forward all first-class mail to each program participant's physical address.

(3) A person who falsely attests in an application that the applicant or the minor or incapacitated person on whose behalf the application is made is a victim of abuse, sexual assault, or stalking, or falsely attests that the applicant fears for his or her safety, or the safety of the minor or incapacitated person on whose behalf the application is made, or who knowingly provides false or incorrect information upon making an application, is guilty of a misdemeanor and shall be fined not more than one thousand dollars or be imprisoned for not more than one year, or both. On a second offense, or any succeeding offense, the penalty shall be a fine of not more than two thousand five hundred dollars or imprisonment for not more than five years, or both.

(4) No person shall intentionally, and knowing that he is not authorized to do so, obtain or cause the release of a program participant's physical address from the secretary of state, a state agency, a parish or local governmental agency, a law enforcement agency, or an application assistance agency or organization designated pursuant to R.S. 44:56. Whoever violates the provisions of this Paragraph is guilty of a misdemeanor and shall be fined not more than two thousand dollars or imprisoned for not more than one year, or both. On a second offense, or any succeeding offense, the penalty shall be a fine of not more than three thousand five hundred dollars or imprisonment for not more than five years, or both.

Acts 2006, No. 613, §1; Acts 2007, No. 199, §1.

RS 44:53

Cancellation of certification

§53. Cancellation of certification

A.(1) If a program participant or the minor or incapacitated person on whose behalf the application is made legally changes his name, he shall notify the secretary of state's office within seven days of the approval of the name change and provide documentation of the legal name change. If the applicant fails to timely notify the secretary of state's office or cannot provide documentation of the legal name change, the secretary of state may cancel his certification as a program participant.

(2) If a program participant or the minor or incapacitated person on whose behalf the application is made changes any of his physical addresses, he shall notify the secretary of state's office within seven days of the change. If the applicant fails to timely notify the secretary of state's office of the address change, the secretary of state may cancel his certification as a program participant.

(3) The secretary of state may cancel certification of a program participant if mail forwarded to the program participant's physical address is returned as undeliverable.

(4) The secretary of state shall cancel the certification of a program participant who makes a false attestation or provides false information on his or her application.

(5) The secretary of state shall cancel the certification of a program participant if such participant qualifies as a candidate for an office pursuant to the provisions of R.S. 18:461.

B. Prior to cancelling the certification of a program participant, the secretary of state shall attempt to notify the program participant in writing of such action.

Acts 2006, No. 613, §1; Acts 2007, No. 199, §1.

RS 44:54

Substitute address; use

§54. Substitute address; use

A.(1) A program participant may inform any state or local agency that he is a program participant and request that such agency use the substitute address designated by the secretary of state as the participant's address of record for such agency. If any agency refuses to accept the substitute address, such agency shall submit its refusal to the secretary of state's office.

(2) If the secretary of state's office determines that there is a bona fide statutory or administrative requirement which makes necessary the use of the program participant's physical address, and that such address will not become a public record in the custody of the agency, then the secretary of state may provide the physical address of the program participant to the agency, after notifying the program participant in writing that his or her physical address will be released to the agency.

(3) If the secretary of state's office determines that there is not a bona fide statutory or administrative requirement which makes necessary the use of the program participant's physical address, or that such address will become a public record in the custody of the agency, then the secretary of state shall not provide the physical address of the program participant to the agency.

B. The secretary of state's office shall notify the appropriate registrar of voters of the identity of any program participant within the parish and provide the program participant's substitute address. The Department of State and the registrars of voters shall use the substitute address for all purposes related to voter registration and voting for a period of four years from the date that the program participant's application was filed or until the program participant's certification is canceled, whichever occurs first. The program participant's name and physical address contained in the voter registration records of the secretary of state and registrars of voters are confidential and shall not be made available for public inspection or copying.

Acts 2006, No. 613, §1; Acts 2007, No. 199, §1.

RS 44:55

Secretary of state; use of substitute address; exceptions

§55. Secretary of state; use of substitute address; exceptions

The secretary of state shall not make any records in a program participant's file available for inspection or copying, other than the substitute address designated by the secretary of state, except under any of the following circumstances:

(1) If requested of the secretary of state by the chief commanding officer of a law enforcement agency or the officer's designee in the manner provided for by rules adopted and promulgated by the secretary of state in accordance with the Administrative Procedure Act.

(2) To a person identified in a court order upon the receipt by the secretary of state of that court order which specifically orders the disclosure of a particular program participant's address and the reasons stated therefor.

(3) To verify the participation of a specific program participant, in which case the secretary of state may only confirm or deny information supplied by the requestor.

Acts 2006, No. 613, §1.

RS 44:56

Program participants; application assistance

§56. Program participants; application assistance

The secretary of state shall designate state and local agencies and nonprofit organizations which may assist victims of abuse, sexual assault, or stalking in making application to the secretary of state's office for certification as program participants.

Acts 2006, No. 613, §1.

RS 44:57

Service of process

§57. Service of process

A. Service of citation or other process on a program participant shall be made on the secretary of state. If a person makes service of citation or other process on a program participant at the program participant's physical address or personally on the program participant, knowing that he is a program participant, such service of citation or other process shall be invalid and shall have no effect.

B. All legal delays for service of citation or other process on a program participant shall be extended ten days.

Acts 2007, No. 199, §1.

RS 44:67.1

Acceptance of collective bargaining agreement

PART IV. PUBLIC EMPLOYER-EMPLOYEE

COLLECTIVE BARGAINING

§67.1. Acceptance of collective bargaining agreement

A. No collective bargaining agreement to which a public employer is a party shall be accepted or ratified by the public employer or its representative until the collective bargaining agreement has been made available to the public via the Internet website of the public employer for at least five business days. The public employer shall issue a written public notice in the manner provided in R.S. 42:19(A)(2) informing the public of how such agreement may be accessed and the date, time, and place of the meeting at which the agreement will be considered by the public employer for acceptance or ratification.

B. For purposes of this Part, "public employer" means the state or a political subdivision thereof, or a department, agency, office, institution, or other organizational unit of state or local government that employs one or more individuals in any capacity.

Acts 2012, No. 168, §1.

RS 44:67.2

Construction; enforcement

§67.2. Construction; enforcement

A. The provisions of this Part shall be liberally construed to accomplish its purposes.

B. The provisions of this Part shall not be construed to affect the rights of a public employer pursuant to Part V of Chapter 9 of Title 23 of the Louisiana Revised Statutes of 1950 or to require a particular form of employment agreement between a public employer and its employees.

C. The provisions of this Part may be enforced as provided in R.S. 44:35.

Acts 2012, No. 168, §1.

RS 44:71

Offices for recording mortgages and conveyances

CHAPTER 2. RECORDERS AND RECORDATION

PART I. RECORDERS

§71. Offices for recording mortgages and conveyances

A. There is established in each parish an office for the recording of mortgages and privileges and one for the recordation of conveyances and transfer of immovables.

B. The clerks of the several district courts throughout the state are ex officio parish recorders of conveyances, mortgages, and other acts.

Acts 2005, No. 169, §6, eff. July 1, 2006; Acts 2005, 1st Ex. Sess., No. 13, §1, eff. Nov. 29, 2005; Acts 2006, No. 621, §5, eff. June 23, 2006.

NOTE: See Acts 2005, No. 169, §9, relative to instruments filed, registered, or recorded prior to effective date of Act and also relative to applicability of certain provisions to instruments made available for Internet viewing before such date.

RS 44:72

Seal

§72. Seal

Each recorder shall have an official seal, which he shall attach to all acts, certificates, and other instruments, executed or granted by him. Failure to affix the seal does not affect the validity or effect of the instruments.

Acts 2005, No. 169, §6, eff. July 1, 2006; Acts 2005, 1st Ex. Sess., No. 13, §1, eff. Nov. 29, 2005.

RS 44:73

Location of office

§73. Location of office

The recorders shall maintain their offices at the parish seat where the permanent records of the office shall be maintained. The recorders may also establish branch or ancillary offices in the parish to accept documents and to provide those services that the recorders may from time to time find convenient or useful.

Acts 2005, No. 169, §6, eff. July 1, 2006; Acts 2005, 1st Ex. Sess., No. 13, §1, eff. Nov. 29, 2005.

RS 44:74

Repealed by Acts 1974, No. 540, 2

§74. Repealed by Acts 1974, No. 540, §2

RS 44:75

Deputies

§75. Deputies

Except in the parish of Orleans, the recorder may appoint deputies whose duties shall be the same as those of the recorder. Before entering upon the duties of his office the deputy shall take the oath that the law prescribes for the recorder.

Acts 2005, No. 169, §6, eff. July 1, 2006; Acts 2005, 1st Ex. Sess., No. 13, §1, eff. Nov. 29, 2005.

RS 44:76

Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

§76. Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

RS 44:77

Recorder as proper party; payment of judgments and compromises; obligation to maintain insurance

§77. Recorder as proper party; payment of judgments and compromises; obligation to maintain insurance

A.(1) A judicial or administrative action or other proceeding shall be brought by or instituted against the recorder in his official capacity.

(2) A judgment or order shall be rendered in favor of or against the recorder in such capacity.

B. The recorder may pay a judgment or compromise out of the salary funds of the office.

C. Each recorder may keep in effect insurance insuring the recorder, his deputies, and employees against liability arising out of his failure to perform properly the duties and obligations of his office.

Acts 2005, No. 169, §6, eff. July 1, 2006; Acts 2005, 1st Ex. Sess., No. 13, §1, eff. Nov. 29, 2005.

RS 44:78

Limitation of liability

§78. Limitation of liability

A. The recorder is not liable personally or in his official capacity for:

(1) Complying with a judgment or court order.

(2) Recording a document that is not authorized by law to be recorded.

(3) Releasing or canceling an encumberance pursuant to a request filed in accordance with this Chapter.

B. The liability of the recorder, both personally and in his official capacity, as well as that of his deputies and employees is regulated by the provisions of R.S. 13:750 and 750.1, and other provisions of law.

Acts 2005, No. 169, §6, eff. July 1, 2006; Acts 2005, 1st Ex. Sess., No. 13, §1, eff. Nov. 29, 2005.

RS 44:79

Recorder not required to pay costs or give security in judicial proceedings

§79. Recorder not required to pay costs or give security in judicial proceedings

The recorder is not required to advance or pay the costs of the court, the fees of the sheriff or other officers, or any other charges in any suit or other judicial proceeding instituted either by or against him in his official capacity. Neither shall he be required to provide security, whether for appeal or otherwise as a consequence of the proceeding.

Acts 2005, No. 169, §6, eff. July 1, 2006; Acts 2005, 1st Ex. Sess., No. 13, §1, eff. Nov. 29, 2005.

RS 44:80

Fees

§80. Fees

The recorder may charge and collect such fees as are permitted or prescribed by law.

Acts 2005, No. 169, §6, eff. July 1, 2006; Acts 2005, 1st Ex. Sess., No. 13, §1, eff. Nov. 29, 2005.

RS 44:101

General powers

PART II. RECORDATION

§101. General powers

A. Within their respective parishes, recorders shall be recorder of mortgages, register of conveyances and marriage contracts, recorder of births and deaths and recorder of marks and brands.

B. All acts executed by recorders in conformity with the provisions of article two thousand two hundred and thirty four of the Revised Civil Code of 1870 shall be authentic acts.

C. Recorders may make inventories, appraisements, partitions, receive wills, make matrimonial contracts, conveyances, protests, and generally all contracts and instruments of writing; hold family meetings and meetings of creditors; receive acknowledgments of instruments under private signature; administer oaths in all cases connected with the discharge of their duties; affix the seal upon the effects of deceased persons and raise the seals.

RS 44:102

Repair and rebinding of books and records; payment

§102. Repair and rebinding of books and records; payment

A. Recorders shall have repaired and rebound such books and records as have become, or may hereafter become, so materially or seriously damaged or worn as to render their repair or rebinding necessary in order to prevent their destruction, the loss of the sheets or their disfiguration.

B. The repairing and rebinding shall be paid for by the police jury of the parish in which the work is done, out of the general fund or any other fund available for that purpose.

Acts 2005, No. 169, §6, eff. July 1, 2006; Acts 2005, 1st Ex. Sess., No. 13, §1, eff. Nov. 29, 2005.

RS 44:103

Certified copies and their effect

§103. Certified copies and their effect

A. The recorder, upon proper request, shall issue to any person a copy of a recorded instrument and certify upon it, or in a separate certificate attached to it, that it is a true and correct copy of the instrument, the time and date the instrument was recorded, and its registration number or of the place in the records where it may be found.

B. A copy of a recorded instrument certified by the recorder is entitled to the same faith and credit as the recorded instrument. It may be recorded in the mortgage or conveyance records of other parishes with the same effect as if it were the recorded instrument.

C. Certification by a recorder of a copy of an instrument that is not in authentic form or duly authenticated does not dispense with the necessity of proving the signatures of the parties.

Acts 2005, No. 169, §6, eff. July 1, 2006; Acts 2005, 1st Ex. Sess., No. 13, §1, eff. Nov. 29, 2005.

RS 44:104

Redesignated as R.S. 9:2742 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

§104. Redesignated as R.S. 9:2742 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

RS 44:105

Redesignated as R.S. 9:2743 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

§105. Redesignated as R.S. 9:2743 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

RS 44:106

Redesignated as R.S. 9:5169 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

§106. Redesignated as R.S. 9:5169 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

RS 44:107

Redesignated as R.S. 9:5170 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

§107. Redesignated as R.S. 9:5170 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

RS 44:108

Redesignated as R.S. 9:5171 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

§108. Redesignated as R.S. 9:5171 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

RS 44:109

Redesignated as R.S. 9:5172 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

§109. Redesignated as R.S. 9:5172 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

RS 44:109.1

Redesignated as R.S. 9:5173 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

§109.1. Redesignated as R.S. 9:5173 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

RS 44:110

Redesignated as R.S. 9:5174 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

§110. Redesignated as R.S. 9:5174 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

RS 44:111

Redesignated as R.S. 9:5175 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

§111. Redesignated as R.S. 9:5175 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

RS 44:112

Redesignated as R.S. 9:5176 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

§112. Redesignated as R.S. 9:5176 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

RS 44:113

Redesignated as R.S. 9:2741 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

§113. Redesignated as R.S. 9:2741 by Acts 2010, No. 284, §1, eff. Jan. 1, 2011.

RS 44:114

Actions against the recorder

§114. Actions against the recorder

A. Any interested person may bring an action against the recorder in his official capacity to:

(1) Compel the recordation of any instrument or document authorized or permitted to be recorded.

(2) Compel the cancellation from the records of any instrument or document authorized or permitted to be cancelled.

(3) Cancel from the records any improperly recorded instrument or document.

(4) Declare, pursuant to R.S. 9:5176, the extinction of rights.

(5) Correct any error or omission in the records.

(6) Issue any certificate or perform any other duty required of the recorder by this Chapter.

(7) Take any action that is otherwise expressly authorized by the provisions of this Chapter.

B. The action may be instituted by writ of mandamus directed to the recorder in his official capacity.

C. The action shall be filed in any parish where the records to be affected are located or the action of the recorder is to be taken.

D. All persons whose rights will be directly affected by the relief sought shall be joined in the action.

E. The recorder is not liable personally or in his official capacity for the costs of any action instituted pursuant to the provisions of this Section.

Acts 2005, No. 169, §6, eff. July 1, 2006; Acts 2005, 1st Ex. Sess., No. 13, §1, eff. Nov. 29, 2005.

RS 44:115

Photographic reproduction of acts

§115. Photographic reproduction of acts

The recorder, at his option and in his discretion, may record acts by means of photorecording, photocopying, microfilming, or other photographic methods of reproduction. The film stock used in making photographic or microphotographic copies and the processing of the copies shall comply with the standards of the American National Standard Institute for permanent record photographic microcopying film. The clerk of court in East Baton Rouge Parish will make available to the assessor a copy of the original document files under provision of the aforementioned sections, excluding holidays within forty-eight hours. The recorder shall preserve and maintain original maps, plats, property descriptions or photographs as related to the work of a professional surveyor engaged in the practice of land surveying as defined in R.S. 37:682.

Acts 2005, No. 169, §6, eff. July 1, 2006; Acts 2005, 1st Ex. Sess., No. 13, §1, eff. Nov. 29, 2005.

RS 44:116

Photostatic, photographic, microfilm, or other photographic or electronic copies of records; indexes of conveyance and mortgage records; disposition; evidentiary status; preservation

§116. Photostatic, photographic, microfilm, or other photographic or electronic copies of records; indexes of conveyance and mortgage records; disposition; evidentiary status; preservation

A. In all cases where the clerks of court and recorders of the various parishes throughout the state, Orleans Parish excepted, are required by law to make records of filings, documents, pleadings, and all other written instruments, including indexes, and registers of the same, such records may be made by any method of photorecording, photocopying, microfilming, or other photographic method of reproduction or electronically on non-rewritable magnetic, optical, or laser-type storage media, including but not limited to CD-ROM. However, the film stock used in making photographic or microphotographic copies and the processing of the copies shall comply with the standards of the American National Standards Institute for permanent record photographic microcopying film and the electronic media used shall comply with the standards of the International Standards Organization for electronic storage of records.

B. Whenever recordation by means of photorecording, photocopying, microfilming, or other photographic method of reproduction is used or when electronic recordation on non-rewritable magnetic, optical, or laser-type storage media is used, any requirement expressed or implied in law for the above-mentioned records, including indexes and registers of the same, to be maintained in a book or bound volume shall be satisfied by the appropriate storage unit of microfilm or other photographic method employed, or tape or disk; however, if a clerk of court elects to record by means of microfilming or other photographic method of reproduction, or electronically, he shall have copies of the films, tapes, or disks available for inspection, examination, and copying under the provisions of R.S. 44:31 et seq., and other applicable laws.

C. Notwithstanding the provisions of Subsections A and B of this Section or any other provision of law to the contrary, clerks of court and recorders may make indexes of conveyance and mortgage records by any method of photorecording, photocopying, microfilming, or other photographic method of reproduction or electronically on non-rewritable magnetic, optical, or laser type storage media, including but not limited to CD-ROM; however, the standards described in Subsection A of this Section shall apply.

D. Notwithstanding the provisions of Subsection B of this Section or any other provision of law to the contrary, for any record filed on or after January 1, 2005, with the exception of records of a graphic nature, including but not limited to plats, maps, and photographs as related to the work of a Professional Land Surveyor engaged in the "Practice of Land Surveying", as defined in R.S. 37:682, a clerk of court may reproduce the record as provided in this Section and shall return the original record to the indicated person and to the address shown on the first page of the record, or if no such person and address is indicated, to any vendee or other transferee whose name and address are stated in the instrument. The clerk of court shall verify that the copy of the record is complete and legible prior to the return or disposal of the original record.

E.(1) Notwithstanding the provisions of Subsection B of this Section or any other provision of law to the contrary, with the exception of instruments filed in the conveyance records, a clerk of court shall not be required to maintain an original record filed on or prior to December 31, 2004, provided that:

(a) The record has been preserved using one of the methods contained in this Section.

(b) The original of the record has been transferred to the state archivist pursuant to the provisions of R.S. 44:406 or R.S. 44:427.

(c) The original of the record is not of a graphic nature including but not limited to plats, maps and photographs as related to the work of a Professional Land Surveyor engaged in the "Practice of Land Surveying", as defined in R.S. 37:682.

(2)(a) With the exception of instruments filed in the conveyance records on or prior to December 31, 2004, a clerk of court may destroy any record provided for in this Subsection or return it to the person who is indicated and to the address shown on the first page of the record, or if no such person and address is indicated, to the person who presented the record after the clerk of court has done all of the following:

(i) Received certification from the state archivist that the records are not subject to R.S. 44:406 or 411.

(ii) Preserved the record as provided in this Section.

(iii) Verified that the copy of the record is complete and legible.

(b) No cause of action for any claim shall exist against a clerk of court for any damage or loss resulting from the return or destruction of an original record in accordance with this Paragraph after receipt of the certification and proper preservation of the record.

(3) The Department of State shall not make or authenticate a copy or reproduction of any original record it receives from a clerk of court pursuant to R.S. 44:406. Upon receipt of any request for service or any inquiry relating to such a record, it shall forward the request or inquiry to the appropriate clerk of court who shall render the necessary service and charge the appropriate fee, as provided for by R.S. 13:841 or R.S. 13:844.

F. When a clerk of court certifies that a copy of a record preserved by him using a method provided for in this Section is true and correct, the certified copy of the record shall be received in evidence, if relevant, by any court or administrative agency as prima facie proof of its contents.

G. All rules adopted by the Department of State relative to retention and storage of records of public bodies shall apply to all records provided for in Subsections D and E of this Section. In addition, each clerk of court shall maintain a locally available backup copy of any record destroyed pursuant to Subsection E of this Section.

H. For purposes of Subsections D, E, F, and G of this Section the term "clerk of court" shall mean any parish clerk of court, and the register of conveyances, recorder of mortgages, and custodian of notarial records in the parish of Orleans.

Acts 1983, No. 180, §1; Acts 1995, No. 1119, §2; Acts 2004, No. 679, §2, eff. Jan. 1, 2005; Acts 2017, No. 173, §3; Acts 2024, No. 501, §4.

RS 44:117

Preservation of filings in the conveyance records

§117. Preservation of filings in the conveyance records

A. The clerk of court shall preserve in perpetuity the original or, when permitted by R.S. 44:116, a complete and legible copy of each instrument filed in the conveyance records.

B. For purposes of this Part, the conveyance records include all records, however denominated, that are required by law to be indexed in the index of conveyances maintained by the clerk of court.

Acts 2024, No. 501, §4.

NOTE: Former R.S. 44:117 redesignated as R.S. 44:118 by Acts 2024, No. 501, §5.

RS 44:118

Electronic copies of records; Lafayette Parish

§118. Electronic copies of records; Lafayette Parish

Subject to the provisions of R.S. 44:116, in addition to the methods authorized for recording filings, documents, pleadings, and all other written instruments and for indexing conveyance and mortgage records, the clerk of court of Lafayette Parish may electronically record filings, documents, pleadings, and all other written instruments and make indexes of conveyance and mortgage records on non-rewritable magnetic, optical, or laser type storage media, including but not limited to CD-ROM. However, the media shall comply with the standards of the American National Standard Institute or the International Standards Organization for electronic storage of records.

Acts 1995, No. 417, §2; Acts 2024, No. 501, §5.

NOTE: Former R.S. 44:117 redesignated as R.S. 44:118 by Acts 2024, No. 501, §5.

RS 44:119

Electronic filing and recording of written instruments

§119. Electronic filing and recording of written instruments

A. Notwithstanding any provision of law to the contrary, a clerk of court, as ex officio recorder, the Orleans Parish register of conveyances, or its successor, or the Orleans Parish recorder of mortgages or its successor, hereinafter referred to as "recorder", is authorized to adopt and implement a published plan which shall include a written contract between the clerk of court, the Orleans Parish register of conveyances, or its successor, or the Orleans Parish recorder of mortgages, or its successor, and the filer, which complies with the Louisiana Uniform Electronic Transactions Act, R.S. 9:2601 et seq., and which provides for the acceptance of an electronic record of any recordable written instrument except original maps, plats, property descriptions, or photographs as related to the work of a professional surveyor engaged in the "Practice of Land Surveying" as defined in R.S. 37:682 for filing and recording submitted by any person, department, political subdivision, agency, branch, entity, or instrumentality of Louisiana or of the federal government or of a state-chartered or federally chartered financial institution insured by the Federal Deposit Insurance Corporation or the National Credit Union Administration. The filer of such an electronic record shall certify to the recorder that the written instrument from which the electronic record is taken conforms to all applicable laws relating to the form and content of instruments which are submitted in writing.

B. Immediately after acceptance of an electronic record for filing, the recorder shall endorse such record with the date, hour, and minute it is filed. An electronic filing received on a legal holiday or at any time other than during the normal business hours of the recorder shall be accepted for filing on the next business day by the same procedure followed when a paper document is received in the mail of the recorder at any time other than during normal business hours.

C. An electronic record shall be effective with respect to a third person from the time of its filing in the same manner as if the written instrument had been filed.

D. On or before January 1, 2022, each clerk of court, including the Orleans Parish register of conveyances or its successor and the Orleans Parish recorder of mortgages or its successor, shall adopt and implement a plan for recording electronic documents in accordance with Paragraph A of this Article.

Acts 2005, No. 125, §1; Acts 2008, No. 368, §1; Acts 2017, No. 173, §5; Redesignated from CCP Art. 258 by Acts 2024, No. 501, §5.

NOTE: Redesignated from C.C.P. Art. 258 by Acts 2024, No. 501, §5.

RS 44:132

Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

§132. Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

RS 44:133

Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

§133. Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

RS 44:134

Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

§134. Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

RS 44:135

Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

§135. Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

RS 44:136

Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

§136. Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

RS 44:138

Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

§138. Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

RS 44:161

Double index; form and contents

PART III. INDEXES

§161. Double index; form and contents

Recorders shall keep indexes, both direct and inverse, to all acts filed for record in their respective offices which indexes shall contain, in alphabetical order, references to the names of the parties to the acts, to the file number assigned on recordation to the day, month, and year in which they are recorded, and to the book and page in which they are recorded. In addition to these requirements, all recorders shall adopt and adhere to any indexing standards that have been promulgated by the Louisiana Clerks' Remote Access Authority, as provided for in R.S. 13:754.

Acts 2017, No. 173, §3.

RS 44:162

Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

§162. Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

RS 44:163

Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

§163. Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

RS 44:171

Recordation of discharge from armed forces

PART IV. OTHER DUTIES OF THE RECORDER

§171. Recordation of discharge from armed forces

Upon presentation of the discharge certificate or other evidence, the register of conveyances shall record in his records, without charge, each discharge certificate or other evidence of honorable separation from the armed forces of the United States of men and women who have served in the forces.

Acts 2005, No. 169, §6, eff. July 1, 2006; Acts 2005, 1st Ex. Sess., No. 13, §1, eff. Nov. 29, 2005.

RS 44:181

Clerk of court as recorder; duties

CHAPTER 2-A. RECORDER AND RECORDATION: CERTAIN PARISHES

PART I. RECORDER, DEPUTIES, AND ARCHIVIST

§181. Clerk of court as recorder; duties

A. The clerk of court shall be the parish recorder of conveyances, mortgages, and other acts, as provided by law, for and throughout the parish of Orleans.

B. For purposes of this Chapter, the term "clerk of court" shall mean the clerk of court of the Civil District Court for the Parish of Orleans.

Acts 2006, No. 621, §5, eff. June 23, 2006; Acts 2012, No. 474, §3.

RS 44:181.1

Official seal

§181.1. Official seal

The parish recorder shall have an official seal, which shall be attached to all acts, certificates, and other instruments, executed or granted by the clerk of court.

Acts 2006, No. 621, §5, eff. June 23, 2006.

RS 44:181.2

Deputy recorders

§181.2. Deputy recorders

The clerk of court may appoint three deputies whose duties shall be the same as that of the parish recorder. Each deputy shall take the oath of office which the law prescribes for the recorder. Each deputy shall devote full-time to the duties of his office and shall not engage in any other profession or hold any other office.

Acts 2006, No. 621, §5, eff. June 23, 2006.

RS 44:181.3

Archivist

§181.3. Archivist

A. The clerk of court as the parish recorder shall employ a full-time professional archivist to assist the clerk of court with the responsibilities of the office and to ensure the adequate preservation of records and documents.

B. The archivist shall possess a baccalaureate degree in either history, political science, philosophy, anthropology, historical geography, archeology, French, Spanish, or fine arts, and have either:

(1) At least two years of professional level experience in historical research or college level teaching in the above academic fields; or

(2) At least two years of experience in archival operations, records management, records preservation, or other work involving locating, selecting, acquiring, and preserving documents or other valuable papers and materials.

Acts 2006, No. 621, §5, eff. June 23, 2006.

RS 44:181.4

Fees

§181.4. Fees

The clerk of court as the parish recorder shall collect all charges and fees which are in effect for the recordation of records and other documents in the parish of Orleans on January 1, 2009, and remitted in accordance with the existing provisions of law. Fifty percent of the charges and fees collected, after deduction of statutorily mandated charges, fees, salary, and benefits of the parish recorder, shall be remitted to the judicial expense fund of the Civil District Court no later than the twenty-fifth day of the month following the preceding month's collection.

Acts 2006, No. 621, §5, eff. June 23, 2006; Acts 2018, No. 326, §2.

RS 44:181.5

Repealed by Acts 2012, No. 474, §4.

§181.5. Repealed by Acts 2012, No. 474, §4.

RS 44:181.6

Repealed by Acts 2012, No. 474, §4.

§181.6. Repealed by Acts 2012, No. 474, §4.

RS 44:181.7

Notarial archives records; fees

§181.7. Notarial archives records; fees

A. The clerk of court, as ex officio recorder, shall charge the following for notarial archives records:

(1) The sum of twenty dollars for each act, contract, or other instrument filed.

(2) The sum of thirty dollars for each sketch, blueprint, or survey.

B. Five dollars from each fee collected is to be dedicated to microfilm or other imaging projects with the remainder to be deposited for the notarial archives division of the clerk's office to be used only for the expenses and maintenance of the office.

Acts 2009, No. 118, §1, eff. June 23, 2009.

RS 44:182

General powers

PART II. POWERS AND DUTIES OF PARISH RECORDER

§182. General powers

The clerk of court as the parish recorder shall have the same general powers as provided in R.S. 44:101 for recorders throughout the state.

Acts 2006, No. 621, §5, eff. June 23, 2006.

RS 44:182.1

Retention of powers

§182.1. Retention of powers

The clerk of court as the parish recorder shall be the successor to and shall exercise all powers, duties, functions, and responsibilities of the offices of the custodian of notarial records, the register of conveyances, and the recorder of mortgages, consistent with the provisions of this Chapter.

Acts 2006, No. 621, §5, eff. June 23, 2006.

RS 44:182.2

Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

§182.2. Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

RS 44:182.3

Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

§182.3. Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

RS 44:182.4

Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

§182.4. Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

RS 44:182.5

Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

§182.5. Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

RS 44:182.6

Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

§182.6. Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

RS 44:182.7

Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

§182.7. Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

RS 44:182.8

Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

§182.8. Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

RS 44:182.9

Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

§182.9. Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

RS 44:182.10

Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

§182.10. Repealed by Acts 2007, No. 212, §1, eff. July 2, 2007.

RS 44:182.11

Annual budget; submission to enumerated entities

§182.11. Annual budget; submission to enumerated entities

A. The clerk of court as the parish recorder shall prepare a detailed annual budget of the office of the clerk of court at the end of its fiscal year and submit a copy of that budget to the legislative auditor pursuant to R.S. 24:513 et seq., and to the Joint Legislative Committee on the Budget and shall publish a copy, at his own expense, in the official journal of the parish of Orleans, commencing January 1, 2009.

B. The clerk of court shall include in the annual budget adequate provisions to ensure that there is systematic rebinding, page repair, and microfilming of those notarial records created before July 29, 1970, and that the office can provide professional supervision of the use of all volumes created before the year 1900. The clerk of court shall allocate sufficient funds for the stabilization, preservation, and repair of plat plans, surveys, architectural drawings, and other visual materials housed at the office, whether presently attached to notarial acts or housed separately from notarial volumes.

Acts 2006, No. 621, §5, eff. June 23, 2006.

RS 44:183

Microfilm records; use; separate location; preservation of records

PART III. RECORDS AND PRESERVATION

§183. Microfilm records; use; separate location; preservation of records

A. The clerk of court as the parish recorder may record acts by methods of reproduction as provided in R.S. 44:115.

B. The original master negative of such microfilm or other photographic reproduction may be used for preparing digital images which can be utilized in lieu of the original document or record. Such microfilm or other photographic reproduction shall be kept in safe and secure storage at a separate location from the original records and documents filed with the clerk of court. The clerk of court as the parish recorder may have working copies made of any of the master negatives or other photographic reproductions and keep the working copies on the premises of his offices to be used at his discretion in connection with the preservation of fragile volumes. The clerk of court may substitute the working copies for daily use of original volumes, so long as the original volumes remain in the collection and are easily available for examination in cases where the working copies are difficult to decipher.

C. The clerk of court as the parish recorder may make all such reasonable rules and regulations relative to the use and preservation of documents and volumes in the office as he deems necessary, but nothing in this Section shall be construed to mean that the public will not have free access to either original records or facsimiles thereof during all regular office hours, not including extended office hours. The clerk of court, with the advice of the archivist, shall make provisions for the preservation, management, repair, and rehabilitation of any or all records in his custody, if he deems it necessary to protect old, fragile, or damaged records from further damage or loss.

D. Such microfilm copy or other photographic reproduction shall be deemed to be an original record for all purposes and shall be admissible in evidence in all courts or administrative agencies. A facsimile, exemplification, or certified copy thereof shall for all purposes be deemed to be a transcript, exemplification, or certified copy of the original.

E. Nothing in this Chapter shall in any manner be construed to permit the destruction of any records presently in the possession of, or which may hereafter come into the possession of the office of the clerk of court as the parish recorder.

F. The clerk of court shall dedicate a specific portion of fees assessed and collected by the parish recorder to microfilming, restoration, repair, and preservation of records and deposit those fees in the Consolidated Judicial Expense Fund or the Clerk's Salary Fund.

Acts 2006, No. 621, §5, eff. June 23, 2006; Acts 2008, No. 868, §3.

PART IV. RECORDATION

§184. Applicability of other laws

All provisions of law providing for the registry and recordation of instruments affecting immovable property, the recordation of conventional mortgages, including a notice of security interest, and recordation of liens and privileges on movables and immovables, not in conflict herewith, shall be applicable to the clerk of court as parish recorder.

Acts 2006, No. 621, §5, eff. June 23, 2006.

RS 44:184.1

Recordation of agreement

§184.1. Recordation of agreement

Any person, upon paying the fees otherwise fixed by law, may at any time request that the agreement be filed and copied in full into the records and the clerk of court as the parish recorder upon request also note in the margin of the recorded copy of the declaration a reference to the place where the agreement is recorded.

Acts 2006, No. 621, §5, eff. June 23, 2006.

RS 44:184.2

Repealed by Acts 2008, No. 677, §2, eff. July 1, 2008 and Acts 2008, No. 856, §2.

§184.2. Repealed by Acts 2008, No. 677, §2, eff. July 1, 2008, and Acts 2008, No. 856, §2.

RS 44:185

Recordation books; indexes

PART V. BOOKS AND INDEXES

§185. Recordation books; indexes

The clerk of court as the parish recorder shall keep a book of conveyances, a book of mortgages, and other recordation books as provided by law. He shall keep indexes as required by law.

Acts 2006, No. 621, §5, eff. June 23, 2006.

RS 44:201

Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

CHAPTER 3. RECORDERS AND RECORDATION; PARISH OF ORLEANS

PART I. REGISTER OF CONVEYANCES

§201. Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

RS 44:201.1

Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

§201.1. Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

RS 44:202

Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

§202. Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

RS 44:203

Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

§203. Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

RS 44:204

Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

§204. Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

RS 44:205

Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

§205. Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

RS 44:205.1

Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

§205.1. Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

RS 44:206

Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

§206. Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

RS 44:207

Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

§207. Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

RS 44:231

Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

PART II. RECORDER OF MORTGAGES

§231. Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

RS 44:231.1

Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009

§231.1. Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

NOTE: See Acts 2008, No. 618, providing that no special election be held to fill vacancy in office of recorder of mortgages and providing that any proclamation calling any such election shall be null, void, and of no effect.

RS 44:232

Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

§232. Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

RS 44:232.1

Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

§232.1. Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

RS 44:233

Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

§233. Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

RS 44:234

Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

§234. Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

RS 44:234.1

Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

§234.1. Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

RS 44:235

Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

§235. Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

RS 44:261

Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

PART III. BOOKS AND INDEXES

§261. Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

RS 44:262

Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

§262. Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

RS 44:263

Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

§263. Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

RS 44:264

Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

§264. Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

RS 44:265

Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

§265. Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

RS 44:266

Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

§266. Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

RS 44:267

Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

§267. Repealed by Acts 2006, No. 621, §20(B), eff. Jan. 1, 2009.

RS 44:268

Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

§268. Repealed by Acts 2005, No. 169, §8, eff. July 1, 2006.

CHAPTER 4. REESTABLISHMENT OF RECORDS IN EVENT OF DESTRUCTION OR LOSS

PART I. JUDICIAL PROCEEDINGS AND JUDGMENTS

§301. Pending proceedings

Where any original papers appertaining to a suit pending in any district court have been or may hereafter be destroyed by the burning of the courthouse of the parish, or destroyed in any other manner, the suits, together with all the papers, pleadings, bonds and other documents filed therein and making part thereof, may be revived and reinstated by either plaintiff or defendant as follows:

(1) By filing with the clerk of court a duly certified copy of the original petition, or by motion in open court, or in chambers, served on the opposite party, which motion shall contain the name and residence of the parties, the nature of the demand and cause of action, and the date of the filing of the original petition and service of citation, as near as can be ascertained, together with a statement of the pleading had in the suit, orders made and bonds filed, accompanied by affidavit of the parties, or their attorneys, as to the truth of facts allowed. Upon filing the motion a rule may be taken on the opposite party to show cause, within ten days from the service thereof, why the suit, pleadings, orders of court and bonds should not be reinstated.

(2) If answer is made to the rule it shall be accompanied by the affidavit of the party or his attorney, as to the truth of the facts stated by him, and it shall be sufficient for either party to swear to the best of his knowledge and belief.

RS 44:302

Judgments; execution on certified copies

§302. Judgments; execution on certified copies

Upon the production of a certified copy of any original judgment of any court of record, or certified copies of the judgment from the record of judicial mortgages, the clerk of the court of the parish where the destruction has taken place may issue execution thereon. Where no copy exists, the owner of the judgment, or his attorney, may obtain execution thereon upon presenting to the clerk of the court a statement, under oath, of the amount of the judgment or the balance due thereon. This Section shall not be construed to prevent the judgment from being established as other records in the manner provided for in Part II, Subpart A of this Chapter.

PART II. DEEDS, MORTGAGES AND OTHER INSTRUMENTS

SUBPART A. IN GENERAL

§321. Petition and service

Any person may re-establish and revive any deed, bond, mortgage, judgment, contract, or any other instrument or writing, of any kind or nature whatsoever, which was of record, or deposited in any public office, or held in any courthouse or in any other office or building, for the purpose of recordation in the proper office in the parish, and which was destroyed by fire or any other way, by following the procedure set forth as follows:

(1) He must apply to the district court of the parish by petition under oath, in which he shall describe the instrument or document sought to be revived with as much certainty as possible.

(2) If defendant is a resident, the petition, with a citation, shall be served on him as having an interest adverse to the plaintiff in the matter of the suit, or in the original document sought to be revived.

(3) If the defendant is an absentee, this fact shall be set forth in the petition, under oath, and the judge shall appoint a curator ad hoc to represent the absentee, upon whom service shall be made.

(4) In case of the death of the vendor, mortgagor, obligor, debtor, or other original party in interest in or connected with, the original document sought to be revived, service shall be made on his heirs and legal representatives.

In all cases in which service of petition and citation is required under this Section, it will be sufficient to cause service to be made on the defendant either in person or by publication of the notice in any newspaper published in the parish, at the option of the plaintiff, which notice shall be in the form of a citation to the defendant and shall contain a brief and clear statement of the object and intent of the demand, the name of the party having an adverse interest in the instrument of writing sought to be revived, or who held title to any realty claimed at any time anterior to the party applying, as far as known; and the delay in which the party made defendant shall be required to answer; provided that in case the service is made in person, the delay to answer shall be the same as now prescribed by law in ordinary civil action. If service is made by publication it shall be published in any newspaper of the parish at least once a week for two consecutive weeks and the last publication shall be at least six weeks before the case is heard. If there is no newspaper published in the parish in which the action is filed the publication of the notice as above required shall be made in any newspaper in any adjoining parish.

RS 44:322

Oath

§322. Oath

The oath of the plaintiff to the allegations of his petition shall be prima facie evidence of the existence and contents of the deed, bond, mortgage, judgment or other instrument of writing, but may be rebutted by the denial, under oath, of the defendant.

RS 44:323

Affidavits

§323. Affidavits

The affidavits required by this Chapter shall be to the best of the knowledge and belief of the party making them.

RS 44:324

Answer; judgment

§324. Answer; judgment

The party defendant in any application for the re-establishment of any deed, mortgage or other instrument shall have the same delay as in other writs, and his answer, which shall be under oath, must either admit of the facts as stated in the petition, or deny the same wholly or partially; whereupon the judge shall proceed to trial, and after hearing evidence shall render judgment establishing or not establishing the deed, bond, mortgage, judgment, or other instrument of writing, as the evidence proves to have existed. No other issue is to be tried but the existence or non-existence of the document sought to be established; and when so established, it shall be executory and shall have the same force and effect as the original.

RS 44:325

Parol evidence may be used

§325. Parol evidence may be used

The provisions of this Subpart shall not prevent the establishment of any judgment or any other instrument of writing, by parol evidence, where the original record has been destroyed by the burning of the courthouse or any other place of deposit of public records, or destroyed in any other way in the parish.

RS 44:326

Court costs

§326. Court costs

The costs incurred in suits to establish the instrument shall be paid by the plaintiff when there is no opposition, but if opposition be made it shall be paid by the party cast.

RS 44:327

Effect of recording certified copies of reestablished records

§327. Effect of recording certified copies of reestablished records

The recordation of any certified copy of any deed, bond, mortgage, judgment or other instrument of writing, shall have the same force and effect as the recording of the original deed, bond, mortgage, judgment or other instrument of writing which was destroyed.

RS 44:328

Costs due clerks or other officials

§328. Costs due clerks or other officials

In all cases in which there are costs due any clerk, sheriff, parish recorder or other officer, they shall be allowed as in other cases upon the officer making a specific bill of costs certified under oath.

RS 44:329

Certified copies admissible in evidence

§329. Certified copies admissible in evidence

Certified copies from the record of any deed, bond, mortgage, or other instrument of writing shall be admissible as evidence, and shall have the same force and effect as certified copies of the original.

RS 44:361

Use of abstractors' records authorized

SUBPART B. BY USE OF ABSTRACTOR'S RECORDS

§361. Use of abstractors' records authorized

Whenever the public records or any part of the archives of the office of the clerk of court and ex-officio recorder, of any parish in this state, have been destroyed by fire, or may hereafter be destroyed by fire, in addition to the means already provided by law for their restoration, they may be restored by using abstracts of the records made by competent abstractors of sound integrity, and also by using photographic and rectigraphic copies of the records, made by competent artisans and abstractors of integrity, provided the abstracts, photographs and rectigraphs were made in the ordinary course of business to be used in furnishing abstracts of title to property or to be used in furnishing copies, or abstracts of the contents of the records.

RS 44:362

Parishes may purchase or expropriate abstractors' records

§362. Parishes may purchase or expropriate abstractors' records

A. In order to make the abstracts, photographs and rectigraphs available for the restoration of destroyed records, parish governing authorities may purchase the abstracts, photographs and rectigraphs; or may purchase the right to have true copies made of said abstracts, photographs and rectigraphs; or, in their discretion, may purchase true copies of them. The purchase may be upon such reasonable terms and conditions as may be agreed upon with the owner.

B. The parish governing authority may, in the event of a failure to agree upon a price, expropriate under existing laws the right to copy the abstracts, photographs and rectigraphs for the restoration of the public records.

RS 44:363

Procedure for purchase or expropriation by parish

§363. Procedure for purchase or expropriation by parish

Before any contract of purchase or expropriation of abstractor's records becomes perfect the parish governing authority shall ascertain whether the abstracts, photographs and rectigraphs fulfil the requirements of this Chapter and if the parish governing authority so finds it must take the further steps outlined as follows:

(1) The parish governing authority shall pass a resolution declaring that the abstractor's records fulfil the requirements of this Chapter and a certified copy of this resolution shall be transmitted to the District Attorney.

(2) The district attorney, shall, without unreasonable delay, file in the district court, a petition, the purpose of which shall be to further ascertain whether the abstracts, photographs and rectigraphs fulfil the requirements of this Chapter, and there shall be named in the petition, in general terms as defendants, all parties claiming any right to or upon immovable property in the parish, or having an interest in the restoration of the public records and archives of the parish.

(3) The defendants shall be ruled to show cause, within a time to be fixed by the district court, why the abstracts, photographs and rectigraphs do not fulfil the requirements of this Chapter and should not be used in the restoration of the records and archives and the police jury not authorized to perfect its proposed contract by purchase or expropriation.

(4) The order or rule, together with a certified copy of the petition and a copy of the resolution shall be published in the official journal of the parish and also in one or more newspapers printed and published in the parish, for at least once in each calendar week for four weeks.

(5) Upon the day fixed for the hearing, or upon the day to which it may be continued, the court shall hear evidence in support of any objection to the granting of the prayer of the petition, and, at the conclusion of the evidence and the hearing, if the court should find that the abstracts, photographs and rectigraphs fulfil the requirements of this Chapter it shall so affirmatively declare, whereupon the police jury may proceed with the contract.

(6) A suspensive appeal shall, within thirty days from the date of the judgment, lie from the judgment if anyone at interest so moves, the appeal to be without bond and without a deposit for costs.

RS 44:364

Recordation of evidence adduced at trial

§364. Recordation of evidence adduced at trial

The evidence adduced upon the trial referred to in R.S. 44:363 shall be reduced to writing and shall be recorded, together with the pleadings and judgment of the court, in the judicial records and in the conveyance records of the parish.

RS 44:365

Binding and certification

§365. Binding and certification

Whether the original of the abstracts, photographs and rectigraphs be purchased, or the right to make or cause to be made a certified copy of them be acquired, true copies of the abstracts, photographs and rectigraphs, after the judgment of court, shall be made at the expense of the parish into well-bound books and the correctness of the copy shall be shown by certificate at the end of each book.

Recordation shall be as follows: those taken from the conveyance records shall be inscribed into books styled "Conveyance Books"; those from the mortgage records into books styled "Mortgage Books"; those from sheriff's deeds into books styled "Sheriff's Deeds"; those from tutorships and successions into books styled "Probate Records"; those from judicial records, into books bearing that name, and likewise throughout, provided that all plats may be recorded in books bearing that name, and the books shall serve as such, and the recordation of each abstract, photograph and rectigraph shall be as of date shown in the same as the date of the recordation of the original.

RS 44:366

Compensation for district attorney

§366. Compensation for district attorney

The district attorney shall be paid for services rendered under the provisions of this Part. The compensation, or fee, shall be fixed by the court and payment shall be made by the parish governing authority.

RS 44:367

Certified copies of re-established archives prima facie evidence

§367. Certified copies of re-established archives prima facie evidence

Certified copies from re-established archives shall be received as prima facie proof of all that they recite, that properly belongs to the originals of such instruments, and also of the date of filing and recordation of the original instruments, under the same rules as the recorded copies of the same would have been received had they not been destroyed.

RS 44:368

Presumption of correctness; use of parol evidence

§368. Presumption of correctness; use of parol evidence

A. Whenever an instrument re-established under the provisions of this Sub-part is declared on in any real action and reliance is made thereon in the pleadings, its presumption of correctness shall not be overthrown by parol evidence nor shall parol evidence be received against the presumption unless:

(1) The defendant, intervenor, third opponent or other party interested attacks its correctness in his pleadings and with notice sufficient to put the opposite party reasonably on guard.

(2) Makes oath, in person or by his attorney or legal representative, that he believes that the re-established record is incorrect, in part or in whole, (indicating the part alleged to be incorrect) and that if permitted to offer parol testimony he verily believes and has reasonable cause to believe that he can establish it by a clear preponderance of evidence.

B. Notice of intention to deny the correctness of the re-established records, in order to be effective, must be given within a reasonable time before the date fixed for trial, and shall be given in writing and filed in open court, if court be in session, otherwise in the clerk's office.

C. It shall, however, always be competent to show by parol evidence in support of or against the re-established records and archives the physical facts as the real, open and actual and corporeal possession of the property as owner, or otherwise, by any person under any asserted claim from the time of the entry of the land from the United States or from the State, even though it is not of sufficient duration to establish a prescription, and in all attacks upon such re-established records, properly asserted, due weight shall be given to other copies, exemplifications and abstracts made prior to the destruction of such records by honest and competent abstractors in the ordinary course of business.

RS 44:369

Judicial notice

§369. Judicial notice

Whenever records and archives have been re-established in the manner provided in this Subpart, and the evidence adduced upon the trial of the proceedings had in the matter or reviving the records and archives has been reduced to writing and, together with the pleadings and judgment of the court, recorded in the judicial records and in the conveyance records, the evidence and judgment shall thereafter be judicially recognized by all courts in which a transcript thereof may be filed, and shall serve to establish, prima facie, the correctness of the abstracts, photographs and rectigraphs.

RS 44:370

Restricted application

§370. Restricted application

Nothing in the provisions of this Sub-part shall be construed as giving or affording evidence superior to titles, instruments, or other documents restored or revived, after issue joined, under and by virtue of the provisions of Subpart A of this Part.

The effect hereof shall be restricted to titles, instruments, or other documents re-established or restored under and pursuant to the provisions of R.S. 44:361 through R.S. 44:366.

RS 44:401

Division of archives, records management, and history

CHAPTER 5. STATE ARCHIVAL, HISTORICAL, AND PUBLIC RECORDS SERVICES

§401. Division of archives, records management, and history

The division of archives, records management, and history is hereby created and established as a division of the Department of State to perform all duties, functions, and responsibilities and to exercise all authority or authorities heretofore assigned to the Louisiana State Archives and Records Service by providing for a statewide system of managing and preserving government records which will meet informational requirements and serve the rights and interests of government and its citizens, and specifically to:

(1) Provide that these records are created and managed efficiently, economically, and in a manner to insure their integrity and availability.

(2) Preserve for use, by the government and citizens, those records which, because of their intrinsic, historical, or evidentiary values become a part of the legacy government leaves for the state.

Acts 1985, No. 238, §1, eff. July 6, 1985; Acts 2024, No. 508, §1.

RS 44:402

Definitions

§402. Definitions

For the purpose of this Chapter:

(1) "Secretary" means secretary of state.

(2) "State archivist" means the state archivist and director of the division of archives, records management, and history, appointed by the secretary to serve as director of that division and as state archivist.

(3) "Division" means the division of archives, records management, and history.

(4) "Records" means all documents, papers, letters, books, drawings, maps, plats, photographs, magnetic or optical media, microfilm, microphotograph, motion picture film, or other document or any other material, regardless of physical form or characteristic, generated or received under law or in connection with the transaction of official business, or preserved by an agency or political subdivision because of other informational or legal value. This term shall not be construed to include library and museum material developed or acquired and preserved solely for reference or exhibition purposes, extra copies maintained for convenience in reference or stocks of standard publications, or processed documents.

(5) "Agency" means any state, parish and municipal office, department, division, board, bureau, commission, authority, or other separate unit of state, parish, or municipal government created or established by the constitution, law, resolution, proclamation, or ordinance.

(6) "State archives" means an establishment maintained by the division to administer a program to provide for the preservation of those records and other papers that have been determined by the state archivist to have sufficient historical, fiscal, or legal value to warrant their continued preservation by the state, whether they have been deposited with the state archives or are to be maintained in agency custody.

(7) "Records management" means the systematic application of management techniques to the creation, utilization, maintenance, retention, preservation, and disposal of records for the purpose of reducing costs and improving efficiency of records keeping. "Records management" includes management of filing and microfilming equipment and supplies; filing and information retrieval systems; files, correspondence, reports, and forms management; historical documentation; micrographics; retention programming; and vital records protection.

(8) "Records center" means an establishment maintained by the division primarily for the economical storage, processing, servicing, and security of inactive public records that must be retained for varying periods of time but which need not be held in agency offices for the entire periods.

(9) "Retention and disposal schedule" means a set of disposition instructions prescribing how long, in what location, under what conditions, and in what form records series shall be kept.

(10) "Vital records" means any record essential to either or both the resumption or continuation of operations, to verification or re-creation of the legal and financial status of government in the state, or to the protection and fulfillment of obligations to citizens of the state.

(11) "Destruction" means to destroy by shredding, burning, or other suitable means of obliteration.

(12) "Disposal" means destruction in any manner approved by the environmental authority; or, transferral into the custody of the repository designated by the state archivist as most appropriate for continued maintenance.

Acts 1985, No. 238, §1, eff. July 6, 1985.

RS 44:403

Counsel

§403. Counsel

Legal services for the division shall be provided by the secretary or the attorney general and the various district attorneys in their various districts.

Acts 1985, No. 238, §1, eff. July 6, 1985.

RS 44:404

State archivist

§404. State archivist

The secretary will appoint a professionally qualified state archivist and director of the division of archives, records management, and history who shall have administrative responsibility for the division and shall serve as the archivist of the state of Louisiana. All administrative duties and functions of this Chapter shall be exercised by the state archivist acting under the direction and supervision of the secretary.

Acts 1956, No. 337, §4; Acts 1985, No. 238, §1, eff. July 6, 1985.

RS 44:405

Powers and duties

§405. Powers and duties

A. The secretary shall enforce the provisions of this Chapter and pursuant thereto may promulgate policies not inconsistent with law and in accordance with the Administrative Procedure Act establishing:

(1) Procedures for the creation and submission of retention schedules to the division.

(2) Procedures for the disposal of records, whether in agency custody or in the possession of the division.

(3) Procedures for the conversion of records by microphotographic or electronic digitizing processes.

(4) Procedures for the collection of records from agencies that are declared by the state archivist to have intrinsic, historical, or evidentiary value.

B. The promulgated policies, rules, and regulations shall be binding upon all agencies. The secretary shall employ personnel, purchase equipment, and provide facilities as may be required in the execution of the powers and duties imposed upon the secretary. The secretary shall perform any acts deemed necessary, legal, and proper to carry out the duties and responsibilities imposed upon him pursuant to the authority granted in this Section.

C. The secretary is hereby authorized to inspect and survey records, records management policies, and records disposal practices of any agency and obtain reports thereon. The secretary shall be given full cooperation of officials and employees of state agencies in any inspection, survey, or report. The secretary may report to the legislature and the governor on these activities at his discretion or as called upon by the governor or legislature.

Acts 1956, No. 337, §5; Acts 1985, No. 238, §1, eff. July 6, 1985; Acts 2024, No. 508, §1.

RS 44:406

Collection of records

§406. Collection of records

The state archivist may collect and accept records of any format, papers, and artifacts from agencies or the public, provided that these records adhere to the mission of the division as provided in R.S. 44:401. The division shall prepare inventories, indexes, catalogs, and other aids to facilitate the access and use of these records.

Acts 1956, No. 337, §6; Acts 1985, No. 238, §1, eff. July 6, 1985; Acts 2024, No. 508, §1.

RS 44:407

Repealed by Acts 2024, No. 508, §2.

§407. Repealed by Acts 2024, No. 508, §2.

RS 44:408

Archives and records center building; duty custody and control

§408. Archives and records center building; duty custody and control

A. The secretary shall have custody and control of the Louisiana State Archives and its contents to house and facilitate operations of the various archives and records management programs, including the records center establishment, and shall have authority to design, build, purchase, lease, maintain, operate, protect, and improve buildings or facilities used for the storage of inactive records of state and local agencies of Louisiana.

B. The records center or centers shall accept all records transferred to it or them through the operation of retention schedules approved by the state archivist, provide secure storage and reference service for the same, and submit written notice to inform the applicable agency of intended destruction or disposal of records in accordance with approved retention schedules.

C. Confidential or restricted records shall remain confidential or restricted and, whenever usage of records in the custody of the division is restricted by or pursuant to law or for reasons of security and the public interest, such records shall be inspected, surveyed, or otherwise used only in accordance with law and the policies and regulations imposed by the secretary acting through the state archivist.

D. Records listed for disposal shall either be destroyed in any manner approved by the environmental authority or transferred in accordance with established policies to the most appropriate repository.

Acts 1956, No. 337, §8; Acts 1985, No. 238, §1, eff. July 6, 1985; Acts 2024, No. 508, §1.

RS 44:409

Appointment of advisory groups

§409. Appointment of advisory groups

The secretary may from time to time appoint advisory groups to more effectively obtain the best professional thinking of groups including but not limited to the bar, historians, political scientists, accountants, genealogists, patriotic groups, associations of public officials, et cetera, concerning the steps to be taken with regard to any particular group or type of records. Advisory group members shall receive no salary.

Acts 1956, No. 337, §9; Acts 1985, No. 238, §1, eff. July 6, 1985.

RS 44:410

Records management programs

§410. §410. Records management programs

A. The secretary shall maintain a statewide records management program that prescribes policies and principles to be followed by state and local agencies for the economical and efficient management of state and local government records, to improve preservation and access to records, to ensure the maintenance and security of records, and to facilitate the appropriate retention or disposal of records.

B. The secretary shall employ records analysts to assist agencies in their compliance with the requirements of this Chapter and to provide training regarding compliance with the statewide records management program to state and local agencies.

Acts 1956, No. 337, §10; Acts 1985, No. 238, §1, eff. July 6, 1985; Acts 2024, No. 508, §1.

RS 44:411

Record management obligation of agency heads

§411. §411. Record management obligation of agency heads

The secretary shall establish standards for the retention of records of continuing value and monitor state and local agencies in the application of such standards to all records in their custody. To facilitate this application:

(1) The head of each agency shall establish and maintain a program for the economical and efficient management of the records of the agency, including the maintenance, access, use, security, and preservation of the records.

(2) The head of each agency shall annually designate a records officer to act as a liaison between the division and the agency on all matters relating to records management.

(3) The head of each agency shall submit to the state archivist retention schedules proposing the length of time each record series shall be kept for administrative, legal, or fiscal purposes after it has been created or received by the agency.

(4) The head of each agency shall submit disposal requests to the state archivist listing records in the custody of the agency which are no longer required for the transaction of current business and which lack sufficient administrative, legal, or fiscal value to warrant further retention. The state archivist, at his discretion, may require the records to be kept for a longer period than specified in the approved retention schedule or by law.

(5) Upon termination of employment with the state, unless otherwise directed by law, each agency head, prior to transfer of his records to a successor, shall notify the state archivist to arrange for an appraisal to determine which record or records series should be retained in the agency office and which should be transferred to the custody of the division for permanent retention.

(6) The records of any state agency, upon termination of its existence or functions, shall automatically be transferred into the custody of the division, unless otherwise directed by law.

Acts 1956, No. 337, §11; Acts 1985, No. 238, §1, eff. July 6, 1985; Acts 2021, No. 213, §1, eff. June 11, 2021; Acts 2024, No. 508, §1.

RS 44:412

Repealed by Acts 2024, No. 508, §2.

§412. Repealed by Acts 2024, No. 508, §2.

RS 44:413

Repealed by Acts 2024, No. 508, §2.

§413. Repealed by Acts 2024, No. 508, §2.

RS 44:414

Repealed by Acts 2024, No. 508, §2.

§414. Repealed by Acts 2024, No. 508, §2.

RS 44:415

Imaging and preservation services

§415. Imaging and preservation services

The imaging and preservation services program shall provide conversion services for the state. All agencies shall contract with the division for conversion services or shall comply with the conversion standards and disposal request procedures established by the division in accordance with R.S. 44:405.

Acts 1956, No. 337, §15; Acts 1985, No. 238, §1, eff. July 6, 1985; Acts 1986, No. 913, §1; Acts 2019, No. 46, §1; Acts 2024, No. 508, §1.

RS 44:416

Repealed by Acts 2024, No. 508, §2.

§416. Repealed by Acts 2024, No. 508, §2.

RS 44:417

Deposit of records of historical value; transfer of deposited records to public or educational institutions; disposition of abandoned property

§417. Deposit of records of historical value; transfer of deposited records to public or educational institutions; disposition of abandoned property

A. The records and associated historical materials of any governor of the state of Louisiana, or any other official of the state, shall be transferred to the custody of the state archivist and deposited with the state archives program within the division when the governor, or other official of the state, leaves office. This Section shall not affect the confidentiality of such records as established by law, nor require the transfer of any document certified by the governor, governor elect, or other official of the state, to be essential for the continued efficient operation of the relevant governmental office; nor shall the provisions of this Section be construed to apply to demonstrably personal and private papers.

B. The state archivist is authorized:

(1) To accept for deposit in the state archives those records of any state or local agency or of the legislature that are determined by the director to have sufficient historical or other value to warrant their continued preservation by the state government of Louisiana.

(2) To direct and effect the transfer to the state archives of any records that have been in existence for more than fifty years and that are determined by the state archivist to have sufficient historical or other value to warrant their continued preservation by the state, unless the head of the state or local agency having custody of the records shall certify in writing to the state archivist that those records must be retained in agency custody because they are essential in the conducting of the regular current business of the said agency.

C. The state archivist is also authorized:

(1) To direct and effect, in accordance with law, with the policies of the division, and with any restrictions or stipulations agreed upon between the division and the head of the originating agency, or its successor, if any, the transfer of records deposited or approved for deposit in the state archives or the records center to public or educational institutions for special research or exhibit purposes. It is prescribed and provided that title to such records shall remain vested in the state of Louisiana unless otherwise authorized by law or, in the absence of legal provision, through policies established by the division. It is further provided that such records may be recalled after reasonable notice in writing.

(2) To direct and effect the transfer to the division from private sources of materials which the state archivist is authorized to receive, and to hold in the custody of the division under the provisions of R.S. 44:406 and R.S. 44:420.

D. Notwithstanding any other provision of law to the contrary, any property deposited with the state archives and held for more than ten years, excluding agency storage collections, to which no person has made a claim shall be considered abandoned and shall become property of the state archives, provided all of the following provisions are met:

(1) At least once a week for two consecutive weeks, the state archivist shall publish a notice and listing of the property in at least one newspaper of general circulation in the parish of the last known address of the owner or depositor. If no record exists of the address of the last known owner or depositor, the notice shall be published in the official journal of the state. The notice shall contain:

(a) The name and last known address, if any, of the last known owner or depositor of the property.

(b) A description of the property.

(c) A statement that if proof of claim is not presented to the state archivist and if the claimant's right to receive the property is not established to the satisfaction of the state archivist not later than sixty-five days after the publication date of the second notice, the property shall be considered abandoned and shall become the property of the state archives.

(2) If no claim to the property is satisfactorily established within the sixty-five-day period, title to the property shall vest in the state archives free from all claims of ownership.

Acts 1956, No. 337, §17; Acts 1985, No. 238, §1, eff. July 6, 1985; Acts 2021, No. 87, §1, eff. June 4, 2021.

RS 44:418

Responsibility for custody, use, and withdrawal of records

§418. Responsibility for custody, use, and withdrawal of records

The state archivist shall be responsible for the custody, use, and withdrawal of records transferred to the division and shall, whenever the usage of any records is subject to statutory limitation and restrictions, then properly enforce such limitations and restrictions. Such limitations and restrictions shall not remain in force or effect after the records have been in existence for fifty years. Other limiting agreements, nonstatutory in nature, established between the division and the donor or donors, shall likewise remain in force for no more than fifty years.

Acts 1956, No. 337, §18; Acts 1985, No. 238, §1, eff. July 6, 1985.

RS 44:419

Preservation, conservation, and exhibition of records

§419. §419. Preservation, conservation, and exhibition of records

A. The secretary shall maintain a conservation and exhibition program and shall provide for the preservation, conservation, and exhibition of records at the Louisiana State Archives.

B. The secretary shall provide for the exhibition of copies in lieu of the original records if the secretary deems it necessary to protect old, fragile, or damaged records.

Acts 1956, No. 337, §19; Acts 1985, No. 238, §1, eff. July 6, 1985; Acts 2024, No. 508, §1.

RS 44:420

Deposit of papers and other historical materials of officials and individuals

§420. Deposit of papers and other historical materials of officials and individuals

The state archivist is authorized to accept for deposit: the records, papers, and other historical materials of former governors of the state of Louisiana, or of any other official or former official of the state and its subdivisions, and other papers relating to and contemporary with any governor or former governor of Louisiana, subject to restrictions mutually acceptable to the division and the donor; and documentary materials, including motion picture films, still pictures, sound recordings, maps, and papers from private sources that are appropriate for preservation by the state government as evidence of its organization, functions, policies, and transactions, or those of its subdivisions.

Acts 1956, No. 337, §20; Acts 1985, No. 238, §1, eff. July 6, 1985.

RS 44:421

Authorization to certify facts; evidentiary status of any reproductions

§421. Authorization to certify facts; evidentiary status of any reproductions

A. Any official who is authorized to certify to facts on the basis of records in his custody is authorized to certify to facts on the basis of records that have been transferred by him or his predecessors to the division; however, any fee due any official of the state or its subdivisions shall not be eliminated by this Chapter.

B. Whenever any officer of the state of Louisiana, any political subdivision, municipal corporation, or public corporation is required or authorized by law to record, copy, file, recopy, or replace any document, plat, paper, voucher, receipt, or book on file, or record in his office, he may do so by photostatic, microphotographic, microfilm, or other mechanical process which produces a clear, accurate, and permanent copy, reproduction, or facsimile of the original in accordance with standards not less than those established by the division for permanent records under the authority conveyed by R.S. 44:405(A)(3). Any document, when so reproduced and properly identified and certified, shall have full evidentiary value and force in law.

Acts 1956, No. 337, §21; Acts 1985, No. 238, §1, eff. July 6, 1985.

RS 44:422

Safeguards against the removal, unlawful destruction, or loss of records

§422. Safeguards against the removal, unlawful destruction, or loss of records

A. The head of each agency shall establish such safeguards against removal or loss of records as the agency head shall consider necessary and as may be required by rules and regulations issued under authority of this Chapter. Such safeguards shall include making it known to all officials and employees of the agency that no records are to be alienated or destroyed except in accordance with law and the policies, rules, and regulations developed therefrom by the state archivist and the division and calling their attention to the penalties provided by law for the unlawful removal or destruction of records.

B. The head of each agency shall notify the secretary through the state archivist of any actual, impending, or threatened unlawful removal, damage, falsification, defacement, alteration, or destruction of records in the custody of the agency that come to his attention and shall assist the secretary in initiating legal action through the attorney general for their recovery.

C. The secretary shall notify the head of any agency of any actual, impending, or threatened unlawful removal, damage, falsification, defacement, alteration, or destruction of records in the custody of the agency that come to his attention.

D. The secretary may refer any matter to the legislative auditor, inspector general, or attorney general as necessary for investigation relating to any instance of actual, impending, or threatened unlawful removal, damage, falsification, defacement, alteration, or destruction of records, including but not limited to fraudulent creation, distribution, or filing of records.

E. In any case in which records or other materials of actual or potential archival significance are determined by the state archivist to be in jeopardy of destruction or deterioration, the secretary shall have the authority to require and schedule transfer of the records to the physical and legal custody of the division and the state archivist.

Acts 1956, No. 337, §22; Acts 1985, No. 238, §1, eff. July 6, 1985; Acts 2021, No. 213, §1, eff. June 11, 2021; Acts 2024, No. 508, §1.

RS 44:423

Repealed by Acts 2024, No. 508, §2.

§423. Repealed by Acts 2024, No. 508, §2.

RS 44:424

Authority of state financial officers and others not limited

§424. Authority of state financial officers and others not limited

Nothing in this Chapter shall be construed as limiting the authority of the commissioner of administration, or other officers charged with prescribing accounting systems, forms, or procedures or of lessening the responsibility of collection and disbursal officers for rendering of their accounts for settlement.

Acts 1956, No. 337, §24; Acts 1985, No. 238, §1, eff. July 6, 1985.

RS 44:425

Department of Revenue; exemption

§425. Department of Revenue; exemption

The Department of Revenue and all of its records and files shall be exempt from the operation of this Chapter, except those records and files which the secretary of the department, in his discretion, deems to be nonconfidential and nonprivileged under the provisions of R.S. 47:1508 and 1508.1. Those records declared by the secretary of the department to be nonconfidential and nonprivileged shall be transferred to the state archivist for retention within the division or other disposition.

Acts 1956, No. 337, §25; Acts 1985, No. 238, §1, eff. July 6, 1985.

RS 44:426

Transfer of inactive legislative records to archives

§426. Transfer of inactive legislative records to archives

A. The secretary of the Senate and the clerk of the House of Representatives shall, unless otherwise directed by the Senate or House of Representatives, obtain at the close of each session of the legislature all of the inactive records of the legislature and of each committee thereof and transfer them to the custody of the division for preservation or other appropriate disposition.

B. Upon request, the state archivist shall assist and advise in the establishment of records management programs in the legislative and judicial branches of state government and may, if those branches desire, provide program services similar to those available to the executive branch of state government.

Acts 1956, No. 337, §26; Acts 1985, No. 238, §1, eff. July 6, 1985.

RS 44:427

Advisory Board of the Louisiana State Archives

§427. Advisory Board of the Louisiana State Archives

A. The Advisory Board of the Louisiana State Archives is hereby created in the Department of State.

B. The Advisory Board of the Louisiana State Archives shall be composed of the following members:

(1) Five members appointed by the secretary of state, one of whom shall be a clerk of court.

(2) Two members appointed by the secretary of state from a list of nominees provided by the Friends of the Louisiana State Archives, Inc.

(3) The secretary of state or his designee.

(4) The state archivist.

C.(1) The board shall meet at least quarterly at the call of the secretary of state and at a place determined by the secretary of state.

(2) The secretary of state, at any time, may call special meetings of the board.

D. The powers and duties of the board shall include but are not limited to advising the secretary of state concerning the following:

(1) The operation of the state archives.

(2) Raising funds to promote the state archives.

(3) Acquisitions by and donations to the state archives.

(4) Improving and developing facilities and exhibits at the state archives.

(5) Encouraging the cultural and educational enjoyment of the state archives.

E. The members of the board shall elect from their membership a chairman and a vice chairman.

F. Each appointed member shall:

(1) Have a knowledge of and interest in collecting, preserving, maintaining, and making available records and artifacts of Louisiana's history.

(2) Serve a term concurrent with that of the secretary of state.

(3) Serve until his successor is appointed and takes office.

G. Vacancies in the membership of the board shall be filled in the manner of the original appointment.

H. The members of the board shall serve without compensation.

Acts 2018, No. 436, §2.

RS 44:428

To 430 Repealed by Acts 1985, No. 238, 1, effective July 6, 1985.

§428. §§428 to 430 Repealed by Acts 1985, No. 238, §1, effective July 6, 1985.

RS 44:501

.Board; creation; appointment; compensation

CHAPTER 6. LOUISIANA HISTORICAL RECORDS ADVISORY BOARD

§501. Board; creation; appointment; compensation

A. The Louisiana Historical Records Advisory Board is hereby created in the Department of State.

B. The board shall be comprised of fifteen members. The membership of the board shall be:

(1) The secretary of state or his designee who shall be the chairman of the board.

(2) The director of state archives or his designee.

(3) The state librarian or his designee.

(4) One representative selected by the Louisiana Clerks of Court Association.

(5) One representative selected by the Louisiana Municipal Association.

(6) One representative selected by the Police Jury Association of Louisiana.

(7) One representative selected by the Louisiana Sheriffs' Association.

(8) One representative selected by the Louisiana Archives and Manuscripts Association.

(9) One representative selected by the Louisiana Historical Association.

(10) Six members appointed by the secretary of state, each of whom shall be subject to confirmation by the Senate, shall serve a term of office concurrent with the term of office of the secretary of state, and shall have expertise in one or more of the following fields:

(a) Administration of government or university records.

(b) Historical records.

(c) Archives.

C. Members of the board shall serve without compensation.

D. The board shall meet at regularly scheduled intervals and upon the call of the chairman.

Acts 2018, No. 85, §1, eff. May 10, 2018.

RS 44:502

Duties of the board

§502. Duties of the board

A. The duties of the board shall include the following:

(1) To sponsor and publish surveys regarding the conditions of and needs concerning historical records in this state.

(2) To develop and solicit proposals for historical records projects to be undertaken by entities in this state or by the board with grants from the National Historical Publications and Records Commission, hereinafter referred to in this Chapter as the "national commission".

(3) To review historical records projects proposed by entities in this state and to make recommendations regarding such projects to the national commission.

(4) To develop, revise, and submit the state's priorities for historical records projects to the national commission in accordance with the guidelines developed by the national commission.

(5) To promote an understanding of the role and the value of historical records and recordkeeping.

(6) To act in an advisory capacity to the division of archives, records management, and history within the Department of State and to other archival or records entities in the state.

(7) To review, through reports and otherwise, the operation and progress of projects throughout the state which have been financed, in whole or in part, by grants from the national commission.

B. The board shall comply with the national commission's Manual of Suggested Practices, hereinafter referred to in this Chapter as the "national commission's manual".

C. The Department of State shall provide support staff, facilities, and resources to the board.

Acts 2018, No. 85, §1, eff. May 10, 2018.

RS 44:503

State historical records coordinator duties; deputy state historical records coordinator duties

§503. State historical records coordinator duties; deputy state historical records coordinator duties

A. The secretary of state, or his designee, shall serve as the state historical records coordinator for the board. The duties of the state historical records coordinator shall include the following:

(1) To prepare a comprehensive written report, to be submitted annually to the national commission, detailing the board's activities during the previous year, assessing the board's ongoing planning objectives, and providing all additional data and information necessary to comply with the national commission's manual.

(2) To coordinate the board's efforts to assess and monitor the conditions of and needs concerning historical records in the state.

(3) To serve as the project director or provide administrative oversight, or both, for grant projects carried out by the board.

(4) To assist the board in developing and sustaining statewide strategic planning regarding the preservation of historical records, including the development and maintenance of a statement of priorities for historical records programs in the state, identifying particular priorities for board action and priorities for grant funding.

(5) To solicit and receive applications for grant projects funded by the national commission, to manage the grant review process at the state level, and to forward rating sheets and summary recommendations to the national commission.

(6) To provide information about national commission grants and board activities and priorities to entities and individuals within the state.

(7) To serve as the liaison between the board and the national commission, and as the initial point of contact for state and local officials and agencies on matters relating to records grants.

(8) Upon request of the national commission and when practicable, to review grant proposals from other state historical records boards and applicants from outside the state.

(9) To foster cooperation and communication among historical records repositories, other information agencies within the state, and the national commission.

(10) To participate with other state historical records coordinators at regional and national meetings to discuss the national commission's work and the work of the state boards and seek solutions to common problems.

B. The director of state archives or his designee shall act as the deputy state historical records coordinator for the board. The duties of the deputy state historical records coordinator shall be assisting the state historical records coordinator in executing the state historical records coordinator's duties and serving as the acting state historical records coordinator at the state historical records coordinator's discretion.

Acts 2018, No. 85, §1, eff. May 10, 2018.

RS 44:504

Repealed

§504. REPEALED BY ACTS 1989, NO. 46, §1; ACTS 1989, NO. 662, §8, EFF. JULY 7, 1989.